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Loudoun County Board of Supervisors, Business Meeting, Tuesday, Oct 6, 2026

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Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 6 hours 36 minutes (video)

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[00:31:08] can't guess now.

[00:33:39] Can you hear me? Supervisor Sainz. Yes, can you hear me? Okay, we can hear you.

[00:33:49] Okay, thank you.

[00:35:13] Good evening, everyone. We don't have quorum yet. We need five people on this dais to have quorum, so I cannot hit the gavel and start the meeting until we have one more supervisor join us on the dais. So if anyone's in the building, then can hear me. Leo will not, Leo Rogers will not do it for us. If anyone else is in the building and can join us down here, supervisors, we need to have quorum. Thank you. Just for the record, Supervisor Umstead's here, Supervisor Vice Chair Turner, and Supervisor Lecroni is here, just for the record. That's

[00:35:44] who's here on time. I should say that too. Supervisor Lecroni is going to be joining us virtually. Supervisor Sains is going to be joining us virtually, but the, we have to have

[00:36:01] five people. We have to have quorum on the dais before we start, not just available to us. Thank

[00:39:01] you. Well, good evening, supervisors. Good evening, staff, and good evening, Loudon. I'd like to call the order of the October 6, 2026 Loudon County Board of Supervisors Business Meeting. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode.

[00:39:21] If you need a headset, we have those available as well. Please see the clerk to request one. We're similar to Virginia Code Section 2.2-3708.3 of the Board's Rules of Orders. Supervisors, Letourneau and Sains, requested to participate in this meeting by electronic communication.

[00:39:42] A physical quorum of the Board of Supervisors is present because Mr. Kirchner showed up in the board room. And the Board has made arrangements for the voices of Supervisors Letourneau and Sains to be heard by all in the boardroom.

[00:39:58] Supervisor Sainz is already on. Supervisor Letourneau is going to join us a little later in the meeting, so I'm going to read this right now, but he's not here quite yet. They made these requests within the required time frame, and the county attorney deemed that the request meant the qualification to participate remotely.

[00:40:16] The board will record in its meeting, in its minutes, I'm sorry, Supervisor Letourneau participated from a remote location in Seattle, Washington, due to personal reasons, and Supervisor Sainz participated from a remote location in London due to personal reasons.

[00:40:33] So thank you for all of them coming. Before I turn it over to Mr. Crony to lead us in the words of wisdom and a Pledge of Allegiance, I do want to say that on the 22nd of September, Loudon lost, a lovely woman who some of us I've met, even if we did not know her well, her name was Lisa Arquette Bradford. I wanted to read a little bit about Ms. Bradford, because sometimes we don't always remember or talk about the people

[00:41:07] we've lost, and so I want to read her bio before I turn it over to Sylvester the Crony. Lisa Arquette Bathford was born to the lyrics, It's going to be a bright sunny day, on October 22, 1972, to Robert and Mary Arquette in Toledo, Ohio.

[00:41:29] She attended St. Joseph's Savannah Grade School and Central Catholic High School, graduating in 1991. She attended Miami University, measuring in business and marketing and being admitted into their prestigious law hall and winning their corporate competition.

[00:41:45] Following her magna cum laude graduation in 1995, she worked for the Ford Motor Company. She then focused on raising her three beautiful children, Drew, Maddie, and Caitlin. She was the ultimate volunteer for all her children's school activities.

[00:42:05] After many theater performances, she was always the loudest voice cheering above everyone. She embarked in her real estate career, excelling as an agent for Logan Foster and Compass in Northern Virginia. Lisa's warm, caring, and loving personality drew everyone into their hearts.

[00:42:28] She was loved and cherished by all. Her friendliness, humor, and professionalism always brought a bright smile that melted everyone's heart. Lisa is survived by her children, Drew, Maddie, and Caitlin, her parents, Robert and Mary Arquette, siblings, Andrew and Peter, and Nancy Arquette, and nieces and nephews, Kyle, Jacob, Corinne, Charlie, Sam, and Jack Arquette.

[00:42:58] Mr. Crony? Thank you, Chair Randall. So I attended Lisa Bradford's funeral mass today, and the community showed up to show their love and support. Lisa was a mother, friend, and pillar to the

Willowsford community, and it reminds us that domestic violence exists among neighbors, coworkers, and friends, often unseen until it is too late.

[00:43:23] I ask that we take a moment of silence to honor the beautiful life of Lisa Bradford and give hope and love to all those who have lost their lives to domestic violence. Let's do a moment of silence. Thank you, Chair Randall. Now we'll do the Pledge of Allegiance. Pledge of Allegiance to the flag of the United States of America and to the republic for which it stands

[00:43:59] one nation under God, indivisible, with liberty and justice for all. Thank you, Mr. Crony. All right. We've had so many moving parts today as we plan this agenda. I do not think there are any requests for additions or deletions tonight, but let me just ask, just in case, and Mr. Sains, I'm going to, tonight, Mr.

[00:44:26] Sains, we're going to come to you often first, just so you know where you're going to be in the order. But I don't think we have any deletions and deletions. Does anyone have any? Okay, I thought not. I'm going to read the proposed consent agenda. It's a little long, and so bear with me. Proclamation to recognize October 2026 as Breast Cancer Awareness Month. That is for approval only. I do ask when that is going to be presented that the entire board is made aware of where and when that will be presented. Proclamation to recognize Fire

[00:45:03] Prevention Month as for approval and presentation. Mr. Turner, you're going to join me down for that front for that. Proclamation to recognize Sterling's Ruritown Club, their 75th anniversary, that's going to be for approval only. Resolution for accommodation for Eagle Scout Sean Florisky, that's for approval only. Resolution for accommodation for Eagle Scout Hayden O'Connor, that's for approval only. Resolution for Eagle Scout Robbie Tennyson, that is for approval only.

[00:45:36] Resolution to recognize Parks, Rec, and Community Services as a local arts agency, that is for approval only, although I will make sure all of you know when the presentation is going to be done. Resolution to recognize the share of the air in Loudoun County, that's for approval only.

[00:45:56] Resolution to recognize Madison Blizzard, that is for approval and presentation. Mr. Kirshner, if you would join me down front for Ms. Blizzard since she lives in your district. Resolution to recognize Regan Biscoff, who is, these ladies are, these two young ladies are just phenomenal.

[00:46:16] When Ms. Bricksman arrives, I will ask her to join me down front for Ms. Biscoff as she is in Ms. Bricksman's district. 11A, Safe Passage to School Pilot Program. 11B, location and design, Route 7 and Countryside Boulevard, shared use paths and sidewalks.

[00:46:36] 11C, location and design endorsement, eastbound widening Loudoun County Parkway to Route 28. 12A, proposed amendments to Chapter 1450 of the codified ordinance, affordable dwelling units, conveyant recordation updates.

[00:46:54] 14F, appointments and confirmation. 14C, the AIR report for October 6, 2026, 14D, resolution of intent to amend Chapter 654 of the codified ordinance of Loudoun County concerning noise.

[00:47:12] I'm going to go, Mr. Sains, I'll come to you if you want to speak on that item after I finish the consent agenda. Item 14E, resolution approving a public use and necessity of acquiring certain real property interests and authorizing the acquisition of eminent domain, Farmer Road, Smith Switch Road to Ashburn Road Project.

[00:47:36] I think that's both in the Broad Run District and the Ashburn District. Is that not correct? 1114E. So that's the consent agenda. I will make a motion to approve the consent agenda. Is there a second? That's it. Motion's made. So moved.

[00:47:51] Super—oh, Fran, you're going to have to come faster than that, ma'am, way off in London. Supervisor Umstead, discussion on the consent agenda. Mr. Sains, would you like to have a discussion on the consent agenda? Sure, Madam Chair. Thank you. On 14-D, Resolution of Attent to Amend the Chapter 654 of the Codified Ordinance of Loudoun County concerning noise. The purpose of this item is to begin the process of making amendments to the codified ordinance to address noise through civil penalties for commercial and or industrial properties. This would include noise from on-site power generation like gas turbines. It also

[00:48:31] includes HVAC heating and cooling systems and other noise detrimental to the health, welfare, peace, and quality of life of our residents. This action builds on the work gathered through the county's data center noise working group, which I initiated upon my request to further examine data center noise regulations.

[00:48:50] In addition to my operational regulations on existing data center backup generators BMI that was passed earlier this summer, this is now the second action to come into that working group. I want to thank county staff and the planning and zoning team, our general counsel, and economic development and sheriff's department for putting their heads together and coming up with this potential solution.

[00:49:16] And I also want to thank my colleagues for their support on this item as well. Thank you. Thank you. Anybody else on the consent agenda? Mr. Crony? Thank you, Chair Randall. I just want to thank staff for moving the Safe Passages to Schools pilot program forward.

[00:49:32] That'll be at eight locations throughout Loudoun County. And one location is at Buffalo Trail Elementary School in my district. When I held a town hall with Supervisor Letourneau in the Dulles Farms community, people were asking for safe crosswalks along Seven Hills Drive and along the Winning Glory Drive intersection.

[00:49:59] So I look forward to getting that done so that students can walk safely to school who are in the walk zone. Thank you. Thank you. And I would just simply say to Mr. Sainz and to everyone, If you've not read item 14D, which is the amended chapter to chapter 654 to the codified ordinance regarding noise, Mr. St. Jude did an amazing job on that item.

[00:50:22] It's really, really, really well done. Thank you for putting that forward. Thank you to staff. We continue to just evolve and learn every day the things we don't know. We try to do better at it. The things we may have not done well in the past, we try to correct.

[00:50:38] And this is an effort to do that. And so thank you for putting that item together, Mr. Sains. That is the consent agenda. I made the motion. Supervisor Umstead seconded the motion. All in favor, please say aye. Aye. Aye. Any opposed? Ms. Bricksman, did you say aye on the consent agenda?

[00:50:55] I did. Thank you very much. I did have some comments, but maybe I'll say them in my board comments. Thank you. That motion will, I guess that would be six, is it seven, seven, two? It's seven, two. Right. Well, Ms. Matt and...

[00:51:11] Sylvia. Yeah. I don't know what was on there. So it's 7-2, yeah. So it's 7-2. Ms. Glass is not here yet. We will text her. And Mr... I'm sorry, Madam Chair. Sorry to interrupt you. I think I'll abstain on that because I didn't hear the actual reading. Thank you. That's fine.

[00:51:28] So it's 6-1-2. With one abstention. Oh, 6-2-1, with one abstention. Okay. Let's see. My regional updates have been real interesting.

[00:51:44] On September 23rd, Mr. Crony and I, you know, we've been hanging out a lot this month, attended the Council of Government reception. It was down at the Rayburn Building and on Capitol Hill. We heard from the delegation, from congressional delegations from Maryland and Virginia, who cover the Washington metro area, and as well as hearing from Robert White, who is very likely the incoming congressperson from the District of Columbia.

[00:52:19] I realized while we were there that in the Washington metro area, there are no females in the congressional delegation in the Washington metro area. Had not realized that until that moment. But having said that, we did hear from, in Virginia, James Wackenshaw, Don Beyer, and Eugene Vindman.

[00:52:40] I did take a moment to speak to every person, every congressperson from Virginia, from Maryland, and from D.C. about how Loudoun continues to be the only county in the Washington metro region that has a metro rail, yet we are not in the federal per diem program. And because we're not in that federal per diem program, we are likely losing millions of dollars. And so I continue to think this is a huge issue.

[00:53:08] I continue to push this issue. I continue to talk to Senator Kane, Senator Warner, Representative Super Manium, although he was not there this evening, and everyone else, because we should be in the federal per diem program. The moment we got Metro Rail, we should have been allowed in that program. And I And we'll continue to push that issue.

[00:53:28] On that same day, Mr. Crony and I also attended the update on the Dulles Airport, what's going to be their substantial changes and modifications and a design overhaul of Dulles Airport.

[00:53:44] Now, we were given information that they're not quite ready for the public to have yet, just because there may be some changes in things they do. And so pictures that were taken and things like that won't be shared. However, the information was fantastic and really very clear.

[00:54:01] I know that I will be talking to the airport about the fact that the USO lounge is not behind the security wall, which doesn't make a whole lot of sense if we really want to take care of people in the military. And so I'll be talking to the airport about doing that as they update the airport.

[00:54:21] And finally, on the 29th, there was a meeting that was requested by the clerk of the court, Gary Clements, and it was with Congressman Superman, Russett Perry, and myself, about the fact that there are several, a very large increase of people who are appearing in civil court pro se. They represent themselves because they're not being able to afford an attorney, and we just kind of had a brainstorming session on how some of these people we can figure out from the local level, from the state level, from the federal level how to assist with

[00:54:59] that if we can assist with it. Ms. Umstad and Mr. Kirshner, as you are my colleagues who are also attorneys, I do want to sit down and talk to you or maybe encourage you to talk to Mr. Clemens about this issue. It's a huge issue. I didn't realize it was, but it's not the, obviously it's not criminal court, it's civil

court. And so when people are going through divorce, child custody cases, or even domestic violence cases, they don't always have an attorney, and they're trying to represent themselves, and if the person on the other side does have an attorney, it just doesn't work out very well.

[00:55:37] And so I appreciate Mr. Clemens bringing that to me, and we're going to really kind of put our heads together and take advantage of the two attorneys on my dais and try to figure out how we can do better with that. All right. My voice for a cause today is the Friends of Homeless Animals.

[00:55:57] Founded in 1973, Friends of Homeless Animals is a nonprofit organization focused on providing a safe haven for abused and abandoned animals and finding them permanent loving homes. Since their founding, Friends of Homeless Animals have placed in forever homes more than 17,000 dogs and cats that would otherwise have been abandoned or killed.

[00:56:25] They strive to bring about a time where there will be no more homeless pets, and every dog and cat can be guaranteed a loving home. Thank you so much, the executive director. If you'd introduce yourself, then I've got a couple questions for you. Yes, I'm Allison Marhoff, very proud executive director at Friends of Homeless Animals, lovingly called FOHA.

[00:56:45] You hear me say that, F-O-H-A, FOHA. Thank you for being here. Can you talk about FOHA's shelter facility and how it differs from other kind of more traditional animal shelters? Yeah, well, as you mentioned, we have been a proud member of the community for over 50 years, which makes us very unique.

[00:57:06] We are a private, non-profit shelter. We have 40 amazing acres down in Aldi. Our claim to fame now is we're right behind Lark Brewery. And within that property, we have a campus with average around 65 dogs, about 20 cats on property at any time.

[00:57:27] We are very unique in just the fact the property that we have. We have beautiful walking trails for our volunteers, for potential adopters to spend time with the animals. Our communal catteries, the cats are not in cages, they're in communal living and have couches and lofts to hang out in.

[00:57:46] We also have wonderful programs where we really step up and help animals that are in the most need. We have programs to help heartworm positive dogs, senior dogs. We have a senior care plan where any dog eight years and older, we waive adoption fees and provide \$1,500 towards medical expenses for the adoption.

[00:58:08] We help FIV-positive cats and senior cats as well. So we've got a whole breadth of breeds and sizes and ages. I have to ask you a question. It's not on your list. Of course. And sorry about this. I'm going to throw you a curveball.

[00:58:24] Well, if cats are living out, and you might know this too, if cats are living outside and they have not been in a home, don't they become feral? They could have been lost along the way, so they're not necessarily, they don't necessarily become feral.

[00:58:41] And it depends on how many, if their parents were feral, how feral they are. Oh, can they be rehomed if they're feral? I didn't know that. Yeah, they can, especially if you can get them young enough. You want them young enough, and we can rehabilitate them.

[00:58:57] All right, I'm going to go back to my list now. Of course, yes. Tell me what opportunities, especially volunteer opportunities, you have for kids or for teens at the FOHA shelter. So a lot of our

volunteers start either as dog walkers or cat snugglers. Cat snuggling is available for kids 10 and up with their parents to come and hang with the cats and read to them and play with them.

[00:59:21] Once they're 16, they can come by themselves. And then dog walking, you have to be 13 to come with a parent. And then once you're 18, you can walk on your own. And then we also have monthly enrichment-making events where we make the Kongs and the toys and the busy boxes for our animals to keep them occupied while they're in their kennel spaces.

[00:59:43] And then we also have a thrift store down in Chantilly called the Treasure Hound. Treasure Hounds? The Treasure Hound, yes. It's an amazing thrift store that helps fund the operations, and teams can be there with their parents.

[00:59:59] That's wonderful. Yeah. So if somebody wants to help out, how do people find you, and how can they help? Yep. Best place to go, as always, is the website, FOHA.org. We have all kinds of information out there, and especially our animals. Check out the dogs and cats that we have available.

[01:00:17] We definitely want to get them into homes and make happy families. And you guys are technically what's called a no-kill shelter, right? We are, yes. Okay, all right. Yes, we are, absolutely. Well, you know what? I don't allow too much clapping in this room all the time, but this, what you're doing, is amazing.

[01:00:33] It sounds lovely and wonderful and hard. Yes, you're welcome. It does. Please come visit whenever. We'd love to have you. I'll go with Mr. Crony. Yes. She will bring another one home. She will bring another one home. Thank you so much. I appreciate it.

[01:00:50] Mr. Hemstreet, do you have any comments tonight? Thank you, Madam Chair. I have four comments for today. The first is that members of the community are encouraged to participate in the county's Invasive Plant Species Knowledge Survey, which will be online through November 27th.

[01:01:07] The survey is part of the county's continuing efforts to assist landowners with removing and preventing invasive plants. Results of the survey will help shape future outreach efforts through the Invasive Plant Species Management Program. Details on the link to the survey online at loudon.gov/invasiveplans.

[01:01:25] Second, Loudon Transit is seeking comments on its Title VI program, which includes policies and procedures that help ensure bus service is available to everyone, regardless of race, color, national origin, or English language proficiency. Members of the public are invited to review the draft 2026 Title VI program and submit a comment at loudon.gov/transitequity.

[01:01:48] deadline to submit comments is October 14th. Third, I'm pleased to announce that the county's fiscal year 2025 popular annual financial report has received national recognition. The report has received the Outstanding Achievement Award in popular annual financial reporting from the Government Finance Officers Association. To receive the award, the report must meet high standards of creativity, presentation, understandability, and reader appeal. More information about the report and the award can be found at [loudon.gov slash awards](https://loudon.gov/slash/awards).

[01:02:18] And then finally, the Department of Economic Development is gearing up for one of the county's most popular events, the 2026 Loudoun Farm Tour, which is taking place Saturday and Sunday, October 17th and 18th, 10 a.m. to 4 p.m. both days.

[01:02:34] There are nearly three dozen stops on the self-guided free tour this year, showcasing the diversity of the county's agricultural producers. More information about the tour is online at loudounfarmtour.com. Those are my comments for today, Madam Chair. Thank you, Mr. Hamstreet. Okay, we're going to do a couple of information items, and we're going to hold information item A until after we do public comments because there are so many people who want to speak on information item A.

[01:03:11] Normally, information items don't have a motion on them, and so we will go on and do it, But since we know that there could be, probably will be, a motion on information item 10A and there's so many speakers, we're going to hold that until later to give everyone a chance to offer their comments and then we'll go back to that information item.

[01:03:34] But right now we're going to do information items 10B and 10C, which is a board member initiative response to the board member initiative for the microgrid white paper and a response to board member initiatives for the strategic transmission lines.

[01:03:53] So good evening, everybody.

[01:04:14] So there's 23 slides on this, which means you all did a phenomenal job, and we appreciate it very much.

[01:04:33] You dug into it. Having said that, we don't need 23 slides on this. And so can you give us kind of just a high level of things that you think we should know? Mr. Turner, I was, I had placed this on the cassette agenda. Mr. Turner had it go off, then come on, then go off, and then come on, so now it's off. But I think it's more for you to ask questions. Is that true, Mr. Turner? That's correct, ma'am. So maybe, maybe, do you need the presentation at all? I don't need the presentation. Do you need it, Mr. Crony? I actually read the presentation. Okay, so how about we just go to Mr., to questions. Mr. Turner, since it was, was your,

[01:05:11] I don't know. How about you go to questions first? Sure. This excellent report. It defines all the aspects of a microgrid, which was the intent. So I really do appreciate the work on that. The reason I was going to defer it and then pulled it off deferral, I had a great meeting with county staff midday, and they answered all the questions that I had. My concern was that this was descriptive. It was informative, but didn't really lead us into taking any action around microgrids in the future, and what staff assured me is when we see the first draft of the phase two of the

[01:05:46] ZOAM for data centers, we'll have an opportunity to weigh in, begin to add in some more meat on the bone, if you will, and create some actions around various microgrid elements that I would like to see in phase two. So we'll have the opportunity to do that. I was going to defer it and then introduce a BMI, and as staff pointed out, that would delay the phase two ZOAM process, and I didn't want to do that. I do have one question now, scanning the table of contents, and I may have missed it. Is there nothing in the microgrid white paper about small modular nuclear reactors?

[01:06:21] There is something in here. There was something. We briefly touch on it as something that is coming in the future, and we don't treat it as a distributed energy resource that exists today, but we did do research, and there's an example of a project right now in the U.K., for example, that is using or has plans to use that sometime in 2030 for a data center application.

[01:06:45] And then there's some research on, you know, some of those projects within the states where, you know, they're planned in the next, you know, again, early 2030. Just briefly an update in just my own

personal research. The small modular reactors, there's about 50 different variations.

[01:07:05] Most of them are sodium-fast reactors. That is different than a light-water reactor. You can pull the rods out of the coolant. It shuts itself down, and there's no emergency planning zone around a sodium-fast reactor like there is a light-water reactor. I talked with a representative from Idaho National Labs.

[01:07:22] The head of nuclear reactors actually lives in Ashburn for Idaho National Labs. He said that five of the models went critical about a month ago. That's a terrible term for the industry. It sounds awful. What it means is they achieved their sustainable power and could operate indefinitely at their max power level.

[01:07:41] About five weeks ago, that's a huge milestone. He said that they are two years out from licensing and four years out from operational status. Just a heads up, the Allison Air Force Base already has a contract for one of them. I suspect they will go on federal property first.

[01:07:58] Dulles Airport is federal property, and it's right next to Data Center Alley. So this is probably going to become some kind of a reality sooner probably rather than later. Thank you very much. Thank you, Ms. Bricksman. Thank you, Chair Randall. So thank you for this.

[01:08:15] It was very informative. I got through most of it this morning. I have a question about the structure of Kimley Horn. Do you have different practices in that the practice that does this is different than the practice that would represent a client in a land use case?

[01:08:37] Yes. Specifically, I'm part of our energy team and utilities team, so I work on all types of utility-type projects. Okay. There are different groups. We have what we call development services that does land development-type work, which is kind of a separate group.

[01:08:53] Yeah, it's unusual, I think, in my experience, that Kim Lee Horn would represent a client in a land use case, but that's happening in my district right now, and it happens to pertain to a very large data center proposal. So I just wanted to make sure there's kind of a wall between those practices.

[01:09:08] Thank you. Loudoun is a non-attainment area, so why would we even consider behind-the-grid power that would produce more pollution? Like why, maybe you didn't opine on that, but I just wonder why we would even consider something that would produce more pollution as IE vantage two.

[01:09:31] Yeah, I think what's the, obviously with the grid constraints, the trend is going towards more on-site generation. And when we talk about on-site generation, that doesn't necessarily mean it's a microgrid where a microgrid is kind of beneficial, is that you could produce on-site power, and in some cases, like a fuel cell, for example, is one type of technology where it doesn't use combustion, and so they don't produce nitrous oxides.

[01:10:04] And so where ozone, that's a precursor for ozone. So there's... Are hydrogen fuel cells safe? In terms of air emissions, it is a lower significantly, certainly for NOx.

[01:10:19] And then carbon monoxide and dioxide. I found a revealing assessment that you made on page 13 where it says grid constraints and utility power service delays have become issues in the data center growth area such as Loudoun County. To address the grid constraints, Dominion has since proposed projects such as the Loudoun Reliability Loop in the vicinity of the data center clusters.

[01:10:42] So again, I question whether that loop is really a reliability loop or a loop that is in response to the growth in data centers. I don't need you to opine on that. I just wanted to make that point, and I

appreciate that you made that point. I'm almost out of time, but I look forward to discussing this during Phase 2 after reading this paper.

[01:11:02] I'm unlikely to support any type of permitting for behind-the-grid power for data centers in Loudoun County, but we'll have that discussion during the Phase 2. Thank you. Mr. Crony? Thank you, Chair Randall, And thank you for this wonderful report.

[01:11:21] Lee, I thought it was interesting that Williams Company Pipeline, okay, when is that? I guess it's coming in 2030. Do you have the routing? Do you know where it's going to be routed? Yeah, so we only look briefly at this because one of the things we found, obviously, in our research is that a lot of these technologies require natural gas.

[01:11:41] So I guess the big question becomes is what is the constraints with the existing gas system? And so we did a little bit of research of what existing lines there are from a natural gas transmission interstate pipeline standpoint. And so there are pipelines that exist through Loudoun County that go through different data center, you know, locations.

[01:12:02] And then there is this project where Williams is proposing another gas pipeline, which is 950 million cubic feet per day. And so, I mean, that would, depending on what technology you use for generating power from it. I mean, if you're using something that's 35% efficient or 60%, you're looking at.

[01:12:21] Is that a Greenfield pipeline? Is that a Greenfield pipeline? When I read about it, it described it as within and existing right away. So if they kind of similar to like what Dominion is proposing on the HVDC line, that's how I understand, that's how I read it, but I haven't seen any routing. And usually that goes to FERC, that goes to the Federal Energy Regulatory Commission.

[01:12:40] They usually have these filings for natural gas pipelines, which they're ultimately the siting authority for that. And do we get to comment on them? There is public comments. They have to issue what's called these different resource reports, so they look at all the different impacts. And so there is always a forum through FERC for natural gas pipelines where you could put in public comment.

[01:13:02] Yeah, because I would like to know when that is so we could comment. All of these microgrid sources of power, do they require turbines? So my understanding is that, like, fuel cells, you know, any SMRs, they all require turbines.

[01:13:20] Is that true? So I guess fuel cells don't. So fuel cells are, there's really, no, it's electrochemical. So there's a process where you feed the fuel through it and then oxygen, and it produces energy, heat, and water.

[01:13:37] And so in that case, they don't. But a lot of these other, you know, a lot of these other distributed energy resources are, they do produce. Require a turbine. So that needs to be taken into account when we're looking, Dan, when we're looking at phase two, that these do require, they're not standalone.

[01:13:57] They do require turbines, which are noisy behind the meter. So we need to understand the whole picture of what they require to get power to the data center. Yeah, and the point, like, if we presented, is that there are different technologies that have different applications.

[01:14:14] So fuel cells are better. They take a long time to start up, for example. So if they're cold, they take half a day to day to start. So if you're trying to respond to a, you know, peak, you know, period of

usage, they're not good. They don't turn on. They're good for continuous power.

[01:14:31] So they run, you know, so they could take off, you know, if you ran a fuel cell, for example, say it's 100 megawatt site. and you ran fuel cells for 50 megawatts, you're taking 50 megawatts off of what would need to be electric transmission lines, and then PJM would have to carry for in their capacity market where they need to make sure that they're providing that power during peak time. So, fuel cells are like that, and then there's, like, the turbines are faster starting. So, they're better in situations where there is a demand response. Let's say there's, you know, a peak, and you want to

[01:15:08] operate quickly, then you could use a turbine. And then there's battery storage, right? You could store batteries when there's times where it's cheaper, and then they could store it. And then at high usage, when it's more expensive, they could use it. So the combination of these technologies, if they're used properly, they could have reliability benefits.

[01:15:31] Okay. Thank you. Ms. Umstow? Thank you, Madam Chair. So on fuel cells, to come back to that. Supervisor Glass and I were fortunate enough to get to visit a data center that is hoping to use fuel cells, and we then visited a facility where they are up and running.

[01:15:53] And the problem, according to the experts that we were talking to, is they require natural gas, and Loudoun County, they, in their consideration, does not have enough natural gas coming through the county.

[01:16:11] So fuel cells are not going to be a widespread solution, is my understanding. They could work for maybe a couple data centers, maybe a handful, but they aren't going to solve our issues here.

[01:16:28] Could you address that? Yeah, and I think that's where maybe digging more into the natural gas. So obviously there's transmission companies, midstream companies like Williams that propose, you know, interstate gas pipelines, high pressure. And then there's local distribution companies that are at a local level that provide gas.

[01:16:49] And I think Washington Gas here is maybe one of them. And so I think having conversations with them, because if that, for example, if that Williams project were to come in and they were to serve the utility largely, but also from what I read, they were, you know, talking to data centers about, you know, being a shipper or delivering to their site.

[01:17:09] So that amount of gas of what was being proposed, I don't know where it's all going, but that would equivalently, you know, again, that would be anywhere from four gigawatts to eight gigawatts. So if you have a hundred megawatt facility, that's only 2% of what that gas pipeline could deliver.

[01:17:26] So, a big question I had when I was looking at this was exactly what you're saying is what is, and I think there's more discussions with the local distribution company and some of these midstream companies about what is being proposed and maybe, you know, monitoring the FERC.

[01:17:42] I think there's a 7C application for transmission lines staying informed on what's happening there. And they need to show a need, right? They can't just build a pipeline. And the need is generally based on contracted shippers. So if they have 80%, that shows a pretty good need.

[01:17:59] If they have 90%, it shows a good need. If they have, like, 10%, it's not that they're going to have a hard time proving that they have a need for that pipeline. But pipelines get proposed all the time, and they don't always get built. So I'll leave it with that as well. Thank you.

[01:18:16] Mr. Kirshner. Thank you, Madam Chair, and thank you, staff. I really appreciate the direction we're going in here in terms of the discussion. A lot of great work. I haven't been able to digest it all yet because there's a lot in there, but I have started down the path of doing it. I was a little surprised to hear Supervisor Brisbane say she may not support this in the future when we get to.

[01:18:34] I mean, this is really, in a lot of ways, the answers we've been looking for, a lot of the complaints the community has been making. I mean, we're dealing with issues of generation. We're dealing with issues of transmission. And really, I think the most complaints, of course, are local impacts with power lines. we're dealing with that with Valley North right now coming right through the, you know, the core of the Napa Valley of the East or of the, yeah, Napa Valley of the East in western Loudoun.

[01:18:59] And this kind of microgrid solution could obviously have huge impacts with those long distance transmission lines. So the one question I kind of have based upon my short review of the white paper is kind of what specific regulatory or policy changes do you think Loudoun County needs to make and to meaningfully actually encourage microgrids?

[01:19:20] And which of those changes are actually Lywood-Lowden County versus the Commonwealth, Dominion, PGM? So basically, how much power do we have or are we really just kind of getting the conversation going so that we can expand out from here? Yeah, I think a lot of that is really what technologies are planned.

[01:19:39] So a microgrid is, there's a brains to a microgrid and there's computers on site that operate it. But all these different technologies obviously have produced different, you know, and Naomi can speak better than I can, you know, air permitting requirements and then noise impacts and visual impacts.

[01:19:58] And so she's part of our environmental team and she's, you know, she understands the noise aspects. So I think it's really more around, you know, you're not just getting grid power and you just have diesel emergency diesel generators. You have a facility now that is somewhat more industrial looking.

[01:20:18] And so how you properly screen that, how you, you know, properly make sure the noise impacts. And I'll be the first to say I'm not 100% familiar with all of the local zoning requirements. And so I don't know if you want to maybe touch on some things. Sure.

[01:20:36] Yeah, so a lot of the air permits are done at, you know, the state level. So that's the Clean Air Act that is delegating the power through the EPA to the DEQ. And so a lot of the air emissions are done at that level, and there's a lot of regulation and monitoring and inspection for that.

[01:20:55] Noise is typically done at the local level, and so a lot of the sighting and the modeling and, you know, vibration analysis that you can request from, you know, the applicants to have done to help with the sighting and the location of them is what we typically see. Mr. Sainz, do you have anything?

[01:21:16] No, ma'am. Wonderful. All right. Thank you so much. I appreciate you all. Thank you. We're going to go into the next item. The next information item is the response to the board member initiative to strategic transmission line routing for the Algonquian district.

[01:21:33] I think, Dan, you're staying, and the staff will be joining you at the table. It is item 10C. Ms. Brixman, or anybody else, would you like to have this item presented?

[01:21:57] Yes. Thank you, Chairman. All right. We'll take the item. Seven slides. Okay. Good afternoon, Chair Randall, members of the board. Good afternoon. I am Teresa Miller, Zoning Administrator. With me,

of course, Dan Galindo, Director of Planning and Zoning. Today, we're presenting to you the response to the business meeting information item requested by the board at their April 7th business meeting relating to transmission line routing for the Alconquian District, focused on the George

[01:22:25] washington university campus now owned by amazon data services inc at the end instead of the beginning sorry about that i seem to be at the end instead of the beginning board direction for this item included research of the development potential of allowable uses floor area ratio

[01:23:03] building height limitations and setbacks as well as an evaluation of the potential transmission routes and an estimate of the utility substations needed to support the development potential There are 10 individual parcels of various size that make up the properties within the George Washington University campus, recently acquired by Amazon.

[01:23:26] The parcels are zoned Plan Development Research Development Park, or PDRDP. They're subject to the regulations of the 1972 zoning ordinance due to their location within the Route 28 taxing district. The parcels are subject to several zoning concept plan amendment applications, their related concept development plans and proffer statements. Allowable uses include those listed here on the screen, such as office, educational institutions, research and development activities, restaurants, light manufacturing, personal services, recreational uses, just to name a few.

[01:24:04] The development potential of the property is estimated at 2.4 million square feet based on the current entitlements. The floor area ratio of those 10 parcels is based upon their related concept development plan and those floor area ratios range from 0.4 to 1.19. Setbacks, buffers, and allowable building heights are subject to the applicable concept plans as well as the PDRDP district regulations. Specific setbacks include a 300-foot building setback and 100-foot landscape

[01:24:43] buffer adjacent to Route 7, which is located along the bottom of this map. A 50-foot building setback along George Washington Boulevard and Riverside Parkway. Both of these roads are located internal to the development. The maximum building height within the PDRDP district is 85 feet. However, as identified on this map in the light pink hatched areas, some portions of the property have a 60-foot minimum building height limitation. The 10 parcels are identified 1 through 10 on this

[01:25:20] displayed map. The colors indicate the applicable zoning concept plan amendment application, and this map also identifies the location of approved but not yet existing high-voltage power lines located across from the property on the south side of Route 7, opposite of the development. Regarding the use of the property as a data center, pursuant to a July 30, 2026 zoning administrator advisory opinion, data center is not a permitted principal use within the 1972 zoning ordinance and therefore not a permitted use of the property. Data processing services are

[01:26:00] listed only as accessory or subordinate components of other permitted principal uses within the PDRDP Zoning District. With the approval of rezoning application ZMAP 8943 on July 3, 1990, a commitment was made within Proffer 2 for the donation of approximately 50.3 acres of land to be conveyed to George Washington University. Proffer 2D required the recordation of a restrictive covenant indeed to run with the conveyed land. The purpose of the restrictions was to ensure the use of the

[01:26:36] property by a university or other institute of higher learning. Any change to such restrictive covenant would be subject to approval and consent of the board. A site plan proposing approximately 805,000 square feet of data center and future parking structures was submitted to the county on August

5th, but was rejected due to deficiencies. A revised application was submitted and accepted by the Department of Building and Development for review on September 23rd. The Department of planning and zoning will conduct a review of the site plan materials and determine compliance of

[01:27:13] the plan with applicable proffers and zoning ordinance regulations. At the proposed 805,000 square feet, water usage of a water-cooled data center could be as high as 724,000 to 885,000 gallons a day, with a power usage of 217 megawatts. These estimates of demand could be less depending on the types of technology used. The required power could be drawn from the high voltage transmission lines that I previously mentioned located south of Route 7 that have

[01:27:49] been approved by the SCC but not yet built. The two most likely options for connecting power to the site are shown on the displayed map. The connection furthest to the east coming across Route 7 to the site and the connection to the west is shown connecting through a Dominion-owned parcel which is highlighted in blue located approximately one half mile away from the property. The initial site plan does not include a substation or other electrical infrastructure

[01:28:19] but it does identify approximately 84 diesel generators for backup power. First submission site plan comments will be provided to the applicant at the end of the month. We would also like to note that the zoning of this parcel would be impacted with the approval of the pending zoning ordinance amendments and associated zoning map amendments related to the dissolution of the 1972 zoning ordinance. These amendments are scheduled for the October 27th Planning Commission public hearing, and we would be happy to answer any questions that the board may have on this item. Thank you so much. Ms. Brickspin, this is your district. I'll

[01:28:58] go to you first. Thank you, Chair Randall. Along the lines of what you just said about the, um, 1972, um, that's kind of related to retiring the Route 28 tax district. So retiring the Route 28 tax district would impact these properties, but all properties within the Route 28 tax district would then be brought into the 2023 zoning ordinance, um, per the ROYA that we are doing, correct? Correct. Okay. Um, could you go to slide five, please? Um, understanding that

[01:29:33] staff is still analyzing the proffers. Um, and you mentioned, you mentioned that there are restrictive covenants that this should be used for higher education. Um, and that was one of the things that the gift was, um, made for, for higher education, correct? Correct. And the original gift, the 50.3 acres, um, is on this map within the areas of the parcels located, identified as 1, 2, and I believe, what's this? It was 1, 2, and 4. 1, 2, and 4. Yeah, it was an odd number you said. Yeah. Okay. So the restrictive covenants might at least apply to those. I'm

[01:30:13] sorry, 1, 3, and 4. 1, 3, and 4. 1, 3, and 4. These three. Okay. That's, that's, okay, that's good to hear. The different colors on the map indicate the different ZMAPs and ZCPAs that came after the original zoning. Correct, correct.

[01:30:29] And then, just to be clear, the -- any substations in the 1972 -- that would be in -- governed by the 1972 zoning ordinance, any substation would require a special exception, correct? Yes, public utilities are a special exception use in the zoning district.

[01:30:46] And also moving forward in the '23, I believe? Correct. Okay, great. And then, just to be clear, it was -- I found it interesting that -- I meant to ask you guys to include that site plan or the rendering of it that you used at the town hall.

[01:31:04] But there's a large substation proposed here for number eight. And then three pretty large ones here proposed for the third parcel. Do you know if there's any reason why those particular parcels would have been targeted?

[01:31:21] I'm sorry, you said substations or did you mean the data centers? I'm sorry, data centers. Yeah, the data center buildings here. And then they have three of them here. So the property, if you would allow me, I think I have the map open. And there are some steep slopes on the property.

[01:31:44] And so it could just be an issue of the development potential based on the land. The steep slope. And that's kind of the same with that building in number two, I believe, where the NTSB building is. Stephanie, is there a way for me to share the map?

[01:31:59] How do I do that? Stop. Okay. There we go.

[01:32:19] So the properties you can see here, the yellows and reds are the steep slopes, so it's likely just the constraints of the property. Oh, I see. Okay. All right. I am out of time, but I really appreciate this. Thank you very much.

[01:32:35] Mr. Turner? Thank you, Madam Chair. I'm really confused here. My understanding of the ZRTD, the Route 28 tax district, was that if you choose, because you have paid a separate tax rate for the ZRTD, you can build permitted uses within your parcel without any sort of legislative approval, or what are the rules?

[01:32:59] Because we said, you started off by saying, on this piece of land, data centers are not permitted, and then we accepted an application for a data center in September of this year. So I'm scratching my head going, well, if data centers aren't permitted, that means they're submitting a zoning ordinance amendment?

[01:33:15] Doesn't that, how does that work within the ZRG framework? So the Department of Building and Development is the one that reviews and accepts applications. They don't regulate the zoning ordinance or make comments. They won't refuse or deny an application submittal. What will happen is zoning administration will get the site plan and the comment will be made reflective of the advisory opinion and then submitted back to the applicant.

[01:33:37] That a data center is not permitted on this parcel? Correct. Okay. So what have they accomplished with the extra taxes through the ZRTD? We have multiple data centers that have been built all through the ZRTD since I've been a supervisor.

[01:33:52] Yeah, the ZRTD is an application process where somebody can waive the rights of the Route 28 tax district and become under the ordinance that's in effect at that time. So a lot of your ZRTDs that you previously saw were properties that were under the 72 ordinance that elected to become under the revised 93 zoning ordinance where data center was a permitted use at the time.

[01:34:18] Now, if somebody comes in for a ZRTD, they would come under the 2023 zoning ordinance, the current ordinance, and data center is a special exception use in all zoning districts. So if a data center is the accepted plan, the site plan in September of this year, Any way you cut it, they've got to come to the board for permission to build a data center.

[01:34:39] If it's a ZRTD, they've got to update to the current zoning ordinance, which requires a special exception, or the ZRTD runs out, in which case the update to the current ordinance and a special

exception is required. Any way you look at it, Amazon's going to have to come to us for permission to build a data center on that site.

[01:34:55] Based on the advisory opinion that I issued on July 30th, yes, that is correct. Okay, thank you. Would they have to come to us for permission for a data center for Group 2 and 1, or just Group 1? It would be on the parcels within Group 1, identified as 1, 3, and 4.

[01:35:14] Those are the original gift that have the restrictive covenants that limit it to certain uses. So then on not 1, 2, and 3, and 4? Did you say 1, 3, and 4? 1, 3, and 4 are the original gift. They have the restrictions on the uses. So on those, they'd have to come to us for, no matter what, for a, for, to get a data center.

[01:35:35] But on the other ones, they would not. They'll have to come to you for all of them. So all of them are under the 1972 ordinance, all 10 of them. The July 30th advisory opinion stated that data center is not a permitted use in the 72 ordinance.

[01:35:51] That applies to all 10 of them. So there's no way here that they can build a data center anyway. Based on the July 30th advisory opinion, that is correct. The extra layer that they have for properties one, three, and four is that they're a part of the original gift to GW, and there is a restrictive covenant that was required per the proffer that restricts the uses to education, higher educational uses.

[01:36:17] They would have to remove that restrictive covenant, regardless of what zoning ordinance they're under, to remove that commitment. So I'm still a little confused. so if they did that, could they build data centers? Not under the 72 zoning ordinance in conjunction with the advisory. Some of them are confused why we're having all these discussions about this piece of property at all, if they just can't build data centers anyway. They've submitted an application, and this is part of the comments that we will make back to the applicant. They're not allowed to have data centers here no matter what? Correct, based on the advisory opinion. Based on advisory opinion. The other thing is, Ms. Bixner, have you talked to Amazon at all about this? Have

[01:36:56] Have we had any, like, discussions with them about what they could do, couldn't do, what we might want from them? Have we tried to have a sit-down? I mean, sometimes every once in a while a sit-down could help. Has that been an effort? I have had conversations with them, yes.

[01:37:13] Well, I mean, not like, hi, how's it going, but you've actually sat down with them and had conversations with them? They've been on the phone so far with their government relations. Whether they're on the phone or not, you've had substantive conversations. No, because they did not indicate that they were willing to not build data centers.

[01:37:32] They asked me if they could compensate somehow and still build the data centers, and I said no. Ms. Bricksman, thank you for asking my question. I'll call them back. So at this point, they can't build data centers, according to your determination, no matter what, unless they came to us first.

[01:37:50] They would have to come to the board. They would not be permitted to build data center under the 1972 ordinance in accordance with the advisory opinion. So they would have to come to the board for a rezoning and a zoning concept plan amendment to remove the proffers and the restrictive part of the packet.

[01:38:12] There's a table, I believe, that shows that. Mr. I'm looking at your face and you look. Are you Mr. Rogers? Nothing here. Everything here you agree with? We'll say that the advisory opinion definitely would require them to come to the board under the 1972 ordinance.

[01:38:31] And right now there's a Roya out there that would change that zoning with December 5th being the last date of the tax district. So it would be very difficult for Amazon to do it. Okay. Thank you. And I'm sorry, Mr. Sainz, did you have any comments?

[01:38:49] Yeah, thank you, Madam Chair. Staff mentioned about a power line route. Are you mentioning the Aspen route, or are you mentioning a different route? Yes, it is the Aspen route. Okay.

[01:39:05] All right. Yeah, I just wanted to make, but that's kind of far from this location. So staff feels that that route, those lines would come this far down to this area? The Aspen to Golden Line is right on the opposite side of Route 7 from the property.

[01:39:26] Okay. I mean, I always thought it was not gonna go this far down, but okay, all right, that's all my questions, thank you. - Okay, thank you very much, we appreciate you. All right, so we have some time before we would need to do, like, go into closed session and do anything else.

[01:39:51] I'm gonna actually try to get an action item or two done that I do not see that has any issue with it. we may actually end up in closed session anyway, but how about we go in and do 14I right now? It's the BMI for the Waterline Extension Project, because I'm just trying to get some of these things off our agenda before we go into closed session.

[01:40:17] We'll go into closed session and then come back out, do resolutions, board comments, I'm sorry, resolution, comments, public comments, and then do 10A. So the item 14I is mine.

[01:40:36] It's a BMI. It's a pretty easy BMI. So I'm just going to go into the draft motion, and then we can discuss it in the motion. I'm with the Board of Supervisors, approve the board member initiative to direct staff to research and identify appropriate funding sources to include state and federal grants to reduce the financial burden for Broadwind Farms residents as a result of the Broad Run Farms Waterline Extension Project and to return to a future board business meeting to provide an update.

[01:41:04] Motion's made, and I will let Ms. Bricksman second that because it is her district. So a little over a month ago, we had a meeting that was held by Loud and Water that I attended, Ms. Bricksman attended, and we talked about the connection for Broad Run Farms that are outside of the area that's impacted by the, well, that was most impacted by the Superfund site so that they can have connection to Loudon Water.

[01:41:34] So as I'm sitting there, and Loudon Water is presenting and talking about how much the connections would cost. It started at the very least at about \$8,000 and then went steadily up from there for a lot of those things. The older your house is, the older your piping is, and so the more it would cost.

[01:41:54] In the end, when they threw everything in there, the price was somewhere between \$10,000 to \$30,000 to get connected to Loudoun Water. Broadland Farms is an older community. Some of those houses were built in the 1950s.

[01:42:13] Most people in Loudoun County, if they had to connect to water right now for \$15,000 up, could not do it. And it is almost completely impossible for even one house to connect to water sources.

[01:42:28] I know because I'm really involved in the National Association of Counties that there are grants and scholarships and possibilities out there for counties to have. We've done one of those before. with NACO for something else, but I pretend I did something else.

[01:42:47] But I'd like to staff, and I have talked to Mr. Govan just to make sure this was not an issue for them. I just have to just go research. We have a grant writer on staff for a reason to find out if there is any possible way we can help either cover or offset some of these costs.

[01:43:06] The economy right now is tough anyway, but even if the economy wasn't tough, \$15,000. Most people don't have that sitting in the bank, let alone \$30,000 to connect to water. And so they don't have to connect. No one has to connect. They can stay on the wells that they're on now, but many want to. And if they even want to have the opportunity, I'd like to try to see if we can find ways to defray any of these costs. And so it's a pretty easy item. And so that's it.

[01:43:39] Discussion on the item? Ms. Brixman? Thank you. I'm not sure if I heard correctly. I think that you said these were the most impacted homes. These are not the most impacted. I did not say that. These are not the most impacted homes. These are not the most impacted properties.

[01:43:56] These are the properties outside of the actual plume. I actually said that. Great. And thanks to my predecessor, actually, who brought an initiative to have the county fund an extension from the EPA water lines to just the homes just outside the plume.

[01:44:13] This now gives an opportunity for those homes to hook up to a water line that's coming to their driveway. This community has had quite a journey. This was an illegal landfill that was finally declared a Superfund site. I believe it's the only Superfund site in the county.

[01:44:30] I've been attending meetings with the community on this since actually before I was elected. and took office in 2020, the Superfund site was cleaned up and accelerated by actually the bipartisan infrastructure bill. So I was joined by Congresswoman Wexton at the time to celebrate that. We had also several community meetings explaining how the EPA was cleaning up the Superfund site, because the community, after their water basically being poisoned, were very distrustful of the government and so it took a lot of explaining, answering a lot of

[01:45:07] questions to get through and now I think that they're fairly solid in that they feel like at least the water within the plume area is clean and not poisoning them or their family members. I have worked a lot with the landowners of this property who wanted the county to outright buy it.

[01:45:27] They asked me that as I was running for office, and I was like, I don't think so, but so I've rejected two housing projects on this property because I don't think anyone really wants to live near a Superfund site, and I finally did work with the owner to sell about 100 acres of the northern part of the site to the county, and now we have just the cap that's left for us to deal with. I have a pending meeting with the EPA on what we could do on the cap. There's not a lot you can do on a cap of a Superfund site. It could take solar, it could take cell towers, or those

[01:46:06] sorts of things. This is, this is a good BMI. I would have perhaps co-sponsored this BMI if I had been given the professional courtesy to actually read the draft of the BMI before it came on the agenda. I was not given that courtesy, so I'm happy just as well to second the motion and support the initiative. I look forward to the results. Thank you. Just to be clear, Ms. Bixman, I asked you two times that you'd like to

co-sponsor the BMI. It came out on Thursday. It's been out in the package. If you had called me any time between now and then, I'd have been happy to add your name.

[01:46:41] I'm happy to add your name now. It's the right thing to do for the community, and that's all I really care about doing. In fact, I've talked to the community about this at some length. I've said that they've had it. I've sent it to them. I've talked to them multiple times. I don't think the timer's running, Madam Chair. Point of order. I don't think the timer's running. I've checked back to see what they would like to have done, if anything different. They don't actually have an HOA because they're an older community, so they have a citizens association. And so I've been talking to the head of the citizen association for the past two weeks. The last conversation we had with them was just this morning, just to make sure that everything

[01:47:20] that they thought that they wanted or needed was there. Ms. Brixman, if you'd like to have your name added to this BMI, I am more than willing to do that. That is not an issue for me at all. I just simply want to make sure that these people can be connected to water. And as I said, \$15,000 to \$30,000, I couldn't do that. Most people couldn't do that. And And so \$15,000, \$30,000 is a whole lot of money.

[01:47:44] So I just want to make sure that we can defray or, if possible, completely offset this cost. And there are times that credit matters, and there are times that credit doesn't matter at all. It's just about getting people some healthy water to drink. So that's kind of where I am on this item. All right.

[01:48:00] I made the motion, seconded by Ms. Bricksman. All in favor, please say aye. Aye. Mr. Sainz? Aye. Any opposed? That motion will pass. 7, well, Ms. Glass, hey, I think a motion will pass 8-1.

[01:48:16] Ms. Glass, you good? You with us on an eye on that one? Okay. I think that motion will pass 8-1. Ms. Letourneau is not on the line yet. Thank you, everybody. How about we go on and read into the closed session because we can get that one done.

[01:48:34] Mr. Turner, it's the closed session that was already on our agenda. Let's go on and read into that closed session, and then we will come back out in the days and do all the other things. I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Sections 2.2, 37, 11, A5, and A6 of the Code of Virginia to discuss expansion of an existing business in the Leesburg District where no previous announcement was made and the investment of public funds in a facility in the Leesburg District where competition and bargaining are involved to retain an existing business.

[01:49:07] Second discussion on the item. Mr. Sainz, are you joining us in closed session for this item? Yes, I believe I am. For this item you are. So for all the closed sessions, you'll be there? Yes.

[01:49:22] Okay. All right. Cool. Wonderful. All right. On paper, please say aye. Aye. Aye. Mr. Sainz is in aye. Okay. Any opposed? That is it. We are in closed session.

[01:49:36] No, we have you.

[02:16:58] Hey, we're back. Okay, everybody, we're back. Mr. Turner, would you please read us out of closed session? I move that the closed session be adjourned, that the Board of Supervisors reconvenes its public meeting, that the minutes of the public meeting should be reflected, no formal action was taken in the closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[02:17:26] Motion was made. Is there a second on the motion? Motion made and seconded by Ms. Glass. Discussion on the motion? All in favor, please say aye. Aye. Any opposed? Is Mr. Sains back? Mr. Sains, are you back?

[02:17:46] There he is. Yes, can you hear me? Yeah, you want to say aye? Aye. Okay. That motion will pass 8 to 1. Would everybody please certify? Ms. Bricksman left the room at 531, so when she certifies, she'll be certifying to what happened in the room up to 531.

[02:18:09] Would everyone please certify? Ms. Bricksman. I affirm. Affirm. Affirm. I affirm. Affirm. I affirm as well. Mr. Sains? Affirm. Wonderful, wonderful. Okay, we're going to do resolutions now. We have three.

[02:18:26] Mr. Kirsten, you're going to join me for one down front. Ms. Bricksman, you're going to join me for one down front. And Mr. Turner, you're going to join me for one down front. So how about we do, I think this is Madison first. How about we do the one for Madison?

[02:18:41] Mr. Kirsten, will you join me down front, please? She is here. She's one of the beautiful sash on.

[02:19:38] All right, so we have a resolution for Madison Blizzard, who is Miss Teen Virginia, which we are very proud of, and I'm going to read the resolution, and then you can say any words that you'd like to say, okay? All right. Whereas Loudoun County is home to talented and exceptional young people who will one day be the leaders of Loudoun County and the Commonwealth of Virginia, who is exemplified by Ms. Madison Blizzard's accomplishments, and whereas Madison Blizzard is a graduate of Whitbrook High School and is pursuing her bachelor's degree in national security and

[02:20:12] intelligence at Liberty University, and whereas Madison has modeled for nationally recognized fashion brands such as Rachel Allen and Giovanni, and is the creator of a girl dinner, a cook of Loudon encourages healthier and enjoyable meals choices for youth. I like that. And whereas Madison was crowned Miss Teen Virginia USA 2026 and would go on to represent Loudon and Virginia at the Miss Teen USA where she earned a top 10 placement. Now therefore be it resolved that the Loudon County Board of Supervisor commends Madison Blizzard on her accomplishments on being crowned

[02:20:51] Miss Team Virginia USA 2026. One thing I often say is the best part, the best part of this position is I could just spend a lot of time with young people.

[02:21:08] And I know that there's a lot of, like, hand-wringing of what's going to go on in the world. If you spend time with young people, all the hand-wringing stops because they are amazing, they are smart, they are caring, they are kind, they are funny. Generation Z and young millennials, I mean, they're just, I mean, in many ways I think past the greatest generation, They are one of the greatest generations we've had, and you do exemplify all that.

[02:21:32] So congratulations. Oh my goodness, wow, what an honor. Well, first off, thank you, Phyllis, for personally calling me and inviting me to this resolution. This is an incredible honor, and to the entire board of Loudoun County Supervisors, thank you.

[02:21:48] I like to refer to Loudoun as a greenhouse, a place that gave me tools and resources to grow. I went to the Academies of Loudoun in the culinary program that helped me tremendously create my cookbook Girl Dinner, where I plan to travel across Virginia sharing healthy recipes and habits for young kids.

[02:22:07] And just the local businesses and individuals that have poured into me along the way has just been so incredibly amazing. And I competed the first year, and I didn't even place. The second year, I didn't place. But the third year, I took home the crown.

[02:22:23] So I hope to be an example for the youth, saying just because one thing doesn't work out the first time, show the power of perseverance and keep going, reaching your goals. And I'm just incredibly grateful to be here. Thank you so much, Phyllis. 19.

[02:22:41] This is a 19-year-old today. That's just amazing. Congratulations. Well, after that, I feel like anything I say, I would just say, first of all, congratulations. We're very proud of you here in Loudoun County, especially in the Catoclin district.

[02:22:58] Now Woodgrove can basically say we have Miss Teen, Virginia, and the champion wrestling team in the state. So, you know, because those two are on par. And probably mom and dad probably deserve a lot of credit for your success, of course. I'm sure you would say that as well, because I know that any time you're doing pageants or sports or whatever it is, the work that mom and dad do.

[02:23:19] So congratulations to you, mom and dad. Congratulations to you. I'm very excited for you. And we wish you much success. And use this as a springboard as an opportunity in your life. Because, quite frankly, it'll be a big one at a very young age. All right. Well, then we're going to take a picture.

[02:23:40] And you guys are going to stand by your daughter. You're welcome. Thank you.

[02:24:12] Ms. Bixman, will you please join me down front?

[02:24:29] We're going to do a resolution for Reagan Bischoff. Reagan, you and your mom and dad, and I think your principal's here with you, And anybody else who wants to come down, come on down. It's so cool meeting you after talking to you so many times.

[02:24:53] I'm so proud of you. Congratulations. Is this the person who's been communicating with me? How are you doing? Congratulations. Hi, how are you doing? Good to see you again today. So let's change places.

[02:25:10] A couple of, I guess, I don't know how long ago, a while ago, I got an email. no a Facebook I am from Reagan's father and he told me and I'll read the resolution in just a second all the things she was doing and all that you know so I said to him can I have her phone number and I called and you and I have talked a couple times wait till you hear about the things that this young lady has done I'm so impressed you are so impressive and you brought your principal here with you today which is also very cool all right so we're commending raising Bischoff for the U.S. High School Patriot Games.

[02:25:48] Whereas, and is it Bischoff? Bischoff. Whereas Reagan Bischoff, a senior at Potomac Falls High School, a student athlete, a disability advocate, a content creator, and a community leader who has turned her personal experiences with cerebral palsy into a mission to help others overcome challenges and recognize their potential.

[02:26:10] And whereas Reagan is a dedicated lacrosse player who is committed to play lacrosse for Shenandoah University where she plans to pursue her doctorate in occupational therapy. And whereas Reagan created the Throw Lefty YouTube channel and the Throw Lefty podcast where she shares helpful hacks for people with disabilities and shares stories of resilience through interviews with Paralympic athletes and military veterans.

[02:26:38] And whereas Reagan was selected to represent the Commonwealth of Virginia at the U.S. High School Patriot Games where she experienced firsthand the power of true inclusion as the only athlete with a disability to be selected. Now, therefore, be it resolved that the Loudoun County Board of Supervisors commends Reagan Bischoff and her achievements in representing Loudoun and Virginia at the U.S. High School Patriot Games.

[02:27:07] After your father got a hold of me and then I got a hold of you, I went and did look at your YouTube channel and some of all the content that you've created. And the willingness to talk about your cerebral palsy and the willingness to talk about how pro-lefty and how nothing can stop you and you're just going to keep on and keep on and that it has not been an easy road for you all the time and you've had some issues with peers, but you've just kept going.

[02:27:41] You are incredibly tenacious and I am so proud that you are a member of our county and I'm so proud of you. So I'm going to give you this microphone now. Say what you have. Yeah, thank you again for inviting me. I really do. I'm honored to be here. And, you know, that's the best part.

[02:27:57] My mission hasn't stopped yet. I want to plan to continue to help others. And I'm honored. Thank you, Dr. Wolver, for coming out. She's the principal at my high school. And, you know, I'm very grateful to be in a county where they have given me so many awesome opportunities. And, yeah, thank you so much again.

[02:28:14] I'm honored. Well, congratulations. And you are another awesome product of our school system and our excellent school system. And you are a role model.

[02:28:31] You're a role model to the student body. You are a role model to our community. You're a role model to young and adults all around the community. And probably, I think, you're going to be a role model for more people moving forward just hearing what you've done so far.

[02:28:48] So congratulations to you. We are so incredibly proud of Reagan. And as I said outside, Reagan has so many more chapters to write.

[02:29:05] This is just the beginning. Her kindness, her compassion, her advocacy is just, I think, an example for everyone. And we are so incredibly proud to have her at Potomac Falls High School and can't wait to read the next chapters. Both times I, every time that I talked to you, you were like on the field.

[02:29:25] You were on the field, and you took time to talk, but you were on the field each time I talked to you. So you're pretty incredible. We're going to take a picture. I'll go this way.

[02:29:56] No, I think it's just. Oh, no. Shall we dance? Okay, ready? Three, two, one. Thank you.

[02:30:25] Bye-bye.

[02:30:56] All right, we have one more resolution. It's Fire Prevention Month, and Mr., yeah, the vice chair attorney is coming. Fire Prevention Month. Everybody come down for that. There you are.

[02:31:20] So we canceled this past weekend's going to homes to check fire. We canceled that for this weekend. It's rescheduled for when? Two weeks. I can get those. It's rescheduled two weeks from now? Okay, okay, but it did get canceled.

[02:31:35] I thought so. All right, but it didn't. Hey, how you doing? Good to see you. All right, it is Fire Prevention Month in, well, everywhere, but we're going to meet the resolution for Fire Prevention Month

in Loudoun County.

[02:31:51] Whereas fire is a serious public safety concern, both locally and nationally, and Loudoun County is committed to ensuring the safety of all. And whereas Loudoun County's first responders work to reduce the occurrence of home fires and fire injuries through fire prevention activities and life-saving education.

[02:32:10] And whereas lithium batteries power many electronics we use every day, and it is important to understand how to buy, charge, and recycle them safely. And whereas when purchasing items that use these batteries, ensure you only buy listed products that are tested and meet important safety standards and follow all the manufacturer's instructions.

[02:32:35] And whereas lithium batteries don't belong in the trash, oh, okay, and to ensure that you promptly recycle your lithium battery or device safely, visit [loudon.gov forward slash batteries](https://loudon.gov/batteries) to learn more, [loudon.gov forward slash batteries](https://loudon.gov/batteries).

[02:32:55] Now, therefore, be it resolved, the Loudoun County Board of Supervisors does hereby proclaim October 2026, its Fire Prevention Month in Loudoun County, and encourage the citizens to participate in various outreach events through Fire Prevention Month.

[02:33:13] So lithium batteries is a new thing that's creating lots of fires, is that correct? I would disagree that it's a new thing. It is something, unfortunately, due to the amount that we see of that type of technology with batteries is we're starting to see more issues with them.

[02:33:35] And the unfortunate part is that everybody that's sitting in here probably has a lithium ion battery in close proximity to them and yeah and cell phone plus maybe vehicles maybe other things but this year's proclamation is built on safe charging as you mentioned with it is through the fire marshal's office they've seen lots of examples where improper charging has led to fires and there's a a lot of information that's out there that's available through our website for folks to

[02:34:11] be able to go and access and look and see what's recommended for what's safe. So what I learned from you all is that safe charging never means lay your phone on the bed or anything cloth when you're charging. Is that correct? That's correct.

[02:34:26] Safe charging means after it's charged to unplug the charging device even if it's not charging, unplug the charging device. Any other quick things that you can say that people should know? Is that the two big ones? Cable, okay.

[02:34:47] Cableware. Make sure your cables are in good shape. You're charging cables. Yes, ma'am. You guys want to say anything? You're good? All right. We're going to take a picture.

[02:35:03] Oh, when are you going to go back out? So they were supposed to have the fire safety checks for your smoke alarms and things this past Saturday. That got counseled, and you're going to do it again in two weeks? Is that what it is, two weeks? Okay, we'll make sure we find that and put it up when we do it. Sure.

[02:35:20] So you said unplug the charging device. You don't mean pull the cable out of the phone. You mean pull the plug out of the wall. I've got like 20 of those plugged in at any given time. All right, let's take a picture.

[02:35:41] Nice.

[02:37:16] Well, congratulations to our two young ladies, and let's keep Fire Prevention Month in our head. We're going to go on now and do public comments. Let me just remind everybody that when I call your name, you're going to come to the podium closest to you. You will have two minutes for public comments.

[02:37:34] I will try to call your name, a couple of names in advance, so that you know that you're up and coming next. I will ask that while you're doing public comments, you please direct your comments toward the dais, because the comments are for the board.

[02:37:51] If you are offering public comments on your phone and you cannot see a timer, I'm going to ask a favor that you set your own timer. I will not stop you when you get close because doing that kind of interrupts your flow, but I will stop you when your two minutes are up.

[02:38:11] And so I think that is all. When you finish with your comments, if you would yield your phone to the next speaker, we do public comments for an hour, for 90 minutes. for an hour and a half. And so even if you're on the waiting, even if you called in and you got on the waiting list, it is possible you will still be able to speak because depending on how fast the public comments go, you'll still be able to speak if, so we'll try to get to as many people as we possibly can.

[02:38:41] However, at 90 minutes I will stop the public comments and then we will go to probably, not probably, we will go to item 10A for the action item, which is actually an information item after public comments, okay? All right, so I'm going to call your names, a couple names in advance.

[02:39:00] The first name is Dory O'Brien. By the way, if I mispronounce your name, I apologize in advance, and if you come up and let me know how to say your name, then I'll know, okay? The first speaker is Dory O'Brien, followed by Daniel Romanoski, followed by Carrie Ann Mosley.

[02:39:18] Good evening, Ms. O'Brien. Good evening, Chair Randall and members of the board. I am Dori O'Brien, a Leesburg resident who has called Loudoun County home since 1975. I'm also first vice chair of the Loudoun Chamber of Commerce, and I'm here to address item 14G, addressing homelessness and housing instability in Loudoun.

[02:39:37] I'm a founding member of the Coalition to Prevent Indian Homelessness, and we're all wearing black with purple ribbons, and if my cohort would stand and be recognized, that would be great. I'm also here tonight as a sister. I've had the unfortunate need to navigate the homeless system for a family member who suffers from mental illness.

[02:39:55] Replacing a lost ID, opening a bank account, desperately trying to find her a safe place to sleep. Dealing with uncaring or burned out support staff, untangling benefits, the list goes on. I spent much of my career in government, and it is still overwhelming.

[02:40:12] The Chamber strongly advocates for attainable housing at every income level, combined with a strong nonprofit ecosystem to catch people when the market doesn't. Homelessness is where those two gaps meet. Loudon's 2026 point in time count found 315 of our neighbors without a home.

[02:40:31] Allowing people to remain in homelessness is also the most expensive way to manage the problem. I work for Inova Health and see the impacts of homelessness on health care decisions. Unhoused individuals often go to the emergency room first, which is the most expensive front door to care.

[02:40:48] National studies put public costs from ER visits and hospital stays for one individual at \$30,000 to \$50,000 per person per year. Also disturbing, children who experience homelessness are less likely to finish high school or hold a job.

[02:41:06] I urge you to support this BMI and commit to acting on the study's finding, so no family has to figure this out alone. Scripture tells us to love our neighbors as ourselves. Tonight, I ask you to do just that. Thank you. Thank you, Ms. O'Brien. Thank you.

[02:41:21] I did forget to say that in the boardroom, I'm sorry, sir, in the boardroom, we actually, there's no clapping or booing or cheering or jeering. So if you want to, like, show support by jazz hands, that's fine, but we don't, because if we start clapping, we start cheering, They can injuring and get out of control real fast.

[02:41:38] We just kind of discourage that. Good evening, sir. You're going to be followed by Kerri-Ann Mosley. Good evening. Good evening, board. Today I'd like to discuss the grandfather policy. My name is Dana Romnowski. I am a resident of Loudoun County.

[02:41:54] I also work for a longstanding data center operator and partner of this community with over 20 years of developing here in Loudoun County. Today I'd like to share with you my story as a young engineer who had graduated from his undergrad studies during the aftermath of the global recession, I was looking for an opportunity to build my career. The data center industry gave me that opportunity, and today that career supports me and my family, my wife, and my four beautiful children. It's also given me the opportunity to live in this beautiful area with access to great

[02:42:32] parks, schools, libraries, and enough activities to keep foreign-stageable toddlers busy every day of the week. It's also given me the privilege to provide the infrastructure that's supporting some of the companies that are pioneering the future. And that future is not just AI.

[02:42:49] Some of these companies are making breakthroughs in medicine, advancing the sciences, building new technologies, and building the communications that will connect anyone anywhere around the globe. Loudoun County has played a significant role in that development.

[02:43:06] So today I ask you to not make policy changes that will erode the predictability of construction and investment in the area. To be mindful of such policy changes that will push future investments to other districts, states, or even outside the U.S.

[02:43:24] Instead, let's partner together, solve their challenges, and continue to innovate here in Loudoun County. Thank you. Thank you, sir. Kerri-Ann Mosley, followed by Woody Turner. Hi, my name is Kerri-Ann Mosley, and I live in the Dulles District since 2010.

[02:43:42] It's been my honor to serve on many Loudoun boards since that time. And I want to start by thanking the board for making the new Crisis Intervention Center in Loudoun a reality. It's a state-of-the-art facility that allows us to help residents in their most vulnerable moments when they need us most.

[02:43:59] I know this board made that happen, and I want to thank you. When my husband and I moved to Loudoun County in 2010 with our baby girl, who is now a thriving junior at Light Ridge, we left Fairfax County because we believed that Loudoun County was the best place to raise a family.

[02:44:15] Sixteen years later, we are more confident than ever in our choice, as we have the most beautiful schools, parks, and libraries here in the county. Our family is blessed to have a second home two

hours away in West Virginia, so our daughter can participate in the team sport she loves, which is skiing.

[02:44:32] And when we travel to Davis, West Virginia every weekend, we see a stark contrast to the life that we have here in Loudoun. Small, older schools, a 600-foot trailer that is the public library that doesn't have a study area or 3D printer in sight. On some days, we are unable to drink water from the tap because it is not safe.

[02:44:51] We love to go there for the natural beauty, but we're always happy to return home to Loudoun on Sunday nights. They're going to bring a data center to Davis, West Virginia, our second home. and it has met a lot of resistance, which I understand. But when I tell my neighbors in Davis what life is like in Loudoun, they wonder if someday their lives will improve because of the revenues generated by the new data center.

[02:45:17] I know that data centers are not popular for a variety of reasons, but we often confuse our data center policies and our energy policies. My family and I love Loudoun County and ask of you today to consider energy policy, separate from data center policy, because they are two separate issues, and to consider a balanced approach to the future of Loudoun, allowing the already approved data center projects to continue.

[02:45:44] Thank you. I'm sorry. Thank you. Woody Turner, followed by Brian Turner. I think I just saw Mr. Turner, senior. Good evening, sir. Good evening. Chair Randall, board members, Mr. Rogers and Mr. Hemstreet.

[02:45:59] I'm Woody Turner. I'm a Leesburg resident. resident. I've been in Loudoun County since 1949. I guess that dates me. I want to make four quick points for you. First of all, I want to express and offer praise to the professional work of the staff in preparing the Grandfather and Staff Report. They did Yeoman's work and they did a great job. We support, I support the staff's work and the challenges they have to deal with.

[02:46:27] Number two, the audit process our firm supports is directed at the process, not at the staff. Number three, the county is blessed to have a vibrant and thriving data center industry with many good actors.

[02:46:44] But unfortunately, we've been seeing too many bad actors. And those are the folks that our request for an audit is directed at. Last and fourth, there's been much saber-rattling and threats of lawsuits.

[02:47:03] And I'd like to bring one case that's on point, a recent case, to your attention. Last week, a major settlement took place in Virginia, in King William County. There, the current board reversed a major billion-dollar agreement with Amazon Web Services that the prior board had approved.

[02:47:29] Amazon filed suit arguing vested rights, and the case was set for trial last Tuesday. But at the courthouse steps, a settlement was reached, and \$10 million changed hands as a result of that settlement.

[02:47:45] That case is instructive, and it's worth studying. My time is up, and so I'll leave it to someone else to tell you who got the money and who didn't. Thank you. I think he's going to leave it to his son, Mr. Brian Turner, who's gonna be followed by Isabel Mayer.

[02:48:06] Good evening, Mr. Turner. - Good evening, Chair Randall, members of the board. I'm Brian Turner. I'm an attorney with the Turner Law Firm, and I'm speaking on behalf of clients who've expressed

concerns over proposed data center and high voltage lines in residential communities.

[02:48:21] We're not asking you to repeal the grandfathering resolution. We respect the county's opinion, and we believe the industry deserves a voice. We also convinced staff for an excellent, transparent report. It shows how many buildings and how much square footage could still be built, much of it right next to residential communities.

[02:48:40] But the concerns behind the repeal proposal remain. The real problem is process. Who makes administrative decisions on what evidence and with what board oversight? You've seen the results. Data centers were once treated as office buildings. Gas turbines were approved advantage.

[02:48:57] Both were staff decisions the board didn't know about until afterward. Vesting and grandfathering rules are complex, and that complexity has produced confusion and inconsistency. Left unsupervised, it could put data centers and substations where they don't legally qualify to be.

[02:49:15] We ask the board to do four things. Conduct a real audit, covering the evidence behind the list as well as the list itself. Have an independent third party review the grandfathering and vesting claims before staff signs off. Give staff the time, support, and guidance to make appropriate legal decisions.

[02:49:35] Notify affected residents of every application claiming vested or grandfathering status. Virginia Code 15.2-2205 gives you that authority. Without notice, an error becomes binding before you can challenge it. Many data center owners have vested rights, so they do the residents and businesses adjacent to them.

[02:49:56] But the adjoining property owners have been left out of the process. Please protect them as well by completing the audit. Thank you. Thank you. Thank you, Mr. Turner. Good evening. Good to see you. You're going to be followed by David Smith. Good evening. Hello, and thank you, Board of Supervisors, for the opportunity to share comments and support of the board member initiative introduced by Chair Randall and Vice Chair Turner to address homelessness in Loudoun County.

[02:50:25] My name is Isabel Mayer, and I am the chair of the Continuum of Care in Loudoun County. I am speaking today on behalf of the Loudoun Coalition to Prevent and End Homelessness. A coalition of community partners, nonprofits, and the faith community committed to prevent and end homelessness here in the county where we live, where we work, and where we thrive to make it better for the next generation.

[02:50:56] I have lived in this community for over 20 years. About 10 years ago, I decided to take a leap of faith and left corporate America and was called into the nonprofit sector. For the last 10 years, I've seen housing impact veterans, seniors, young adults, families, and children.

[02:51:20] Many of them are hardworking people, but life has a way of throwing you a curveball when you least expect it. It might be an illness, a car accident, a divorce, death of a family member, or domestic violence.

[02:51:37] Homelessness does not have a certain look. Actually, homelessness is very much hidden here in Loudoun County, but it is here. It is the cashier at the local grocery store who is living in their car because they can't afford rent anymore.

[02:51:54] It's the widow that has lived here all her life, but her retirement savings is dwindling. It's the young adult fleeing domestic violence and not sure where to go or what is next. Yes, we do have some

resources, but it's not enough.

[02:52:13] Because of this, I support the three-part strategy to address local homelessness. Thank you. Thank you so much. I appreciate it. Good evening, Mr. Smith. You're going to be followed by Brian Burton, who is remote. Give me one second, Mr. Smith.

[02:52:30] Who's doing the remote tonight? Is it Andy? Is this Andy? Andy, can you hear me? Yes, I can, ma'am. Wonderful. Mr. Smith, we're ready for you, sir. Very good. Thank you, Chair Randall. My name is David Smith. I've been a Loudoun County resident since 1987.

[02:52:46] I've witnessed the county's growth from under 100,000 to now over 450,000. I can recall driving on Route 28 and Waxville Road when they were two-lane roads. This evening, I'd like to speak against withdrawing the grandfathering of approved data centers now, some of which are now in the design and permitting stages.

[02:53:05] The questions at hand, as I see it, are integrity and risk. You've done well in March 2025 to correct zoning oversights by requiring a special exception and public vote for proposed data centers previously permitted by Wright. Keeping your word to the owners of the grandfather data centers will support your integrity as leaders.

[02:53:25] Keeping your word sends a positive signal of support to present and future business owners and employers beyond those who own data centers, wherever the grandfather centers will yield millions in tax revenue to support county schools, programs, and infrastructure. The other issue at hand is risk.

[02:53:43] If grandfathering is allowed, there is likely a risk of lawsuit. Such a lawsuit might be viewed as a business expense by the plaintiffs. However, the time and money spent by the county on litigation presents a financial liability underwritten by tax dollars.

[02:54:01] from Loudoun County residents and businesses. Besides me, I'd expect many voters who would want a more productive use of tax dollars and time. Finally, I support the data centers in this county. However, some are huge box-like eyesores that may have nothing to do with their context, and some may violate neighborhood view sheds and other rights.

[02:54:25] I encourage the Board of Supervisors and the Planning Department to employ an equitable process architectural review if not done already done so thank you for the opportunity to comment thank you mr smith thank you um on the phone on the on remote will be brian burton followed by uh thomas maloney sure thank you chair randolin uh the board of supervisors i just want to say that uh you guys have given your word for the grandfathering of the data centers. That's what I'd like to talk

[02:55:04] about right now. Your word is your bond. And if your word is worthless, then basically your life becomes worthless. I would like to encourage you to consider the word you've given to the data business for them to be active and have their applications processed.

[02:55:36] They have spent money in good faith. They have a good service for the county. They're pollution-free. They don't pollute the water. They don't pollute the air. They don't pollute the sound. They're quiet. They can be in residential communities with no problem.

[02:55:57] But please consider voting to not change the grandfathering of the data science. Thank you. Thank you, sir.

[02:56:14] Did I miss somebody? He does not want to speak. Okay. All right. That's fine. Mr. Maloney does not want to speak. We're going to go to Pablo Rivera and then Jeffrey Corowino. I think that is correct.

[02:56:33] Good evening, sir. Good evening, Madam Chair and the members of the Board of Supervisors. My name is Pablo Rivera, and I am a lifelong Loudoun County resident. I attended LCPS K-12. I went to Northern Virginia Community College, and today I work in the data center industry.

[02:56:52] It is where I have decided to start a family, and it is where I currently plan to live the rest of my life. I do want to point out that along with growing up in this area, I've been actively involved in a number of different nonprofits and community efforts.

[02:57:10] That is why I deeply care about what and how Lennon County looks like today and what kind of community my family will one day continue to grow, hopefully. That's why I understand the concerns of my community, the growth and development of data centers.

[02:57:25] But I don't believe that supporting this industry means ignoring the concerns. In fact, I believe that there is a path where both can be achieved. I think that we can expect data center companies to be responsible neighbors, listen to residents, and engage with communities. and address the impacts of these projects.

[02:57:42] At the same time, Loudoun County can provide businesses and the certainty they need to continue investing in this county. That's why I'm asking you not to remove the existing grandfathering provisions. I personally work in the procurement at my company, so I see firsthand how investments of new facility translates to actual work and opportunities specifically for this county.

[02:58:05] So I say all this to say that I believe that there are many things that the board can ask of data center industry to ensure the growth happens responsibly. Companies can engage with communities, respond to concerns, and work to collaborate effectively with the county.

[02:58:23] I love this community, and I am proud to, one, have grown up here, and like I said, continue to have a family here. So please just reconsider this, and please keep the grandfathering program. Thank you so much for your time. Thank you, sir. Thank you. Jeffrey Carawainio, I think I set that wrong, and I apologize, followed by Vicki Hugh.

[02:58:45] Good evening, sir. Good evening. My name is Jeffrey Carawainio. Carawainio. Yes, ma'am. I've been a resident of Loudoun County for about five years now, and when I first got here, I believe we were discussing spending caps for lack of revenue for property tax, And since the data center industry has come to Loudoun, we've seen a substantial growth in our property tax revenue.

[02:59:09] I see this as an opportunity for Loudoun to position itself for growth for the future. I believe this year was projected to be \$1.1 billion in property tax revenue. And it's an opportunity for us to basically position ourselves for the growth of the community.

[02:59:33] And it presents a lot of opportunities and jobs and a lot of money that we need that we didn't have before they came here. Thank you very much. Thank you, sir. Thank you. Vicki, I did see her. Vicki, you're next, and you're going to be followed by Victor Block.

[02:59:53] Good evening. It's good to see you again. Good evening. My name is Vicky Hu and I live in a Stirling District. I came to Loudoun 26 years ago. I built my life and raised my family here.

[03:00:09] When Dominion called to tell me a tower was going to be in my backyard, they said it was cheaper, easier and faster to go through our community, our school and our private property than to do it right. No homeowner should get that call. The call didn't come out from nowhere.

[03:00:28] Loudoun has built its budget on the data center and when one industry pays less so much, every decision bends toward it. Technology changes and a company can decide to go somewhere else. Reliable revenue matters, so that's not bending the county's future on one industry.

[03:00:49] Nobody is against the job or revenue, but we need a maintainable job. From small business that you can hire a local local worker and in keeping in the county a lower tax rate doesn't mean you are not paying it you pay with your electric bill and with your quality of life loud and make a mistake letting so much of industrial use grow up next to the homes and the schools we cannot undo that but we don't have to keep repeat it industrial use belong to

[03:01:24] industrial zone, away from where family live. But the things that have spun so far out of control, every new data center means another golden to mask in somebody's neighborhood. The responsible thing to do is make sure every project in the pipeline actually has right its claim. Adopt our motion, let's do it right, for our community and our future of our kids. Thank you. Thank you very much, Mrs. Hugh. Victor Block. Hi, how are you doing? Good to see you again. You're going to be followed by Will Taggart. Thank you. Good evening. I'm Victor Block, president of Loudoun

[03:02:02] Valley Estates HOA, and I've lived here since 2005, which is hard to believe. First, thank you. Last month, you all deferred Golden. You voted to move forward with the pause, and you came out against Valley North and ordered new overhead power, against new overhead power lines or corridors through Loudon, so it was a good month. You'll hear tonight that data centers bring a lot of revenue on very little land. We just heard that we should separate energy policy from data centers.

[03:02:31] Well, power is the impact. Every customer in Loudon that isn't a data center, that just is the homes, the schools, the businesses, uses about 0.9 gigawatts. The conservative projection is Loudon needs to add about 10 times that in the next few years. 10 times everything else in the county in three years or so. We've pushed back on Valley Link, and rightfully so. But that power is going to get here eventually. We know it will. And once it does, how does it get to the data centers?

[03:03:00] Look at the map tonight. These grandfathered projects surround our community. Gold and the Mars would serve them, and it still isn't enough. Nobody will tell us where the next line goes. Every data center you approved, or you'd let skip a hearing, every substation you approved to connect to them. Each one was a vote for the next power line. You said as much when you denied Tech Park. A substation like that promotes new high-wattage users and new high-voltage transmission lines within the county. We have all learned a lot since a lot of those decisions. At a minimum,

[03:03:38] make sure every data center still in the pipeline actually has the rights it claims. Please adopt the audit motion that will come forward tonight. Otherwise, it's a vote for every single one of them. Thank you. Thank you. Good evening, Mr. Taggart. You will be followed by Matthew Parker.

[03:03:55] Good evening. My name is William Taggart. I live in Loudoun Valley Estates. I've lived there longer in this house than I have in any of the houses that I've ever lived in. I've had backyards that had the Chesapeake Bay in them. I've had the Gulf of Mexico. I've had the backyard off the island of St. John's

down in the Virgin Islands. Currently, I have a backyard that's going to be blessed by 185 foot power pole, which when we moved to the county, we had no idea it was going to be put

[03:04:29] there. And I don't think the board members knew that either at any board. What I've been in construction all my life since I graduated high school, in construction, we have to plan for what we do. Early on in my career, a gentleman my age now said to me, Billy, you need to look at what you're building. If you see a mistake, you need to fix it. If it's your mistake, you better fix it quick. So what I'm saying to the board is we've made a mistake in Loudoun County. And I think it's

[03:05:03] as obvious as the nose on my face. We have to fix that. And it's not us. It's this board. We've got problems going on I wish you all would walk into our backyard see the parkland behind our house and see what the data centers are doing to a family a neighborhood a county and our our location it's it's obscene I've been building for Pulte homes Toll Brothers and a whole bunch of other builders we plan for what we do when the data centers say they build our schools and

[03:05:39] roads and all that. That's what the builders do too. Anybody that picks up a shovel, digs into the earth by almost every county in the state is required to build in the infrastructure. So putting in schools and roads is nothing new to development in the county. We took claim for it. I know the data centers are doing a great job for the tax base. Sir, your time's up. I'm sorry. Thank you very much.

[03:06:05] Thank you very much, sir. Matthew Parker, you'll be followed by Clement Lupton. Good evening, sir. Good evening, Madam of the Chair and members of the board. My name is Matthew Parker, and I'm a graduate from Northern Virginia Community College, where I earned a two-year associate's degree and a career study certificate in data center operations. Now, I was able to translate that education into a successful career here in Loudoun County, and I've been in the industry for two years now. I've had the privilege of working alongside people in senior management

[03:06:43] positions who have spent many years building a successful career. And when I look at them, I see a path I hope to follow. I want to continue learning, taking on more responsibility, and hopefully earning more promotions in the years ahead. My current role is manager engineering operations. So I understand the board has a difficult responsibility. You have to weigh the concerns of the residents with the needs of businesses in a rapidly growing industry in this county. And I respect that responsibility. And I understand why the board would continue to look

[03:07:22] at how the data center should develop in the future. However, businesses have made decisions. They've made long-term plans to allocate capital based on the grandfathering framework that was introduced. And when those plans are compromised, it sends a message to those companies that the roles they once relied upon can change after the fact. When companies have the confidence that they can invest in this county, they can also invest in people. They can provide internships, training, and other opportunities. So I'd like to ask the board today to please keep that in mind when

[03:08:01] considering whether to preserve that opportunity for me and for many others trying to build a successful career in the data center industry here in Loudoun County. Thank you for your time. Thank you, sir. I'm Clement Lupton, and then you're going to be followed by, the last name is Ahmed, and the first name I don't want to, I will mess up, but I think it's Kawaha Ahmed, I think.

[03:08:24] So if you know who you are, thank you. And if you say your name for me, sir, I apologize for mispronouncing it, but Mr. Lupton, you're first. Good evening, Chair Randall and members of the board. I

am Clement Lupton, Government Relations Manager for the Loudoun County Chamber of Commerce. I'm here to urge the board not to repeal the 2025 Data Center Grandfathering Resolution and not to pursue the proposed audit of data center projects.

[03:08:47] In March 2025, the board ended by right data center development and adopted grandfathering rules for applications already in the pipeline, a step the chamber supported. For more than a year and a half, those applicants have moved their projects forward in reliance on that resolution. Withdrawing it now tells every business weighing an investment in Loudoun that the rules can change after they've acted on them.

[03:09:08] County staff estimates that rescinding grandfathering could expose the county to up to \$60 million in lawsuits. That's a real cost to taxpayers for an uncertain result. The chamber is also extremely skeptical about the intent and value of the just-announced plans to audit every undeveloped data center project, despite the lack of evidence that any of these projects are legally deficient.

[03:09:31] It strikes the chamber as a warrantless phishing expedition intended solely as a means to harass law-abiding, tax-paying enterprises in our community. Residents' concerns are real, and Phase 2 of the Data Center Standards and Locations Initiative is the right place to address them.

[03:09:48] We respectfully urge the board to leave the grandfathering resolution as adopted and to decline the audit. Thank you. Thank you, sir. If you would say your first name for me, I'd appreciate it. Kalaja Ahmed, good evening. Thank you. I'm sorry. And you're going to be followed by Katie Singer. Good evening, sir.

[03:10:07] Good evening, board. It's a pleasure to be here in front of you tonight. I'm a member of the Leesburg District speaking on Agenda Item 14.F, which is the warehouse slash office flex space that is being currently proposed for Tuscarora Crossing Land Bay 4.

[03:10:24] That land was set aside for the community, for the Tuscarora Crossing community specifically, a school, a park, a civic site, not a plex warehouse office space as it is currently being proposed that encompasses 130,000 square feet. This is an industrial building surrounded by homes on three sides.

[03:10:44] The truck activity that is being proposed to come into Natchez Drive isn't capped. There's no threshold for the amount of volume of traffic, which further poses a safety hazard to the residents and the children that play on the tot lot, which is directly on that main thoroughfare.

[03:11:00] The tot lot fencing proposition that's being proposed is weak at best. The HOA will give a best-faith effort to, you know, guarantee the inclusion of a fence to protect the tot lot, but that isn't, you know, anything that's concrete.

[03:11:16] So we need something that is further established and more refined to ensure the safety of children and their families that are using that playground as residents of the community. Additionally, as you all are all aware, there's a new county government center that's being built right off of Crosstrail Boulevard in the right off of the Kincade community.

[03:11:39] So there's no reason that the purpose for this building can't be allocated into that further development. Um, it's literally a minute away via car, uh, a mile away by, uh, by distance. So it's better to consolidate rather than using that, that purpose for, uh, it should be used for a civic purpose, a school or some other park.

[03:12:02] Um, I yield my time. Thank you. Thank you, sir. Good evening. Um, Ms. Singer, you're going to be followed by Nicola Costa. Thank you for the opportunity to speak in support of the board member initiative introduced by Chair Randall and Vice Chair Turner to address homelessness in Loudoun County.

[03:12:19] My name is Reverend Katie Stradnack-Singer. I represent Leesburg Presbyterian Church, and I speak today on behalf of the Loudoun Coalition to prevent and end homelessness. We believe that homelessness in Loudoun County is solvable, and we are hopeful that the full board shares this vision.

[03:12:37] As a pastor serving in our beloved downtown historic district, I have neighbors stop by our church office regularly looking for help. Many are working multiple jobs and still cannot make ends meet with the cost of housing in our region. Too many people who work here cannot afford to live here. My faith teaches me to welcome, to make room, and to help house those searching for a place to rest their head. One need sits most heavily on my heart. Emergency shelter for families. Right now our county has no plan for what happens when a family with

[03:13:13] children needs housing after five o'clock or on a weekend. There is not enough room in the shelter, we have no designated family shelter, and children cannot go to the hypothermia prevention program, a low-barrier November through March shelter program for individuals, which we also truly need.

[03:13:32] Every time I put a family up in a hotel for a night or two, my heart breaks. Churches alone cannot bridge a gap this wide, and I long for a way to connect these parents and families to help locally when nine-to-five offices are closed. I believe that we can do better and that we must do better.

[03:13:51] That is why I support and hope you will, too, the three-part strategy in this initiative. Number one, an independent needs assessment. Number two, an action plan built on its recommendations. And number three, capacity building for the Loudoun Continuum of Care. These will give us a clear roadmap.

[03:14:09] Thank you for your consideration and your support. Thank you, Nicole Acosta, followed by Eric Showalter. Good evening. Good evening, Madam Chair, members of the board.

[03:14:25] I'm Nicole Acosta, President and CEO of the Community Foundation for Loudoun and Northern Fauquier Counties. I'm here today to express the Community Foundation's support for the Homelessness and Housing Instability Initiative. I mentioned to you in February during the budget hearings that I started my career in nonprofit work here in Loudoun in 2005, working in one of our local shelters.

[03:14:44] Twenty years later, I'm still hearing and seeing many of the same community-wide challenges I experienced then. And we know the data tells us the needs have grown over time, while our overall system capacity has not grown at the same pace. But I'm not here today to focus on the problem. I'm here because I believe we have a real opportunity in front of us.

[03:15:01] The Community Foundation is part of the newly formed Loudoun Coalition to Prevent Non-Homelessness and also hosts the Loudoun Community Cabinet and 100 Women Strong, two local philanthropic giving funds made up of almost 100 community members and philanthropists. Through those two funds, I'm proud that the Community Cabinet and 100 Women Strong have committed up to \$125,000 to help fund the proposed homelessness planning and capacity building work alongside the county.

[03:15:28] This is exactly the kind of opportunity where public and private resources can come together. Homelessness is not something the government can solve alone, it's not something nonprofits so philanthropy can solve a loan, but together we can bring our resources, expertise, and perspective together and build a stronger system for our community. I believe 20 years from now we'll look back at this moment as the turning point where Loudoun came together across sectors and decided to build a stronger system of care for our most vulnerable, unhoused neighbors.

[03:15:55] So thank you so much for considering it. Thank you, and thank you for everything you do for the county, Ms. Acosta. Eric Schallwaller, how are you doing? And you are going to be followed by David Paula. Good evening. Thank you. Thank you, Chair and members of the board. My name is Eric Showalter, and I live in the Broadlands neighborhood. Thank you to Betsy Smith, Leah Rogers, and their staff for Item 10A. It's the first public inventory of these applications.

[03:16:21] I want to talk about one line and attachment two, the Cyrus One Broadlands Site Plan 23041. It's a 57-acre forested area at Broadlands Boulevard and Belmont Ridge Road. It's right beside lcps admin building and it's a short walk across the street from our homes the county lists it as conditionally approved three buildings about 810 000 square feet plus a substation nearly 2 000 neighbors have signed a petition against it most of us learned about it only recently because no

[03:17:00] public hearing was ever required the staff report says a conditional approval carries the same vested rights as full approval? Maybe so, but approval is when vesting starts, not where it ends. Cyrus One bought this land in 2022 before any approval. What has it spent since? Have the conditions been met? Does it have power? The petition says the project hasn't moved forward in part because of its enormous electrical needs. That's why I ask you to adopt the audit motion.

[03:17:36] It asks the right questions in the right order. It asks what specific approval each applicant relies on and when. It asks what it spent before that approval and what it spent after. It asks whether the conditions of a conditional approval have actually been met.

[03:17:55] And it covers every data center and substation application where construction hasn't started, Cyrus 1 included. If the rights are real, the audit will show it. And the motion leaves them untouched. but if they aren't, the board should know that too. Thank you. Thank you. Thank you, sir.

[03:18:17] David Paula, good evening, sir. And you're going to be followed by Patty Nelson. Good evening. Good evening. David Paula with IBEW Local 26. I'm here to speak for the 1,054 members who live here in Loudoun County. You've heard from me the last few meetings talking about how we have the fastest growing membership in the country of electrical union members, about how we have the largest apprenticeship in the country, all because of this industry that's here. We talked about grandfathering before. I asked you to keep your word to us and to those

[03:18:54] men and women who are continuing to work here. You've already heard from two of my members tonight. You're going to hear from a couple more that are coming in and giving some public comments. But I want to talk about the folks who aren't here tonight. I sent an email out to y'all with a website with some statistics about our members who live and work in the county, also some videos of some testimonies and some written testimonies from them. You'll hear from folks like a young single mother who's able to provide for her family and work and live here in Loudoun County because of the data center industry working as an electrician here. You'll also hear about the 30-year

[03:19:32] resident who, for most of his career, had to travel over two hours to work, but now is here in Loudoun County and has two of his children who have actually come up through the trade. Not just generational wealth being created, but generational careers in the electrical field because of this industry. So I ask you, once again, please do not end this grandfathering provision. We have thousands of workers who rely on this, who need this to put food on the table.

[03:20:03] Also, very quickly at the end, I just want to say, I know New Virginia Majority is talking about a trust policy. A lot of our members are Latino and face a lot of that same harassment as the former political director for New Virginia Majority, not with the IBW. I'd ask you to also, you know, pass that trust policy as well. Thank you. Thank you. Thank you very much. Patty Nelson, You're going to be followed by Adina Applebaum.

[03:20:28] Good evening. Good evening. And speaking of the trust policy, I'm Patty Nelson. I'm from Leesburg, Virginia. And I have been asked by a member of our immigrant community who was afraid to speak, to wear white, and to read her statement. Our nightmare began on Friday morning in August when my husband was driving to work and was intercepted by ICE in Sterling at 7 a.m.

[03:20:54] As a family, we never imagined we would go through something like this. Together with my four children, we are asking for the support of our community to help pay his bond and bring my husband back home. My husband has no criminal record.

[03:21:12] He is a man fully dedicated to his family. We have four school-aged children, and we are suffering deeply from this separation. This situation is destabilizing the mental and emotional health of our children as they are the ones who suffer the most, constantly asking questions and feeling the absence of their father.

[03:21:37] I am now facing a burden that no one should carry alone. Four children to feed, rent to pay, and the impossible decision of how to move forward. Entire families have stopped going to their church, to local events, They have stopped living a normal life.

[03:21:57] I urge our local government to support a trust policy so that families no longer have to live in fear of seeking help, knowing their information will not be shared. Thank you. Thank you.

[03:22:12] And I would also like to say, a new Virginia majority and the immigrant community in Loudoun have been advocating for a trust policy for more than two years. However, despite the best efforts of New Virginia Majority and its allies, oops, three seconds, SEIU stands with our immigrant families and a trust policy in Loudoun County.

[03:22:35] Thank you. Okay, Adina Applebaum, you're going to be followed by Mark Pontiello. Good evening. Good evening, members of the board. Thank you for the opportunity to speak. My name is Adina Applebaum. I'm a resident of the Algonquin District, and I'm a Virginia Bard attorney.

[03:22:56] My family and I are active members of Loudoun County Public Schools and public library communities, and I ask the board to adopt and fully implement the trust policy with clear limits on voluntary assistance with civil immigration enforcement, protections for personal information, transparent reporting, staff training, and accessible complaint procedures.

[03:23:17] I'm the program director of the MECA Center for Immigrant Rights Immigration Impact Lab, which is a nonprofit legal service provider. We provide legal services to detain Virginia residents, adults

and children, many of whom are detained here in Virginia in Farmville and Caroline Counties.

[03:23:36] ICE has arrested over 16,000 Virginians between the inauguration and early August 2026. In comparison, in 2024, ICE made around 1,600 arrests in Virginia.

[03:23:51] Over 70 percent of Virginians have never been convicted of a crime. This has gone too far what we're seeing in our community. ICE has significantly escalated their arrests and polling shows that the vast majority of Americans on both sides believe ICE has gone too far.

[03:24:09] What's happening makes everyone in our community less safe. Parents avoid being on the roads and keep their children home from school. Victims of violence are afraid to call the police. U.S. citizens drive around with their passports, afraid of being ripped from their families.

[03:24:27] Over 35,000 children have had both parents deported. It doesn't have to be this way, and there's no place for Loudoun County to be involved in facilitating what is happening. Around 200 people in Loudoun County have been arrested by ICE the first half of this year.

[03:24:44] That means hundreds of our children are separated from their parents, missing days of school, worsening mental health, and having stress. I'm really sorry. I am really sorry. Your time is up, though. I'm sorry. Mark Pontiello, followed by Mark Bayless. Good evening, sir.

[03:25:03] Good evening, members of the board. My name is Mark Pontiello, and I'm a resident of Loudoun County for nearly two decades. I'm speaking today to urge you to protect our legal frame rate and oppose abolishing the grandfather clause for data center development. I understand the debate around growth, but retroactively removing vested rights isn't just a policy tweak.

[03:25:26] It creates serious collateral consequences for our community. Consider what happens when a site loses its grandfathered status for a commercial or industrial data center. That land simply doesn't turn into permanent open space or a park.

[03:25:41] In many cases in northern Virginia, those parcels become high-density residential zoning. So instead of a facility generating high commercial tax revenue with virtually little impact, we could see hundreds of townhomes or multifamily units built instead.

[03:26:00] That means hundreds more cars clogging our already congested local intersections, additional strain on our local road networks, and higher operational burdens on our public schools and emergency services. Second, predictability is the bedrock of local economic stability and smart land use planning.

[03:26:19] When property owners and local businesses invest in land under a set of clear rules, changing those rules midstream sets a dangerous precedent. It invites prolonged costly litigation that ultimately cost taxpayers millions in county defense fees, all while signaling that Loudoun County is an unpredictable partner for future infrastructure investment.

[03:26:43] Data centers carry a substantial share of our tax burden, helping fund our world-class public schools, parks, and public safety infrastructure without placing excessive students in classrooms or commuters on our neighborhood roads. Abolishing the Grandfather Clause would create far more problems than it solves.

[03:27:02] Thank you for your time and service to our community. Thank you, sir. Mark Bayless, and sir, you will be followed by, it would be on the remote call, it would be Don Luce. Good evening, sir.

[03:27:18] Good evening, and good evening, Chair Randall and the board members. My name is Mark Bayless. I support responsible data center development, and I urge the board not to reverse course on data center projects that Loudoun County has already approved. The concerns being raised about data centers are not all wrong.

[03:27:35] Bad zoning should be corrected. homeowners need reasonable buffers, not just for data centers, but they should be applied to all commercial businesses. Bad zoning needs to be corrected, and large power users should pay for their fair share of infrastructure that's required to serve them. But those are arguments for better data center policies moving forward. They are not arguments for changing the rules after projects have already gone through the county's process and received approval. Loudoun County is the data inner capital of the world and according to the county's own numbers have generated 1.2 billion

[03:28:11] as 39 percent of the entire budget for fiscal 2026. They also support 17,000 direct and indirect jobs but this is more than just about tax revenue. These facilities are infrastructure behind the cloud computing, cyber security, online gaming, artificial intelligence and much of America's and the world's digital economy.

[03:28:36] AI is rapidly becoming one of the most important economic and national security issues. And Loudoun County already possesses something that countries around the world are spending billions of dollars trying to recreate. We have the most important concentration of computing and internet infrastructure in the world.

[03:28:59] We should protect our homeowners. We should improve zoning. We should require better noise, power, environmental standards. all commercial businesses in the county, not just for data centers. But we should try very carefully not to protect ourselves from the infrastructure that is powering the next generation of American prosperity.

[03:29:20] Please honor the projects in Loudoun County that have already been approved, and let's work together to make the next generation of data centers in Loudoun County better. Thank you, sir. And keep Loudoun County the center of the infrastructure. Thank you. Andy, we're going to go to the phone for Don Luce, and then we're going to come back for Michelle Juergens.

[03:29:42] Is he, is somebody in the, are you ready? Oh, you've gone to the phone, okay. Yes, I just want to pretty much, I guess, ditto a lot of things that have already been said is that one of the biggest problems, I think, about not following through with the grandfather clause is that you're going to hurt Loudoun County in the long run with other businesses, which has obviously already been said.

[03:30:07] And also, you know, I think all the other points, I mean, really, it's almost like ditto, ditto, ditto and everything that's been said about what the benefits of data centers are. And, I mean, just driving through Tyson's Corner, another, to me, a benefit of data centers is there's not a bunch of traffic around them, unlike some of the other businesses that might come into the area, like the trucking situation they were talking about in the park.

[03:30:33] So there's a lot of advantages, I think, in the data center, but I think one of the biggest problems for a county structure or any kind of government structure or any kind of business organization is not keeping their word and living up to their agreements. And I think that's an important thing for Loudoun County to do for the future.

[03:30:51] Thank you. Thank you, sir. Good evening, Ms. Juergens. You're going to be followed by Dawn Sleeman. Good evening, Chair, Supervisors. My name is Michelle Juergens, and I'm from the University Center HOA. I'm also part of the Community Coalition Against Bridgefield in the Algonquian District.

[03:31:08] Our community sits adjacent to the George Washington University Ashburn campus, where Amazon now wants to build four data centers. Thank you to staff for item 10A and to our Algonquian and Little River supervisors for the initiative behind it.

[03:31:24] The Amazon application isn't in this report because it came long after the grandfathering cutoff. Amazon bought the campus in March for about \$427 million, and in July it filed a site plan for four data center buildings, more than 800,000 square feet with parking garages, 84 backup diesel generators and no electrical infrastructure to be seen. The county accepted it for review last month. Amazon is

[03:32:00] relying on the old Route 28 rules, but on July 30, the zoning administrator found the county's old practice of treating data centres as office use obsolete. The Route 28 payments end this December. And the county has said plainly that accepting an application for review does not grant vested rights or grandfathering. Virginia's Supreme Court agrees in town of Stevens City versus Russell. It held that filing a site plan before the rules change does not by itself

[03:32:36] vest anything. Buying land before any approval is a business risk, not reliance on a government act. And reports say that construction won't begin until GW leaves, which could take up to five years.

[03:32:53] That's a hard call. It's hard to call diligent pursuit. That's why I support the audit motion. Thank you. Your time is up. Don Slaman, you'll be followed by Jennifer Montgomery.

[03:33:08] Good evening, sir. Good evening, Chair Randall and members of the board. I'm Don Slaman, political coordinator for IBW Local 26, and our family's had a homestead in here in this county for over 50 years on Lager Farm Road, zip code 20132. Keeping with Loudoun's grandfathered projects, moving protects construction jobs today and manufacturing jobs for the future.

[03:33:32] The administrative pipeline represents \$27 billion in investment and 12 million construction hours. That translates to roughly 685 full-time electrical jobs since we're 45% of the data center annually for three years.

[03:33:48] And these are careers and apprenticeship opportunities that depend on projects moving forward. For our apprentices, these projects provide the hours, training, and experience needed to build lasting careers and support their families. They also sustain union prefab shops in Loudoun County.

[03:34:05] A reliable project pipeline gives contractors the economies of scale to invest in advanced manufacturing, train apprentices, and produce electrical systems for projects nationwide. Loudoun County can build on its leadership and data centers to become a manufacturing center for the nation's digital infrastructures.

[03:34:24] I was just in one of these prefab shops this last week, and everything on the shop floor is headed to Oklahoma from this expensive market. Please honor the grandfathering of these sites and allow the substations and other infrastructures needed to serve them to move forward, grandfathering must provide a practical path to construction.

[03:34:41] Doing so will protect careers, support apprentices and local manufacturing and send a clear signal that Loudoun County Remnants opens for business. I'd also like to, I saw that stirring rally

outside, I also like to say that as a resident I support the trust policy and also as a political coordinator for IBW, the Local 26 supports that's trust policy and as a member of the Labor Federation of Northern Virginia, and And I saw Virginia Diamond, our president, out there.

[03:35:04] The Labor Federation of Love Virginia also supports that trust policy. Please protect the recent immigrants. Thank you. Thank you, sir. Jennifer Montgomery, you'll be followed by Paul Serrano, who will be remote.

[03:35:20] There you are. Hi. How are you doing, Ms. Montgomery? Good evening, Madam Chair, members of the board. My name is Jennifer Montgomery. I am the CEO of Loud and Hungry Relief and the advocacy chair for the Loud and Human Services Network, a coalition of 50 human service nonprofits. We urge you to approve the board member initiative on addressing homelessness and housing instability in Loudoun County.

[03:35:41] At Loudoun Hunger Relief, we have seen this need increase firsthand. From fiscal year 2024 to 2026, the number of unhoused individuals coming to LHR for food has risen 59%, and their total visits have risen over 109%.

[03:35:56] The number of unhoused older adults, age 55 and over, has nearly doubled. The county's data agrees. This year's pick count reached 315 people, up from 252, and we have the fewest shelter and supportive housing beds per resident in Northern Virginia.

[03:36:13] Former Congresswoman Pat Schroeder said, you can't wring your hands and roll up your sleeves at the same time. Tonight, we have the chance to roll up our sleeves and to do better and more together. This is a shared community model of partnership. Government, nonprofits, philanthropy, and dare I say everyone in this room who cares about our community can do something about it. The nonprofits and the philanthropic community have rolled up our sleeves. Join us. Our neighbors deserve our best. And together, I know we can deliver it. Thank you. Pat Schroeder was a congresswoman from Colorado. She's the first

[03:36:49] person my mother had me knock doors for. So cool. Paul Serrano, you're on the remote and you'll be followed by Clayton Medford. Clayton, I'm sorry, Clayton Medford. Paul Serrano, Andy, is he on the phone. Hello, can you hear me? We can hear you just fine, sir. All right. I am Paul Serrano, a 14-year resident of Ashburn District. I'm here to plead that the board maintain the

[03:37:24] grandfathered protection for data center projects. Other people have already addressed the adverse legal and financial and economic consequences of reversing the previous action. Personally, what concerns me the most is being confronted by the reality that our government is not to be trusted. What it gives, it can take away with scant regard for official promises. Now, I won't take the board's time with my own experiences in life where government officials have denied justice, perhaps feeling that they were more powerful than any individual citizen. But when I see what's

[03:38:03] happening to our county today, I have to speak out. Public hysteria has been inflamed by widespread misinformation. To cite one example, I've heard many people claim that data centers hurt their property values. Where I live, the opposite is the case. A data center was built in 2021 across the street from me, 300 feet from my bedroom window. And in that time, the value of my home has gone up 23%. That's just one data point. But the facts of the matter take a backseat

[03:38:41] to political posturing. When I see the supervisor from Algonquian District suggesting that more mixed-use development would be preferable, what I see is struggling retail, more traffic, higher taxes to buy emergency services in schools. That's not the future I want.

[03:39:02] Thanks for your time.

[03:39:12] Okay, we're going to give him like 15 more seconds here. If you're still there, just hang on, take a drink of water, come back, and you can have like 15 more seconds. You still there? Thank you, Chair Randall. I have basically finished my remarks.

[03:39:30] Okay. I think my voice gave out at the same time. Okay. But this is, I thank you for your time, and I'll yield back anything left. All right, we're good. Thank you. All right, thank you.

[03:39:46] Clayton Medford, good evening, sir. Good evening. Thank you, Madam Chair and members of the board, for having me here today. My name is Clayton Medford. I'm here on behalf of the members of the Northern Virginia Chamber who represent a broad cross-section of our regional economy. As I said to you all when I was here last month, Loudoun can and should continue your work to improve land use standards, protect residential neighborhoods, require meaningful mitigation, and plan responsibly for energy and infrastructure.

[03:40:09] We respect the county's right to shape data center policy, and we know that these are hard decisions. Tonight we're asking the board to take a careful look at what rescinding the March 2025 grant filing resolution would mean before you act. This is not an informal policy, but formally adopted as part of the data center amendments after months of public engagement, planning commission work sessions, public hearings, and several board meetings.

[03:40:31] The county even published a guide telling applicants how it would work. Applicants took that commitment at its word. They kept investing time and money into their projects instead of withdrawing or changing course. Reversing the rules now after people relied on them in good faith raises real questions of fairness, and it couldn't tie the county up in disputes that cost time and taxpayer money.

[03:40:51] It also sends a message well beyond these projects, and I'll just read from the staff report. When businesses have acted in good faith and reliance on an established transition process, Reversing that process can undermine confidence in the county's word. Loudoun's financial success, driven by the growth of our commercial tax base, has been built in large part on our reputation as a business-friendly community, our efficiency in reviews and permitting, and our consistency in policy.

[03:41:14] Loudoun County's continued success will be dependent on preserving those strengths and maintaining the confidence that businesses place in us. And we cannot agree more. And in terms of the proposed audit resolution, we do not see that as a workable or appropriate compromise. I'm going to ask you just to leave the grant filing resolution in place.

[03:41:32] Thank you. Thank you, sir. Patricia, I should have called you in advance. I'm sorry. Patricia Gallardo, followed by Bill Junda. Good evening, ma'am.

[03:41:49] Good evening, Madam Chair. Oh, wait. Okay, I'm sorry. You're ready. I'm ready. Good evening, Madam Chair and members of the board. In December 2022, Cypress One paid \$119 million for 57.6 acres next to the school administration building in Broadlands and announced five two-story data buildings.

[03:42:17] The county's list in attachment two today shows three buildings and about 808,000 square feet conditionally approved. The petition circulating in Bralins describes nearly a million square feet.

[03:42:35] Five buildings or three, 800 and 800,000 square feet or a million. Residents can't tell what's actually approved, and that matters for vested rights. The statute protects reliance on a specific project.

[03:42:51] If this project has changed since it was filed in 2023, the questions are which version was relied on and what money was spent on it. So I ask you to adopt the audit motion. It directs an audit that compares each project with the approval it relies on, and to flag any substantial change in building count, floor area, height, layout, or land area.

[03:43:16] It also has staff reconcile the county's own tables and post the findings online updated monthly. For Cyrus One Broadlands, that means a public answer to a simple question. What actually was approved, and is that still the project? Our neighborhood deserves to know exactly what's planned next door.

[03:43:35] Thank you. Thank you. Thank you, ma'am. Bill Junda. Hello, Mr. Junda. You're going to be followed by John Judge. Good evening. My name is Bill Junda. I'm a 26-year Loudoun resident and a local business owner, but today I'm speaking on behalf of CREDA.

[03:43:51] That's the Commercial Real Estate Development Association, formerly NAOP. As you can imagine, our members have significant concerns over the possible rescinding of grandfathering and the upcoming pause discussions. Our members have billions, that's with a B, at risk if either of these proposals are adopted.

[03:44:07] The staff report for this item already articulates the majority of our concerns regarding legality, fiscal impacts, and impact to Loudoun's business reputation. So I wanted to give you a different perspective and share a few quotes and conversations I've had recently with non-data center clients, from the people that build homes and built affordable housing here in Loudoun, things that we want right now.

[03:44:24] Boy, this feels a lot like the mid-2000s, rallies and pitchforks and denials of applications and downzonings and questions about moratoriums. But 20 years ago, the supposed villains were home builders. Not in my backyard, they said. I thought that the land next to me would be vacant forever.

[03:44:40] Too much traffic, overcrowded schools, all issues that could be resolved then and can be resolved now, just like with data centers. Drawing lines in the sand made headlines back then. Middle ground didn't, but it can today. The more things change, the more they stay the same. Sometimes it's just the villain that changes.

[03:44:57] The home builders have been the villains, and watching these data center discussions play out erodes their confidence that Loudoun is going to be a safe place to do business in the future and paves the way for them to become the villains once again in the future if their use ever falls out of favor. So you'd be surprised many of our data center developers in Loudoun also build other things, including affordable housing.

[03:45:18] So these decisions impact those developers and their business and those business owners and how they deploy their capital. So I'll leave you with this final question from a Loudoun affordable housing builder. If the board makes these changes, will we still be able to fully invest in our housing trust fund and

do all the things that we want to do for housing? Thank you, Mr. Janda. The next two speakers, John Judge and Robert Follett, are both remote speakers. Hi, I'm John Judge.

[03:45:48] I understand the removing the grandfather will cause will end up to major lawsuits. Don't get rid of the grandfather laws.

[03:46:06] Major lawsuits in the county. Important to the economy here in Loudoun County. And the AI and the race against China for the grandfather in grandfather will get the census are the most important thing to do i've been a resident here of Loudoun County for 27 years i've seen so many guys that go up here in northern Virginia we are

[03:46:38] the highest around according to Fox News Channel a true statistic right there thank you okay thank you sir you'll be uh Robert Follett will be followed by Barbara Day good evening my name is Bob Follett, and I've been living in Loudoun County for over 20 years, and in northern Virginia for almost 70 years. In my career, I worked for a major corporation for 33 years, winding up on

[03:47:13] the corporate staff retiring. I mention this because it has anything directly to do with the subject at hand, but just to give you some context where I'm coming from, when I heard about the proposal to reverse a couple of grandfathering resolutions, which I understand affect over 80, 20 data center projects involving dozens of buildings, I was and frankly, a bit shocked as well. These projects are underway and to go back through a resolution involving public hearings

[03:47:51] and a final vote by the board would be greatly and grossly unfair to the business itself. But that's not even the problem with this proposal. If I, as a businessman, whose proposal is involving Loudoun County in any way at all, this whole situation would give me pause.

[03:48:12] If Loudoun County believes it can change the terms of conditions in the deal, even if the deal has been agreed upon, I would have to think seriously about it with another county. or perhaps another state. Please preserve Loudoun's credibility and reject those reverse previously agreed upon grandfathering. Thank you for your time. Thank you, sir. Barbara Day, followed by Natalie Pien. Good evening, ma'am. Hello. My name is Barbara Day. I am a 23-year

[03:48:51] resident of Loudoun County and a three-year resident of Tuscarora Crossing. I'm a frequent flyer when it comes to inputs you remember my you may remember my name from many times i have written you i appreciate your replies and the conversations that we've had i'm here today to ask you to reject the special exception for land bay 4 on cross trail cross trail boulevard item 14f i'm sure you're familiar with the points that we residents have made about not wanting the Loudoun County public school system warehouse to go near the Tuscarora Crossing neighborhood.

[03:49:27] As mentioned earlier by my neighbor Ahmed, Land Bay 4 was originally supposed to be an elementary school, not an industrial warehouse. It's an industrial facility dropped in the middle of three residential neighborhoods, so we're basically caged in, so it just doesn't belong here.

[03:49:43] It requires special exception by definition, and that means it's not really an ordinary fit for this location. The workarounds for truck activity, lot fencing, barriers, noise, trees, all that, once again, indicates too much mitigation, says it's the wrong place.

[03:50:03] We want to remain a residential area. Planners have created an urgency, but the urgency for the neighborhood is different because the decision you make today, or whenever, is one that we will live

with forever. Also, now that a substation across the street is most likely back on due to a misunderstanding or misinterpretation of the by-right use, we'll have the data center and the substation and then another data center up the street by the village.

[03:50:34] And it will essentially be an industrial corridor. The warehouse will really only add insult to injury. And oh, by the way, the WOMD trail will back up to the rear loading dock of the warehouse. So we'll lose our connection to nature. Other options that I presented are...

[03:50:52] Ms. Day, I'm sorry. Your time is up. I'm sorry. Now, Ms. Pien, how are you? Give me a second. You're going to be followed by Derek Max. Good evening. Hello. My name is Natalie Pien, a 40-plus year resident in the Little River District.

[03:51:09] I'm a retired public school teacher and a former environmental scientist with Loudoun County Government. Tonight, I'm speaking on behalf of the Chesapeake Climate Action Network, Virginia region, the Climate Reality Project, Northern Virginia chapter, and Earthrise Indivisible to support retiring data center grandfathering resolution.

[03:51:27] While data centers have helped Loudoun keep real estate tax rate low, provide jobs, made Loudoun a leader in the industry by hosting the global internet, provide significant share of Loudoun's budget, enabling many public services,

[03:51:40] There are hidden costs in terms of negative environmental impacts to Loudoun's natural ecosystems and human health harming water, air, and soil pollution, community burdens from destructive data center infrastructure, noise, pollution, and changes in land use that threaten Loudoun's very identity, transparency gaps resulting in approvals that keep Loudoun residents in the dark.

[03:52:08] Furthermore, what happens in Loudoun doesn't stay in Loudoun. To Power Data Centers, new fossil fuel power plants are proposed frequently in communities of color, creating an environmental justice issue problem. In addition, global climate change is made worse by the greenhouse gas emissions spewed from new fossil fuel power plants and infrastructure.

[03:52:28] Tonight, Loudoun County has an opportunity to change cores from this dangerous path that led us to rising electric bills, grid instability, adverse human impacts, environmental destruction, compromised quality of life in Loudoun. Retiring the data center's grandfathering clause will prioritize Loudoun residents and our natural resources over data center profits.

[03:52:52] Please do the right thing for Loudoun and beyond. Adopt the grandfathering resolution. Thank you. Thank you, Ms. Pien. Derek Max, you're going to be followed by Gary Ball. Good evening, sir. Good evening. Madam Chair, members of the board, I'm Derek Max, Vice President of the Jefferson Forum and a Loudoun resident. Let me begin with a thank you. This board showed foresight in helping Loudoun become an economic leader that has helped Virginia's economy remain afloat, especially as federal workforce cut back and as other economic headwinds grew. On just 2% of Loudoun's land, of about 45% of dedicated industrial commercial sites,

[03:53:30] you created the conditions that attracted investment, strengthened our tax base, supported our schools, and reduced the burden on homeowners. That success deserves amazing recognition. It also helped protect rural Loudoun. Had Loudoun's commercial sites been utilized for office complexes, fulfillment centers, or modern manufacturing, all of which would require greater employment, demand for housing and public services surely would have pushed deep into Western Loudoun.

[03:53:54] Data centers generate substantial revenue on a relatively small footprint without expanded residential development. But that success relies on trust. Businesses invested here based on the rules this county established, rules that were made in public and vetted by the electorate. When you changed those rules last year, you wisely provided grandfathering protections for projects already moving through the process.

[03:54:16] Please keep that promise. Changing the rules midstream sends a message far beyond the data centers. It tells every employer, property owner, and prospective investor that meeting the county's requirements may not be enough, that yesterday's assurances can disappear with tomorrow's vote.

[03:54:32] Looking forward, I urge you to put back clear, durable, by-right language into the county's zoning ordinances. Define where data centers belong. Establish enforceable standards for noise, setbacks, landscaping, and other impacts. Then let applicants who satisfy those standards proceed. Site-by-site, discretionary decisions invite political pressure, discrimination, reward access, and political influence over compliance.

[03:54:54] Honor your commitments. Build on your success. Make compliance to clear rules the path to approval. Defend your success and reject the fear-mongering, and continue to make Loudoun a great place to live, work, and raise a family. Thank you. Thank you, Mr. Max. You're going to be followed by Gary Ball, who will be on the phone.

[03:55:12] I'm sorry. He won't be on the phone. The person on the phone will be Marquise Jackson. Good evening, Mr. Ball. Good evening, Madam Chair and members of the board. I strongly urge you not to repeal the grandfathering clause. I've been a resident of Loudoun County since 1991.

[03:55:31] Certainly have seen, as others have stated, all of the changes in the county. I've also had the pleasure of building here in the county most of that time. I've done a number of projects throughout the county. None of them have been data centers. But I understand the jobs that it impacts, not just from the standpoint of the electricians and HVAC mechanics and the guys working concrete, but it's all the other jobs that that also supports throughout the county.

[03:55:57] It's thousands of people that are impacted by the work that's done by the construction crews on these projects. And that should be part of what's considered as you look at this resolution. Past that, past the jobs that are impacted, I think it's important to understand from the power aspect of it and the power lines that are being built to support not just the data centers, but the county as a whole and all the other projects that are built in the county.

[03:56:29] Those power lines are largely being built to import power from outside the state because of the Virginia Clean Economy Act that really shut down Dominion's ability to build new power plants. Therefore, we're having to transmit power long distances to get it into the state.

[03:56:49] It doesn't matter if it's Loudoun County or other counties. Throughout the state, that's just the reality we face. Until either Dominion is released of their responsibility by law to provide power to projects, or they're able to build new power plants or have power plants built within the state, that's going to continue.

[03:57:09] There are other options. There are other clean air options and not just solar, which takes up a tremendous amount of land. And I don't think it's as clean as most people think it is. And certainly wind is not a great option here in Loudoun County. We don't have that kind of wind generation anywhere.

[03:57:24] Oh, I'm sorry. I'm sorry. Your time is up. I appreciate it. I apologize. Sometimes you guys are talking. You're interesting. I'm listening. I'm completely looking at the time. I apologize. Marquise Jackson will be on the phone, followed by Jeffrey Hickman. Marquise has not called in.

[03:57:41] Mr. Marquise Jackson has not called in. Thank you. Jeffrey Hickman will be followed by Rebecca Stetter. Good evening, sir. Good evening, Madam Chairperson. I'd like to thank you and the board for giving me the opportunity to speak here this evening.

[03:58:00] And I would like to thank you for the work that you do to help make Loudoun County a great place for me to live and raise my family. That said, Loudoun County is not a great place to live for everybody here today.

[03:58:22] I've come to know the Latino immigrant community in Loudoun through the Leesburg Mobile Home Park displacement. I've made relationships and friendships. I've eaten meals with the Latino community.

[03:58:43] I've gone to church with them. I've made friendships with these people. They are hardworking, faithful, loving, kind people.

[03:59:04] And right now, Loudoun County is not working for them. They live in fear. They live in fear every day. Their children live in fear. This is not America, and this is not what Loudoun County should be.

[03:59:20] I strongly urge this board to support the movement to pass the trust policy for Loudoun County. Thank you. Thank you, sir. Rebecca Stetter, you're going to be followed by Michael Chessier.

[03:59:37] Good evening. Good evening, Madam Chair and members of the Board of Supervisors. My name is Rebecca Stetter. I'm a Loudoun County resident, and I went to high school here. After graduating, I continued my education at Northern Virginia Community College, where I was fortunate enough to participate in the Engineering Technologies Career Scholars Program.

[03:59:55] Through this federally funded program, my studies at NOVA were fully paid for, allowing me to focus on engineering and technology and begin thinking seriously about what I wanted to do for a career. During my studies, I learned more about the data center industry and the opportunities that it provides to people with backgrounds like mine.

[04:00:13] Growing up in Loudoun County, I was also fortunate enough to have those opportunities right here in my own community. I was able to secure a paid internship in the data center industry while I was still a full-time student. The company I worked for was incredibly flexible with my class schedule and gave me an opportunity to gain real-world experience while continuing my education.

[04:00:33] This is why I'm concerned about the proposal before you to remove the grandfathering provision for previously approved data centers. When we talk about data centers, it's easy to get focused on many of the issues that get brought up in the media. But I hope you will also remember this industry represents careers for people like me.

[04:00:51] The land use decisions you make today affect whether those opportunities continue to exist in Loudoun County tomorrow. Removing grandfathering creates additional uncertainty and can make it more difficult for companies to continue investing and creating opportunities here.

[04:01:07] I understand that the board must balance many different interests in Loudoun County, but I hope you consider alternatives that address any concerns while allowing responsible companies with

grandfathered properties to move forward under the rules that are currently in place.

[04:01:24] I want people to be able to build careers in Loudoun County and I want the students to come behind me in NOVA and our local high schools to have the same opportunity to receive, gain experience, and build a career without having to leave the community they call home. I respectfully ask for you to preserve the grandfathering provision in the pathways in the next generation's workforce.

[04:01:42] Thank you for your time. Thank you. Michelle Chesser, excuse me, Michelle Chesser, followed by Madison Taggart. Good evening. Good evening, Madam Chair and members of the board. My name is Michelle Chesser, and I am a lifelong Loudoun County resident. I grew up here living in both Sterling and Leesburg, and today I am raising my own family here.

[04:02:03] I am a single mom of two children, ages nine and six, who attend Loudoun County Public Schools, the same school system I attended growing up. I'm here tonight because over the past year, the data center industry has given me a life-changing opportunity. I participated in the Engineering and Technology Career Scholars Program at Northern Virginia Community College.

[04:02:24] Through that program, I was able to attend NOVA, tuition-free, and earn a data center certificate. That certificate immediately opened a door for me. I secured a paid internship in the data center industry, and that opportunity has now turned into a full-time employment. I remember the Loudoun County I grew up in.

[04:02:42] There were times when funding wasn't available for certain after-school programs or when our parks and other communities' resources needed investment. Today, my children are growing up in the county with outstanding public schools, beautiful parks, and incredible community resources.

[04:02:58] Data centers and the tax revenue and economic activity they generate have played an important role in helping Loudoun make those investments. but their impact is also people like me. The industry has created a career opportunity for Loudoun residents who may not have otherwise had access to them, and I am living proof of that.

[04:03:18] Loudoun County is my home. I want to raise my children here, continue building my career here, and see other Loudoun residents have the same opportunities I had. Please preserve the grandfathering provisions and allow that investment and those opportunities to continue. Thank you. Thank you.

[04:03:33] Thank you very much. That was Michelle. Madison, we have time for three more speakers, and so we'll get one name off the waiting list tonight. So the last three speakers will be Madison Taggart, Dominica Kadat, and then the last speaker will be Daniel Belez.

[04:03:58] Good evening. Good evening, board members. As you already said, my name is Madison Taggart, and I grew up in Latin Valley Estates in Sterling. I'd like you to look at the map in front of you and find our neighborhood. We have the airport on one side, and then data centers on the other side with even more coming.

[04:04:18] When people ask where I grew up, that's the answer I have to give, behind airports surrounded by data centers. But the airport was never much of a problem until lately. Just went until going to Mars takes out all the trees between us, Dulles, and the commercial areas next to it.

[04:04:34] That commercial area is where we said, all along, this infrastructure is supposed to belong. But instead, the line built to power those data centers next to us runs for our neighborhood and onto the Rockridge campus, where me and many of our students of Lowndes County graduated.

[04:04:51] Every data center approved around us needs that power, but nobody asked our families how much one community can take, Where that power is going to be coming from or how many more towers are going to have to go for our neighborhood to get the power where it needs to be.

[04:05:07] The people who live next door are usually the last to know about these projects. After all, my mom found out about the Golden to Mars project from a phone call three months after she was supposed to know.

[04:05:23] I don't love having to come up here and speak. And this is a song and dance that we already know well by now. But what I learned from her is that you can't sit back and hope someone else will speak for me. So here I am. I urge you to adopt the audit motion and give us, the community, notice before any other projects such as this get locked in place around us.

[04:05:46] Thank you for your time. Tell your mom you did a great job. Dominica Kodot, followed by, if I said that wrong, I apologize. I think I probably did. And the last speaker will be Daniel Belez. - Good evening.

[04:06:01] - Yes, good evening, ma'am, good evening. My name is Dominica Cadotte and I live in Broadlands, board-run district represented by Supervisor Sylvia Glass. I moved to Broadlands to raise my children and I thought it was a peaceful residential community and to my shock I found out that Cyrus One purchased a property and received approval for a massive data center under outdated zoning rules with no meaningful community input.

[04:06:28] 85 generators and a substation. I realized that the data center is a polarizing issue. On one hand, there are potential economic opportunities for the county, but on the other hand, the people who live nearby have to suffer because a data center is not an office, it is an industrial facility.

[04:06:52] Zoning has not kept pace with the reality and it's pretty clear that we don't want to live near an industrial facility, for example, like Cyrus One data center. Driving through a data center alley in July with generators at full throttle, one can understand why.

[04:07:07] The pollution dimmed the sky from hundreds of generators and the noise was evident inside the car. You could smell and taste the diesel air. I am sure that each of the members of the board would agree they would not by choice live near a data center.

[04:07:25] I am speaking to my fellow citizens here And I believe that the board is trying to escape responsibility. You can point to past decisions. You can point to what the community chose to be for or against. Point to the authority you don't have.

[04:07:40] However, the responsibility you have is to take the correct actions going forward. You can't have it both ways with voters. It's time to correct some of the irresponsible decisions and the lack of oversight for these industrial facilities that have been plopped down in our neighborhoods.

[04:07:59] I'm asking you to stop data centers and residential communities, and I'm also asking you to do everything you can to stop the Cyrus One data center and problems. Thank you. Thank you, ma'am. And our last speakers. Good evening. Good evening, Chair Randall.

[04:08:14] Good evening, Supervisors. I am the Reverend Daniel Velez Rivera. I am the vicar of St. Gabriel's Episcopal Church here in Leesburg, and I come before you to speak on behalf of the community trust policy in Loudoun County. At the same time, I recognize that some of the protections our immigrant community seeks is beyond the purview of this board. We must therefore be honest about what this policy can and cannot do so that we do not create a false sense of safety for the people. But that does not make this policy unimportant.

[04:08:52] It is an essential step towards restoring trust between immigrant families and the institutions meant to serve and protect everyone in the county. Our immigrant community, as you have heard, is living in fear, as you know. I know that fear firsthand.

[04:09:09] Families are afraid to leave their homes, send their children to school, and essentially people that are being detained or deported choosing between paying rent, maybe becoming homeless, or paying for an attorney. Adults and children feel the absence of family members, friends and neighbors, and that fear may remain with us for years.

[04:09:31] A trust policy can help restore trust, but again, it must be understood as a beginning, not an end. Our hope is that the Loudoun County Sheriff's Office and federal immigration enforcement officials will also be part of the solution, helping create the security our community is asking for, and ensuring that local practices do not cause people to feel targeted because they are immigrants or are perceived to be immigrants.

[04:09:59] You know, dreams and hopes go hand in hand. I always say dreams are free. I say this not only as a priest and community leader, but personally, I'm a United States citizen of Latino descent, and I live with fear. Immigration enforcement creates fear far beyond undocumented immigrants.

[04:10:19] it affects anyone who may be perceived as an immigrant because of language, appearance, or background. - Father, the time is up. Thank you. Okay, all right, so we're not gonna take a break. We're gonna go on and do the information item, which is 10A, which is the grandfathering item.

[04:10:42] There are motions on the information item, which, depending on the motions, We might have to actually go into closed session. I don't know what motions are going to come yet. This could take a while, but most of the room is here for this item, and I do not want to take a break right now or go into closed session while the room is this full of people who want to hear the item.

[04:11:09] And so we'll do the item first, and then we will take a break, unless we have to go into closed session, and then we will take a break. All right. Good evening, Terran, Randall, and members of the Board of Supervisors.

[04:11:27] The item is 16, 15 pages. And we're going to, for the good of everyone sitting here and everyone who's watching, we are going to hear the item. And I talk fast, so we'll go directly. Take your time, Beth.

[04:11:43] Good evening, Terran, and members of the Board. I'm Betsy Smith, the Director of the Department of Building and Development. I'm here this evening to present an information item in response to a request made during the September 2026 Board of Supervisors business meeting.

[04:12:04] At that meeting, the Algonquian and Little River District Supervisors presented a BMI directing staff to prepare a resolution ending the grandfathering provisions of the previously adopted resolution. The chair moved a substitute motion that the board instead direct the county attorney to prepare a legal

memorandum on the proposed amendments and for staff to provide a public inventory of all remaining administrative applications, including location, status, square footage, and number of buildings.

[04:12:41] That motion passed 9-0. In order to provide clarity regarding the basis for and administration of grandfathered administrative applications during the review process, staff prepared the following brief overview, outlining the procedures for acceptance and review of administrative applications and explaining the relevant status categories.

[04:13:06] The county attorney has provided his opinion in a separate document to you all before the beginning of this meeting, so I won't speak to that item tonight. So this information item includes an explanation of the administrative process, site plans and site plan amendments were those applications included in the resolution,

[04:13:34] The conditions of the grandfathering resolution establishes a spreadsheet that identifies the remaining grandfathered applications, their location, their status, the square footage, and the number of buildings as requested.

[04:13:51] A site plan is an administrative process that is intended to confirm compliance with all relevant regulations and legislative decisions, but its sole purpose is to confirm compliance with those federal, state, and local regulations. The process begins with a submittal and acceptance of a site plan, that acceptance is done through a spreadsheet, a

[04:14:29] spreadsheet, I'm sorry, um, a checklist, thank you, Ian, um, that identifies minimum requirements to be able to review the application effectively.

[04:14:45] Then it goes into a technical compliance review. Sometimes that review is two submissions, sometimes it's 10. So that process can be very repetitive in order to get the application in complete compliance with all regulations once that compliance is confirmed it's approved or conditionally approved with the only real difference between a conditional approval and a final approval is that that conditional approval meets all technical requirements in accordance with state law and that final approval gets easements bonds and some other documents

[04:15:21] necessary in order for the county to issue a building permit to construct on property. The grandfathering resolution allows an application to continue processing under the regulations in place prior to the adoption of the ZOAM that changed the zoning ordinance regulations.

[04:15:46] There were several conditions in that resolution as to what allowed an application to be grandfathered. The first was that it had to be accepted for review by February 12, 2025.

[04:16:02] That was confirmation in accordance with that minimum submission checklist I spoke about and that they had paid the appropriate fees. In addition, the data center would have to have been permitted by right under the ordinance in effect at the time the application was made.

[04:16:25] Another requirement was that no structures within the data center complex could be more, I'm sorry, had to be more than 500 feet from all existing residential structures at the time of adoption.

[04:16:42] Say that one again. I think you said it backwards, actually. Had to be greater than. Okay, exactly. All structures had to be more than 500 feet. Yes, there you go. There you go. Sorry if I said it backwards, but yes, all structures had to be more than 500 feet. Yes. An administrative application that met

all of the other requirements was allowed to amend the site plan, if possible, to create that greater than 500-foot setback, but those amendments had

[04:17:18] to comply with the conditions outlined of a non-substantial amendment in the resolution. Amendments were allowed, as I said, but they could not be substantial amendments, and the resolution clearly outlined what those conditions were.

[04:17:36] There were about six conditions for it not to be a substantial modification. And then finally, they must continue diligent pursuit of the approvals as described in the resolution. Some of the data centers that were processed under this resolution were really grandfathered by the XOR grandfathering resolution that had been adopted in December of 2023.

[04:18:07] And so the circumstances around those grandfathered applications were a little bit different, but were considered throughout the process of determining eligibility for the grandfathering resolution. So the meat of what we all really wanted to talk about today The applications that are still subject to that grandfathering resolution.

[04:18:31] There are currently 15 applications in review. That number, as you can imagine, is constantly changing as we conditionally approve and approve those applications. There are four applications that lost their grandfathering status due to lack of the due diligence as described.

[04:18:50] and one that is not currently grandfathered, but may be able to amend in order to comply with the 500-foot setback from any residential structures. So as you look at the first table, which is those that are 15 applications currently in review, numbers have been batted around a lot, but I will repeat, there are 30 buildings at about 10.5 million square feet currently in review.

[04:19:20] There are four applications with 10 buildings at about 1.8 million square feet that have lost their grandfathering but could continue to pursue other ways to get back those grandfathering rights.

[04:19:37] And then there's the one application I spoke of of about 100,000 square feet, one building that believes they can comply with a 500-foot setback but has not yet resubmit that application. They also included a map to help understand the location of these for the board to see who's in their magisterial district and how they sit next to residential and other uses in the area.

[04:20:11] Second. Mr. Letourneau, are you on the phone? Oh, I'm sorry. Okay. All right. Yes. I said Dulles and you thought I did. Sorry about that. Keep going. No problem. We also chose to inform the board about some potential impacts of the decision tonight, if the decision were to cease the grandfathering resolution.

[04:20:42] So some of the potential costs with likely litigation would include the need to disclose that litigation and then the cost to prosecute and or pay damages should we not be successful during that litigation.

[04:21:03] The county attorney's office was kind enough to help us establish some of those potential costs and determine that about a million dollars per case to litigate and if we ended up paying for damages and or fees for the litigants, it could approach 45 or up to 45 to 60 million dollars in potential liability.

[04:21:32] The board would be obligated also for our bond rating companies to identify a funding strategy in order to try and protect our great bond rating and the potential revenue impact should our bond rating change.

[04:21:53] And the other item kind of spoken to by a couple of your speakers this evening, and I know Mr. Reiser has spoken to this a bit, some of the implications of changing Loudoun County's reputation as a business-friendly community and how that can impact more than just the data center industry, including the trust that businesses rely on, the rules and commitments made.

[04:22:22] While people have identified the county does have the right to strengthen its standards, reversing an established process is not perceived to do that by industry, and then that continued success and diversification of the business sector is dependent on preserving that trust and confidence to attract new business.

[04:22:46] Any further questions? I'm sure. I'm sure. So, Supervisor, this is what we're going to do. We're going to ask the questions first on the item, and then we will go to motions.

[04:23:03] And if we have to stop because one of the motions could put us in a closed session, we will do that. But the first round of questions, and we're not going to – I thought about doing a committee as a whole. We have a lot of agenda left in front of us, so we're not going to do a committee as a whole.

[04:23:19] It's just going to be questions on the item itself that we just heard. Mr. Letourneau and Mr. Sainz, you were both on, correct? Yes. Yes. Okay, great. All right, if you have questions for staff on the presentation alone, please put your lights on.

[04:23:40] Ms. Bricksman. Thank you, Chair Randall. Well, I'm not sure if this is for the staff at the table or for Mr. Rogers. Why was this an information item rather than an action item?

[04:23:56] Are you asking to go through the chair to Mr. Rogers? Mr. Rogers? Because the pause was an action item. That was the motion. The motion was to come back to the board, both with the memo and with information on grandfathering. Okay. That was the motion. Why were no other options presented in the county attorney's memo to help the board get to the end result that many of us want to get to? Madam Chair, may I answer that question,

[04:24:32] please. Sure. Are we talking about the memo that I sent the board, the confidential memo? Yes. That memo was a legal analysis of the possible outcome should the resolution amending the grandfathering, to amend the grandfathering resolution, what the possible outcome could be.

[04:24:52] It was not intended to come up with alternatives. Okay. And then if the board were to, if the board were to decide that it wanted to shorten the grandfathering resolution, grandfathering clause, would a resolution be required similar to the resolution that we will consider on the 20th for the pause?

[04:25:18] Thank you. Yes. As the resolution was adopted, I would say that any amendment would be done by resolution. And I would also urge notice to applicants, notice to the public as part of that. process. Okay. Madam Chair, I have a question also for Mr. Hemstreet. Mr. Hemstreet, yes.

[04:25:40] Mr. Hemstreet, you have always said something very clear to us when we are presenting to the bond rating agencies. My recollection, and I've done that twice as finance chair up in New York City and here, and my recollection is the bond rating agencies are concerned about basically one thing, and that is our ability to pay our debt, and if the board would be willing to take actions, should we get into trouble paying our debt? In other words, either raise taxes or cut services.

[04:26:17] Is that recollection correct? That is generally our concern, yes. Okay. Are we at all in danger of not being able to pay our debt? Not currently. Okay. And with With the projected revenue, even without

new data centers, do you think that we would be in any situation where we would not be able to pay our debt, given that we have more than \$100 million in a reserve fund?

[04:26:43] So, provided the board continues to have a collaborative and cooperative relationship with the existing industry, I do not see a reason why that wouldn't continue. Key word, existing. Thank you. Mr. Kirshner.

[04:26:58] Thank you, Madam Chair, and thank you for the presentation. First of all, I'm going to just, and I'm sure that you guys really, the \$45 million, the \$60 million in potential liability, I think, is significantly low. That's just my take on it, my rough back of the napkin figures to the county attorney.

[04:27:16] But obviously, you guys crunched some sort of numbers. I do have a question on the bond rating agency potential impact. This was always a concern that I have any time we decided to go down. I don't think there's any motions here on the table given the direction that we've been given by our county attorney to actually eliminate grandfathering tonight.

[04:27:38] I don't see any motions on the table here that have been presented. But there are some motions in terms of auditing and things like that. But let's assume for purposes of the discussion that we were to undertake this sort of bond rating. We were to basically intentionally walk ourselves into significant litigation.

[04:27:55] How could that impact our bond rating with the bond rating agency specifically? Would it have largely to do, and I'm asking through the chair probably to our county administrator or even the county attorney. Would that be as to the uncertainty and where that would look as well?

[04:28:13] Could you potentially answer some of that, those thoughts through the chair, Madam Chair? Mr. Hemstreet or Mr. Rogers, either way. Yeah, so there's no question that data center revenue in the data center industry is highly important to Loudoun County. And so what anybody investing in the county would want to see is that the board has a collaborative and cooperative relationship with that industry.

[04:28:38] Now, having said that, you know, if the board wants to have a professional deliberate discussion about where new expansion or new development occurs, the board has the right to do that.

[04:28:57] I think what the industry would, I'm sorry, what the rating agencies would want to see is that the board is approaching the industry in a considered and measured and deliberate manner. And can you just, do you have, and this may be off the top, and if you don't have the answer, that's fine.

[04:29:14] Also through the chair, Madam Chair. Yes. A quarter percent change in our debt service costs how much to the county? A quarter beat. I'm not sure I understand your question. On the interest rate that we have to pay for bonds.

[04:29:31] So if you change that a quarter, how much does that cost the county? I would have to get back to you on that. I'm not going to calculate that. It would be in the millions, though, just on our debt service, correct? I'm not going to calculate that. Fair enough. Mr. Govan, would you come down to the table?

[04:29:47] Because there may be some questions for you as well during this conversation. Mr. Letourneau? I don't have any questions. Mr. Sains. Yes.

[04:30:03] So in the presentation, staff mentioned, and I think they said four or five that are currently not, or lost grandfathering, but said they could get back into grandfathering. How is that possible they would get back into grandfathering? It was one. It was five.

[04:30:21] One possibility would be that they make a vested rights determination request of the zoning administrator and the county attorney. One would be that they provide substantial evidence that our calculation of the six months lapse in submittal and due diligence was inaccurate.

[04:30:43] And in evaluation, we concur. Those are the two scenarios that I could find off the top of my head that would allow them potentially to regain grandfathering. Madam Chair, can you go to the slide?

[04:31:01] Can you go back to that slide, please, real quickly? There would be one other way. That is a protection under 15.2-2303 if they've dedicated substantial cash and real property. The need for an itch wasn't solely generated by the development.

[04:31:19] Okay. So those four, so it's four on this list, it looks like, right? Yeah, four. Those fit those three or four potentials that staff just mentioned, or there's other issues? If you'll note, too, in the table, Supervisor Sains, there is a footnote to the first application on that list, which is the Allegro North.

[04:31:43] They have submitted a request for a determination from the county administrator and the county attorney—zoning administrator. Sorry, Tim. And the county attorney to determine if they met that criteria for rights to proceed.

[04:32:03] Okay. All right. Thank you. Mr. Turner? Thank you, Madam Chair. I just want to state, cut to the chase, because then I want to talk about these tables.

[04:32:19] I don't support changing grandfathering after this board debated it and publicly made a decision about grandfathering. Going back and telling businesses these are the rules and allowing the businesses to make million-dollar decisions based on those rules and then subsequently going back and saying, okay, now we're changing the rules, to me, is just unethical.

[04:32:39] Yeah, I understand there are legal implications, but to me, it's just unethical. We set the rules. Businesses made decisions based on those rules. We live by the rules. That's just how I feel. On the top two tables in the item, I just want to review so we're on the same page.

[04:32:56] So approved between March 18th, which was the date of the grandfathering resolution or motion, and September 21st, those were all approved. They are legally vested. That means they are protected legally because they are either conditionally approved or approved.

[04:33:13] But they could have been grandfathered by the zoning ordinance rewrite in 2023. They weren't necessarily grandfathered by virtue of the motion on March 18th. They were just still alive by virtue of some grandfathering determination, and they were approved between March 18th, when we passed that motion, and now.

[04:33:32] It doesn't necessarily mean they were grandfathered because of that March 18th resolution. It just means they were kept alive by some grandfathering provision, either the Zoning Ordinance Rewrite in '23 or the March 18th motion. - That is correct, Vice Chair Turnbull. - Okay.

[04:33:48] The second table is saying they are grandfathered by some feature. So for example, the gentleman that spoke on the Cyrus One application, that was submitted in 2023 and it was finally approved in the summer of 2025 and you and I talked The way that happens is every time they submit a site plan change and board looks at it and makes referrals and may make comments, they have up to six months to respond to that suggested comments, and then they have to make another action.

[04:34:26] So these that are in review have basically met a grandfathering provision, either 2023 or the March 18th resolution, And they have kept the clock alive by making a change or responding to board comments no greater than every six months since the application was considered.

[04:34:47] That's why they're still in review, correct? That is also correct. Some applications, not just data centers, but some administrative applications take seven, eight, nine resubmittals through that process to get to a technical approval.

[04:35:03] So the ones in the top table are vested. They are legally protected based on the conditional or the actual approval. The ones on the bottom are still being considered and are subject to review. That is correct. Okay. Thank you. So I just want to pick up on what my Algonquian Districts colleague just said.

[04:35:22] She said, as long as we can show our ability to pay our debt by either raising taxes or cutting services. I'm not one to do either of those things. Let me tell you what the other word is for cutting services. People losing their jobs. services are jobs that people have. The services are jobs that are provided by people who work in our county. And we're not overstaffed. In fact, if anything, we could be a little understaffed in many departments. So cutting services to the citizens of Loudoun County and cutting jobs

[04:35:59] to the employees of Loudoun County is not something I'm going to do. Raising taxes. In this economy, I'm trying to get taxes down. I'd like to see the car tax get to \$1. I'm not at all willing to raise.

[04:36:14] People cannot pay rent right now. They can't steal your carpet gas, can't eat, medical costs. I'm not raising taxes, and I'm not cutting services. So we can talk about a lot of things, but those two things, for me, are completely off the table.

[04:36:34] On page 13 of the item, you said, I think you said, we might have to disclose, but you didn't say to whom we would disclose. And what are the potential revenue impacts of a bond rating change?

[04:36:53] I guess this goes to what Mr. Kirshner was asking, because I know that we kind of say, we have a triple-triple-A bond rating. and we say it all the time, and it sounds great. And I don't always know that, you know, I had to really realize the AAA bond rating meant we were borrowing for a lot less money.

[04:37:14] And that really does matter a lot. And so as much as I believe with 233 data centers in Loudoun County, we do not need any more data centers in Loudoun County. I believe that. I also do not want to damage our bond ratings.

[04:37:30] I do not want to cut taxes, I mean raise taxes, and I do not want to cut jobs. There has to be some ability to get at a middle ground that protects people, protects land, and not have people lose their jobs and pay taxes, which is going to tax people out of their homes in our county.

[04:37:56] Those things I'm not one to do. So when you said the words, we might have to disclose, who are you talking about disclosing? to, and if you're talking about disclosing to the bond rating agencies, what are the potential revenue impacts of a bond rating change?

[04:38:14] So I'm going to have to defer either to Mr. Rogers or, you got it, or Tim? Okay. Somebody else. So significant litigation and impacts from significant litigation need to be disclosed in our financial statements.

[04:38:32] So that typically is a request that comes from the Department of Finance and Procurement during the preparation of our annual audit papers and goes to the county attorney who provides that

number. When we are talking about new debt issuance, we would also disclose that information on significant litigation as well as part of that process with the ratings agencies.

[04:39:01] Again, it goes back to needing to demonstrate that the board is responsible in its finances and so that it's going to be deliberate as well as reasonable and thoughtful about how it handles financial and economic policy.

[04:39:23] There's no question you have a right to look at anything that's in the county or any industry in the county, whether it's, in this case, commercial, industrial types of growth, which data centers kind of fall into, or residential, and say, hey, we have a lot of this.

[04:39:43] We need to think about how the industry continues to grow or where it grows. You have a right to do that. But what they're going to be looking for is, how are you doing that? Are you working collaboratively with the industry?

[04:39:59] You know, are you doing things in a way that does not adversely impact the existing base? So those are the things that you would that would be considered as part of that dialogue. OK, thank you, Mr. Rogers. I know that there might be a motion from my colleague who is sitting in London right now.

[04:40:18] Let me know, do we need to go to a closed session before a motion or does the motion need to be made? How is that? How does that? How would you like to do that? Madam Chair, to have a full discussion on this and what is possible, I would recommend a closed session.

[04:40:34] Okay, before a motion made by Mr. Sains, that does not include the motion made by Mr. Crony, we can go in and do that one? That's correct. Okay, all right. Are there any other motions on the dais right now? I know Mr. Sains has a motion, I know Mr. Crony has a motion.

[04:40:50] Are there any other motions on the dais right now that I don't? Mr. Kersner, you have a motion? I don't have a motion, I have a question. I don't have Mr. Sains' motion. I don't either. Was that sent out? I'm not aware of any motion. I do not either. Okay. Let's talk about the closed session. Okay.

[04:41:06] Yeah, let's talk about the closed session. Talk about why we don't have a motion. I'm sorry. Well, yeah, yeah, well, yeah, because, yeah, yeah. Okay, but Mr. Crony has a motion, and we, well, actually, Mr. Crony, your motion came at 315.

[04:41:22] No, no. No, no. I mean, you sent two out. I think you sent two out, right? No, I sent the one at noon. Get you in your microphone. Yeah. And that's the same one? So you didn't change it? Oh, I thought you guys, I thought you were going to change it. Nothing changed. So the one that came in at 1227 is the same one.

[04:41:39] Wonderful. Go on and let's make that motion. Before 12, it should have been before 12. Okay. Okay. I move that the Board of Supervisors direct the county administrator in coordination with the county attorney to retain an independent third party to audit the applications in attachment 2 in 10A response to board member initiative amendment to the 2025 data center grandfathering resolution for which a building permit has not been issued to determine whether each applicant has expended substantial funds and actively and diligently pursued its project in reliance on a government approval and whether any action or change in circumstances has divested any

[04:42:19] grandfathering status it acquired. I further move that the county administrator is authorized to expend funds up to \$200,000 for the independent third-party audit from currently appropriated

contingencies and is authorized to execute any necessary budget amendments needed to pay for the third-party audit.

[04:42:40] I further move that staff return to the board with an interim report at the January 20th, 2027 business meeting and a final report no later than April 20th, 2027. - Okay, motion is made in a second. Hold on. Point of clarification. With respect, Ms. Tocroni, I thought I saw a motion from you that came in that had different dates.

[04:43:03] The staff gave the different dates. So then more than one motion did come in. I had put in a motion by noon that was not fully. The time's fine with me. I just want to make sure. Not fully. This is staff's reviewed motion.

[04:43:19] So two motions came in, and we're dealing with the second motion that came in right now. Right, but it's the staff reviewed motion. Okay, that's fine. I just want to, I'm not, I'm not, I'm not, I'm not giving you a hard time. I'm just making sure we're all working off of the same motion because more than one came in. So I'm going to read that motion one more time just to make sure we're all working off the same motion since more than one came in. Okay.

[04:43:40] I move the Board of Supervisors to direct the county administrator in coordination with the county attorney to retain an independent third party to audit the application in attachment 2 in 10A, response to board member initiative.

[04:43:54] Amendment to the 2025 data center grandfathering resolution for which a building permit has not been issued to determine whether each applicant has expended substantial funds and activity and diligently pushed its project in reliance on a government approval and whether any action or change in circumstances has divested any grandfather status it acquired.

[04:44:24] I further move the county administrator is authorized to expend funds up to \$200,000 for the independent third-party audit from currently appropriated contingencies and is authorized to execute any necessity, any necessary budget amendments needed to pay the third-party audit.

[04:44:43] But this part's important because this was not in the first one. So I further move the staff return to the board with an interim report at the January 20, 2027 business meeting, and a final report no later in the April 20 of 2027.

[04:44:58] Correct. That is Ms. Crony's motion, seconded by Ms. Bricksman. Is that correct? Yes, but I do need to make a small amendment of a word that was missing any grandfathering or vesting status it acquired. That kind of changes the motion. Well, that's what was in...

[04:45:14] Was that meant to be there the first time? Yes. It was. It was. Okay. It's just that word... Okay, so you were under the first paragraph, ma'am? Yes. It's the last sentence. Any grandfathering or vesting status. Any grandfathering or vesting status.

[04:45:32] It acquired. Yes. I do think I saw that in the first one. Okay, so that's why I'm just trying to make sure we're all working from the same motion. All right, motion was made and seconded by Ms. Brixman. Discussion on the motion, Mr. Crony.

[04:45:48] Thank you, Chair Randall. So I do want to say that we shifted the proposal after getting the county attorney's determination that it would be risky. So the new proposal is to determine which previously approved impending data center applications, uh, retain legal vesting, vested rights. It would

focus on a review of all undeveloped data center projects in attachment to. So in the attachment that we just talked about, all of them, not just the ones that are grandfathered, um, and that do not have

[04:46:24] a building permit. What is the intent of the audit? The purpose is to build community trust with transparency, with an independent evaluation. Audit is for due diligence and continuous improvement. We owe it to the community.

[04:46:40] It will assure residents that we not only care about data center development, but we also care about their health, safety, welfare, quality of life, and property values. I will say that we've been developing data centers for 26 years, and we have not completed an audit for transparency and oversight.

[04:46:56] And we have the authority as the board for that oversight. We have that authority. The 12-month pause gives the board time to hire an outside consultant to perform a comprehensive look at our review process.

[04:47:13] Audit is not a formal vesting determination. It is an audit of implementation of grandfathering and vested rights to make sure that the review that we're doing is in the best interest of the public. It is really for transparency.

[04:47:31] I hear about trust to the data center community. Well, what about public trust? What about the trust in our public? Their quality of life is being impacted and we need to be looking out for them as well. The public relies on the vision of Loudon in the comprehensive plan And I think that we need to uphold that vision.

[04:47:55] We need to keep our word to the residents. We need to uphold our reputation as a good place to live. I'm going to say the whole vision that we have, to live, work, learn, and play. That deserves equal attention, not just data center development.

[04:48:13] We have 233 data centers on the ground with 116 in the pipeline. And a lot of them are approved. That will bring jobs, that will bring jobs, and it will bring revenue. We know that we have jobs and revenue.

[04:48:29] Nobody is saying we don't have jobs that are coming with 116 in the pipeline, and we know we have revenue. But we need to look out for our residents. And this is doing the due diligence that I think the public is asking for.

[04:48:45] Thank you. - Thank you, Mr. Crony. Mr. Rogers, before I go on to my other colleagues, will you describe what is your process if you were to do this process? You do this process already. Will you describe what's your process when you go into auditing what we do or don't do?

[04:49:05] So, first let me describe what we do. Okay. We go through a process of doing vested rights determinations as they come in from property owners. It is the property owner who's asserting that they have a vested right. With that, they provide documentation of the factors of vested rights.

[04:49:23] Factors of vested rights is a significant affirmative governmental act, good faith reliance, and substantial expenditure. The first one we can verify because that's a governmental act and we can verify that that happened. Substantial expenditure and detrimental reliance are totally within the scope of the property owner.

[04:49:42] We have to rely on them for what they provide to us. We verify it to the best we can, but we have to get that. from the property owner. When we do that, we put the vested rights determination up on

the county's website. I don't know which one you put that on, but it comes from the zoning administrator along with the county attorney signing off on it. Anyone from the public can view vested rights determinations. I also want to touch on grandfathering because we review each and every application every time it's submitted to make sure it complies with each of the items in the grandfathering resolution.

[04:50:18] The grandfathering resolution is different than vested rights. They may be associated, but they are different. Grandfathering is fully under the resolution itself, and we make sure that each application continues to meet the condition of grandfathering.

[04:50:36] If it does not, we send out a letter indicating that they've lost their grandfathering status. Thank you. Ms. Bricksman. Thank you, Chair Randall. I'm supporting this motion because I agree with Supervisor DeCrony that the community deserves transparency.

[04:50:53] I am going to push back on some comments. I am in no way suggesting that we raise our taxes or cut services. My point in seeking clarity on what the bond rating agencies are looking for is to dispel any sort of rumors or misinformation out there that taxes will go up and our bond ratings will falter if we stop building new data centers.

[04:51:21] That is a big lie. In tax year 25, the total personal property tax assessed value was \$25 billion. The data centers were \$17.3 billion of this total, 69% of the property tax assessed value.

[04:51:36] In FY27 budget, data center revenue was budgeted at \$879 million, which is almost 80% of the personal property tax revenue. Of the county, total general fund property tax revenue, \$2.6 billion comes from data centers.

[04:51:54] And over 48%, almost \$1.3 billion, that is coming into the county right now. that is based on existing buildings existing properties that is based on an industry that is here and those that are permitted not based on new builds and forecasts indicate that that revenue will continue coming into the county for five to seven years if not longer and it will probably increase if we don't build one more data center because the equipment value is increasing in the data centers that are there now. In tax year 26, the data center personal property computer

[04:52:31] equipment assessed value was projected to increase 8%, but the initial levy report from the commissioner of revenue indicated that the assessed value had grown by 27%. We are not going to be in a situation where we cannot pay our debt anytime soon. We will not be faced with a situation that We have to raise our taxes or face faltering bond ratings anytime soon.

[04:52:55] In FY24, the board established a revenue stabilization fund. It is now funded at \$120 million. If we have faltering revenue from data centers, we have \$120 million. We are also allocating excess revenue over our operating growth rates to the CIP and housing fund, which can always be drawn down if we were to have problems with revenue from data centers.

[04:53:17] Again, the existing revenue from data centers is not going away. Of that excess revenue, \$26 million went to the CIP, and \$6.6 million was allocated to the housing fund. Don't be threatened, community, by the misinformation that your tax rates will go up immediately if we stop building new data centers.

[04:53:40] And don't buy into the threats that our bond ratings are going to falter if we stop building data centers. They are gobbling up all of our developable land and constraining our ability to build affordable

housing and diversify our economy. Your time is up. Thank you very much. I'm going to go to, just so I don't forget them, because if I don't go to them, I will forget them. So I'll go to Ms. Letourneau.

[04:54:03] Thank you, Madam Chair. All right. Well, let's get to the point, though, on what that argument is about, which is essentially what would happen if we attempted to change the grandfathering and didn't permit these data centers. And everybody's missing the point. It's not just the money and it's the revenue. Without getting into the attorney-client memo, it's the fact that we can't do that. It's not going to hold up. So it's not going to happen anyway. So this is an immaterial argument. That's number one. Number two, we've got to stop with these performative discussions. Every single person on this board knew what the answer was going to be to this

[04:54:39] question before it was asked. And if they didn't, they certainly should have or they shouldn't be sitting on the board because it's very obvious from a land use perspective what's permissible and what isn't, right? I said it at the meeting we made this motion on. So specific to the audit motion. I don't understand how we build community trust by the board passing a motion saying we don't trust the staff and their process and determinations of what is vested and what is grandfathered or not. This is an insulting idea for the staff that works very hard every day to

[04:55:15] get this right and is very deliberate about it. So deliberate that the board gets frustrated because it doesn't happen as fast as we want. We have a county attorney's office. We have planning and zoning. If we're not satisfied with the quality of the work that they're doing, then that is a management issue that we need to address with the county administrator.

[04:55:36] Why would a consultant that we hire understand our zoning ordinance better than we do? Better than the people who wrote it in the most recent rewrite, and better than the county attorney's office that interprets it every day? And let's say they do. Let's say there's a disagreement. Let's say the audit doesn't agree with the determination, then what do we do? Are we going to then take away the grandfathered status for one of these projects based on a consultant recommendation?

[04:56:05] And where's that going to go? The same place that this discussion goes, right into court, because ultimately staff has made a determination. I do not like where we're going with this precedent, because this could happen with anything that we don't agree with or we don't like. There have been decisions that I haven't been thrilled about in terms of some of these determinations over the years. But the answer is not to go undermine the staff, even when we disagree with that, and go try to hire somebody to then go back and redo the work. There's a couple things I do agree with. That is transparency, and that is the actions that the board has been taking

[04:56:44] to try to get control of some of this process. We don't need an audit to be more transparent. We're already being more transparent. That's the entire project that we've been working on to get these things online. We should be more transparent. I'm willing to work with anybody on ways that we can do that. But the answer is not to go out and spend \$200,000 to second guess the work that staff has already done. It's insulting. Thank you, Ms. Letourneau. Mr. Sains? No comment. No comment.

[04:57:20] Okay. Ms. Umstead. Thank you, Madam Chair. I do very much agree with Supervisor Letourneau. So Supervisor Tacroni laid out a number of goals, I think, for this audit, but the motion does not capture most of them.

[04:57:49] What the motion does is pretty much what Supervisor Letourneau laid out, which is to pay an extra \$200,000 to an outside consultant who, as Mr. Letourneau said, doesn't understand our zoning process and our building and development process and perhaps our legal process as well as our county staff do. I don't, this motion is not going to solve the public's concerns about air

[04:58:24] pollution or electricity bills. It just seems to do nothing more than we already do with our current staff, so I will not be supporting it. Thank you. Thank you. Mr. Kirshner. Thank you, Madam Chair. I just want to first thank the Chair for her wisdom in sending this to our legal department. It's why we're here because the maker and the seconder of this motion would have taken us right down a path of litigation, which we've already talked about, with their motion the first

[04:59:00] night that we came to this, which ultimately was just to eliminate grandfathering without seeking legal counsel or anything along those lines. I think that is ridiculous. I think, quite frankly, it is wise to listen to your lawyer. They say a lawyer who represents themselves has a fool for an attorney, and quite frankly, we don't want to be there. So we need to listen and heed the legal advice very, very carefully.

[04:59:22] This is also, I agree with Supervisor Letourneau 100%. This is a complete, this motion is a complete slap in the face of our staff and saying you guys just aren't doing a good enough. For what? For some political, cheap political points. And I'm just going to lay it out. That's exactly what it is. And staff is on the spear end of that.

[04:59:38] I find it insulting, just like Supervisor Letourneau mentioned in his comments. Listen, we want to balance our community. We want to make sure we have excellent neighborhoods and excellent commercial development. And sometimes those are clashing. We have been, as a board, have done, I think, a pretty good job, and we continue to do it, not only by eliminating by right, but we have also, by trying to improve our data center development standards.

[05:00:02] We've done phase one, now we're working on phase two. But being distrustful, dishonest, or, and quite frankly, there's something to be said about honesty, integrity, and trust. And because we can't get, because we can't get rid of grandfathering, Let's go after the industry in another way and try to figure out if any of them is not telling us the truth and then distrust our staff in the process.

[05:00:22] That's exactly what's going on here. Listen, auditing is just another big brother option to go after our industry. And I think we often forget what this industry has done for Loudoun County. It was mentioned by dozens of folks in the audience. Let me just point out a couple. In 2007, 81% of our revenue came from homes.

[05:00:42] Now close to 50% comes from a commercial, large part of that, which is data. And as a result of that, Loudoun County now has world-class schools, world-class firehouses and emergency services, world-class libraries, world-class parks and recs, world-class law enforcement.

[05:00:58] We have incredible millions we spend on roads. We have lower taxes, especially on our car tax, than our surrounding communities. We have thousands of jobs as a result of this, and we have affordable housing. And the list goes on and on and on. And the cost, if we start keep going down this road, could be enormous. It's going to be in the billions. I actually spoke to a couple of attorneys who are representing something.

[05:01:17] The lawsuits will be in the billions if we keep going down this route that we're going. So I just want to bring it all together and says, if we forget where we've come from, we're bound to repeat it. But

that doesn't mean there doesn't have to be a balance. But I'm sufficiently satisfied that our staff can handle exactly what they're doing, as described by our county attorney, and that is look at whether or not these data centers are grandfathered or not.

[05:01:42] And now we're talking about opening up vested rights. Big mistake. I will not support this motion. Thank you, sir. Ms. Glass. Thank you, Madam Chair. I have a friendly amendment to this.

[05:01:58] Sure. The friendlies, I would like to include the TELUS Data Center in this audit, STPL-2023-0007. That data center was conditional approved in 2024 and has not begun construction.

[05:02:13] Wait, wait, wait, wait. What are you? I'm sorry, go on. I don't know what your friendly amendment, that to, I mean, to the list? To add that to the list. So it's not on attachment to? It's not on the attachment. Wait, stop her time.

[05:02:33] Because you're not actually really trying to give a friendly amendment to her motion. You're saying add something to the list if the motion were to pass. Yes. Oh, that's not really about her motion. Now, staff, if this motion were to pass, can we add that?

[05:02:55] Can we have a discussion about adding the Telos Data Center to the list? We'd be happy to do the research to understand whether it belongs on the list based on the criteria. Okay. It's okay? But that's not a friendly amendment to the motion.

[05:03:11] Okay. Okay. All right. And let me just confirm, Telos Data Center, and you said it's STPL 2023-0007. Yes. Thank you. Thank you. Can I just add that in this conversation, I don't view it as we don't trust the staff because we do trust staff.

[05:03:32] We have an excellent staff. But I don't see a reason why it wouldn't be beneficial to have eyes from somewhere else to add into the conversation. That's how I see it.

[05:03:49] Thank you. Thank you, ma'am. Mr. Turner. Well, now I've got a bunch of questions. So can I just ask staff, why would TELUS not have been included on the list when you compiled the list? We would have to research the date that it received conditional approval.

[05:04:07] That would be the first thing that would come to mind. I don't know why it wasn't included on the list. Okay. And just to be clear, so the way the motion reads right now, we want to audit all the line items on this list, which would include the five that are not grandfathered, which are going to have to come to us for respects anyway.

[05:04:33] You want to audit those, even though they've already lost their grandfathering status. That's how your motion reads. Is that a question for her? Well, it is. Is that the intent? Well, mainly it was the 30. The 30, not necessarily the other. I was just picking attachment two because I was trying to give a snapshot.

[05:04:51] So then I would offer friendly audit the applications in Table 1 and 2 of Attachment 2 in the 10A responses, which covers the 30 that you're talking about. Yeah, that is fine. Okay. That's a friendly? That's a friendly. I accept that.

[05:05:07] Ms. Rixman? Yes. Yeah. The next question I have is, and Supervisor Oterno put a fine tune on it, but essentially we're paying \$200,000 to have an independent auditor not familiar with our processing, with our processes, to come in and find that staff has made a mistake in one of these 30 applications.

[05:05:30] That's really what we're saying. I have talked a bit with staff to refresh in my mind the process an applicant has to go through to get conditionally approved. Let me just state, this is everything, right?

[05:05:51] Everything in the pipeline now is going to have a specs attached to it and have to come to the board for approval. Is that correct? So the only ones that we're arguing about or we're talking about are the ones that are already conditionally approved or the ones that are covered by the grandfathering and are in the pipeline.

[05:06:08] All the other ones that are in the pipeline under the March 18th motion are going to have to come to the board with the specs attached. We cannot anticipate future requests for vested rights as Mr. Rogers described earlier. Other than that.

[05:06:26] So the ones that are in here and the ones that have conditional approval would not be coming to you. The ones that are grandfathered, assuming they pursue their site plan approval, would not be coming to you as well. Right. The only ones that I think...

[05:06:43] Everything else should need a specs. That's correct. The only thing we could get would be vested rights determinations, that they've already been approved, or that they're protected because they've proffered substantial cash, real property improvements that weren't solely generated by that development.

[05:07:00] Those are the only exceptions. And they would get added to the first table? No, they would not. That's a vested rights determination, so that's something a bit different. There is one other opportunity.

[05:07:16] Not all of those applications have applied for building permits or begun construction. So while they would not be on this list and they have that approval, they may not have gotten to the point where people are seeing any activity or they could have been approved up to five years ago and just not obtained building permits yet.

[05:07:39] So while that doesn't neatly fit in any of these categories, they are ones that could come forward and start constructing that were not discussed tonight and have not already begun construction. Okay, Ms. Tackley, time is up. I have one question.

[05:07:54] We are assuming that if this were to pass, that the applicants themselves has to talk to an auditor. Do they have to talk to an auditor? Do they have any legal compelling case?

[05:08:13] Do they legally have to even talk to an auditor? They do not. Okay. They do not. They don't. We cannot make them talk to an auditor. They might want to, but they might not.

[05:08:28] We cannot legally make them. I also don't know, because it says in here, we talked about substantial funds. Who determines what substantial funds are? When we say substantial funds, if substantial funds are spent, who determines that?

[05:08:47] So the applicant property owner demonstrates that they've made a substantial expenditure. That is something the staff would look at in a vested rights determination. If there was a disagreement, a court would make that determination. Would the staff have to sit with an auditor or a consultant to review the material with them?

[05:09:09] Mr. Hempstead, that might be a question for you. At least for some of it. We're still thinking through the scope, but that is a possibility. So the people we're talking to, the applicants, the landowner, do not have to legally talk to an auditor.

[05:09:28] Nothing compels them to do that. The staff has to sit with them, an auditor, anyway to review the information, to give them the information. We do not know what they might consider a substantial expenditure.

[05:09:47] There is no one, Mr. Crony said something, and she says it often, and I do appreciate it. We have been building data centers in Loudoun County for 26 years. There is no one in the right mind that cannot say that there have not been mistakes made in the past 26 years.

[05:10:04] If we could rewind the clock, if boards before us could rewind the clock, we'd do a lot of things differently. We just absolutely would. And I don't think, I say this all the time, I don't think there's anything wrong with saying we've made mistakes because we've made mistakes.

[05:10:20] We didn't do it purposely, but we have. Having said that, to spend \$200,000 right now to have somebody else look at the books when they don't even have to, when the people that they're asking to give the information don't even have to give the information, it's not a logical thing to do.

[05:10:40] We do it, and we put it on a website, so it is transparent. We are very transparent. Our staff is very transparent. And so what we're asking for them to do is not logical. We can't make them do it.

[05:10:55] Supervisors, I'm going to make a motion to gently lay this on the table to an undetermined date. Motions made to lay this on the table been seconded by Mr. Turner. There is no discussion for a motion to lay something on the table.

[05:11:11] It takes a simple majority. All in favor of laying this on the table, please say aye. Aye. Opposed? Opposed? Nay. That motion will pass 7-2 to lay this on the table. We're going to go to the next item now. The next item we're going to do...

[05:11:29] Are you all good with the next item? Can we do this or can we go to a trust policy? No, man. Madam Chair, are we... Yeah, I'm sorry, what? I know we... Oh, we haven't done this yet. I'm sorry, we have one more. Okay, Mr. Sainz, I'm sorry. Hey, Mr. Letourneau. Mr. Sainz has a motion, but we're going to have to recess the meeting, go into closed session, get closed session advice, and come back out before Mr. Sain should make that motion.

[05:11:59] Is that what you'd like to do, Mr. Rogers, in that way? Yes, Madam Chair. Okay, we're going to recess the meeting and go into closed session to get information before Mr. Sain. A point of order, Chair Randall? Point of order, Chair Randall?

[05:12:14] What is the motion going into closed session? Don't we need a motion to go into closed session? We do need a motion to go into closed session. And we need to know what the closed session is about. We actually, the motion, yeah. Do you have the motion, Mr. S- I might have the motion.

[05:12:32] I don't want to say what the motion is, because I'm not sure if it's legal or not, to be honest. Mr. Rogers, do you have some wording? Yeah. They were printed. Let me find that motion.

[05:12:49] Okay, we're going to take a recess while Leo finds that motion. We're going to take a 10-minute recess.

[05:15:34] Okay, so let me get everyone's, it won't either.

[05:21:53] Let's get everybody's attention just for a second. So this is what would happen. My wonderful colleague who was sitting in London thought that his motion did go out. It may have been a glitch or

whatever happened, but in the end, his motion didn't go out.

[05:22:13] By state law, we cannot look at motions that did not go out. And so we will take up what he's asking for on the 20th of October. But we can't take it up tonight because he thought it went out. It didn't go out.

[05:22:28] So this item is complete, and we're going to now take our dinner break. Thank you, everybody.

[05:49:22] Okay, if there are people who are out in the hallway, out in the lobby, wanting to hear the next items, come on back in right now because depending on who walks back in this room is the order. I see you all. I know you're there. But if other people are waiting to hear the trust policy, if they're still here, I'll do that.

[05:49:38] But if not, I'll go on and do the BMI because I absolutely – did they leave? Okay, I'll do the BMI then, our BMI, Mr. Turner and my BMI. Sure. Okay, just give me one second. Okay, it's item 14G, which is the motion – an item presented by Mr. Turner and myself.

[05:50:16] So what I, this is not a, I don't think this is a terribly hard item, I think it's an important item. I will go on and make a motion, and we can talk within the motion, okay? I move the Board of Supervisors direct staff to form a partnership through a draft member random of agreement, and we turn to the board with the draft agreement for the first board meeting in January of 2027 between Loudoun County and the Loudoun Coalition to present and in homelessness, and that includes provisions to hire a consultant to perform a homelessness and housing instability initiative with a complete date for the study and the presentation

[05:50:54] at a future board supervisor's business meeting in 2027. I further moved the board supervisor's direct staff to return to the November 5, 2026 board supervisor's business meeting with a recommendation of funding for the estimated cost of the County's portion of the Homelessness and Housing Instability Initiative Study.

[05:51:15] Motion's main supervisor saying to second it. First of all, I do want to thank, really thank, the Coalition to Prevent Homelessness. You know, Loudoun County's numbers overall on homelessness are still fairly low compared to the rest of our region.

[05:51:35] However, they are rising, and they are rising for a lot. The region is rising, and they are rising for a lot of reasons. Housing in this area is very expensive. Even if you're sitting at 50% AMI, you're going to be paying almost \$1,800 for a one-bedroom apartment in Loudoun County.

[05:51:52] That's very expensive. Two, it is a hard economy right now. Three, we have an aging population in Loudoun County, so more people are actually, more people are starting to live on a fixed income.

[05:52:09] But also, what we have not done as well as we could have in Loudoun is have enough beds for people who are experiencing a housing crisis. We don't have enough beds. We don't have enough wraparound services. So if somebody's experiencing a housing crisis, it could be for a reason like a medical reason.

[05:52:32] But it could be for other reasons as well, which is why wraparound services to address all those issues are met. It costs so much more for a person to be homeless than for us to figure out how to do more housing.

[05:52:48] When someone is homeless, they have to, they're living in some ways on the system anyway. And so you really, first of all, I think it's, I don't think an ethical society just allows people to be homeless if we can possibly address that issue.

[05:53:06] So let's just start there. But I say this all the time. Not having money is expensive. Not having a home is expensive in so many different ways. And if we have, and I'll talk about this in the closing, if we have partners who are going to partner with us for the study, as far as the financial partnership, that is very important.

[05:53:31] I will also say that before the housing coalition came to Mr. Turner and I, they went to Mr. Keeler. So he received the information first, he saw it, he reviewed it, and he knew what it was. And as we were writing the BMI, we talked to, no, he didn't write it because it's a BMI, but we did talk to Mr. Keeler to understand what we were doing and how we were going to do it.

[05:53:56] So I think that this is the right thing to do. I think it's a cost-effective thing to do. I think it's the moral thing to do. And I say this very rarely, almost never. I hope my colleagues join me in this effort. Does anyone else want to talk on this item?

[05:54:13] Ms. Bricksman? Thank you. I did appreciate the meeting with the coalition and for your work on this. I just wanted to, one of the things that I've been concerned about, and I just want to make sure we're going to address this, that there's a whole group of folks that don't get counted in the point in time, the couch surfers and the students who have to sleep at a friend's house and those sorts of things.

[05:54:46] So do we think that this effort is going to try and capture that population? Is that a question for me? Because I can certainly answer that. So I don't want to take all your time. I don't know who else to ask. So I'll answer it at the end so I don't take your time up.

[05:55:02] If you have any more questions or any more statements. I also wanted to just check in, and maybe this is a question, and I apologize. I didn't tell Mr. Hemstreet or staff that I wanted to know this information, but I wanted to know how many more beds are going to be in the new law shelter, and then how many more beds do we think we're going to have?

[05:55:27] Because I think we also have a county shelter in the CIP. Mr. Hemstreet? Well, the law shelter wouldn't really apply in this way because we're not going to assume that all people who are homeless are domestic violence victims. No, no, I know, but it's something.

[05:55:42] But the county shelter, Mr. Hemstreet? Yeah, so my recollection, and I'll verify this tomorrow. My recollection is the law shelter is about 49 to 50 beds. Okay. And then we'll verify what we're looking for for the county shelter in terms of- We're still exploring what we're going to be doing?

[05:55:59] Yes. Okay. Okay. Thank you. Happy to support. Thank you. So the point-in-time survey, I have been kind of almost complaining to anyone who will listen about that for years. And my issue with the point and count time survey is many things.

[05:56:15] I do not believe they count the couch surfers, people who, people, and the correct word is people who are precariously housed. So they have somewhere for that night to sleep, but they don't really have somewhere. That's an issue countrywide. That's everywhere. The other issue, in my opinion, is the time of year that they do it.

[05:56:33] They do it on the coldest day of the year. And so I think that if you really want to get a good point in time, go out when it's warm. Because on the coldest day of the year, people are going to find somewhere to sleep or somewhere to get inside. And that doesn't mean they have a home.

[05:56:49] It just means they're getting out of the cold for that day. You'd have a much higher count if that happened in June. But respectfully, will this initiative work on that? It won't change. The point in time count survey is not a loud thing. No, no, I know. But is our effort that we're going to do, the study that you're trying to do with your BMI, will that address that population?

[05:57:07] We'll address the population, but it won't change the point in time count. No, I don't want to change. I know that. I do. I just want to make sure we're addressing that population. I don't think you can speak on a BMI. Okay. After we get it back, you can, but you can't speak on a BMI, even though you were so wonderful.

[05:57:23] So, Ms. DiCroni. Yeah, thank you, and I'm happy to support as well, and thank you for meeting with me. You know, the coalition, we had a great meeting. So my question is, we know that we are short with permanent supportive housing.

[05:57:44] We heard that during the FY27 budget, and this will probably take a year to do the study, and we're coming on to FY28, and I'm wondering if we could do some short-term wraparound permanent supportive housing.

[05:58:04] I'm wondering if that's something that you, because remember, we're short of those beds. Well, yeah, so that would have to be a discussion we have in the budget. Listen, that is something I would, I will always have that discussion. We can have it with Mr. Keeler, but it's also a budget discussion.

[05:58:20] I can't say that right now. I can't answer that. Yeah, just because I love that we're doing a study, but I know the need is now, that we have the need now, and that we talked about it during the FY27 budget, but we didn't add any beds. So it's in my mind, and I know that we need to talk about it in FY28.

[05:58:41] So, Mr. Keeler, when we bring up the budget, I'd like to know how we can address the need for more permanent supportive housing. Me too. Thank you. Ms. Glass. Thank you, Madam Chair. And I also want to thank the coalition for speaking with me the other day.

[05:59:01] And I just want to thank Ms. O'Brien for sharing her family story. It's very important. I think it happens more than most people want to talk about it because sometimes it may be a little bit embarrassing to have someone who may have a mental illness or someone who's addicted to drugs and that is where they are.

[05:59:30] And for us to come together and look for a bed, a home for folks who are in that situation is very important. So thank you. Thank you. My co-sponsor, Mr. Turner.

[05:59:46] Thank you, Madam Chair. I really appreciate the conversations. Thank you all very much. They were very informative. The thing that struck me as we were talking was not that our numbers are really bad, but that given the resource-rich environment in which we live and the fact that we're the wealthiest county in the country, our numbers should be the exemplar for the rest of the country.

[06:00:11] We should have a model program, and that's what really struck me, is that on an absolute basis we're okay, But on where we should be with our potential here in Loudoun County, we're way short of that. And so I'm very excited about this.

[06:00:26] I think the sky's the limit with this program. So I do want to make sure that we know that there are two organizations, the Loudoun County Community Cabinet and 100 Women Strong, who have committed \$100,000 and \$25,000 respectively to this effort.

[06:00:44] I want to say that, and I want to thank them. I want to also say to my colleagues, while it is true that veterans and people with disabilities and older people, people with recovering from substance dependence, are people who deal with homelessness, I do not want anyone to think that's all who deal with homelessness. Sometimes you can have no other issue in your life at all, but your two jobs are just not making ends meet, or you had a medical issue, even if it got resolved, you have passed medical bills. And so I don't want to, I want to be careful in that we should do this. At the same time, we should not stigmatize what homelessness looks like, because homelessness

[06:01:24] looks like all kinds of things and all kinds of people. And sometimes you might never know someone is homeless. And the best way to help people, to encourage people to ask for help is not to assume you know what's going on with them, not to assume that they're in recovery, not to assume anything. I say this all the time. The thing that I am so grateful about with Loudoun County nonprofits is that they work to make sure people are treated with respect and dignity. When you walk into Loudoun Hungry Leave, it's a grocery store. It looks like a grocery

[06:01:59] store. It functions like a grocery store. People do not feel embarrassed or stigmatized. And so as we do this, and as we address this same issue, the people that the counties and cities and towns and villages all over the country are doing, let's be sure to remember that if we want people to ask for the help, we cannot assume who those people are, what they look like, what they're going through. We can't assume that. It's just could be, it could be everybody. And I've said many times, and I'm not joking about this. I think Loudoun County is just one of the best

[06:02:36] counties in the country, if not the best county in the country. But one thing I do want to say is I want to make it okay to hurt a little louder in Loudoun County if you have to. Hurting should not be your own personal and embarrassing secret. It's okay to hurt out loud and ask for help out loud. And that's one thing we're trying to do with this is make sure people know that we're there for them no matter why they're in the condition that they are in. So I really appreciate the two nonprofits. I really appreciate the heart that everyone who bought this to

[06:03:15] us has had, the Loudon Coalition to End Homelessness. I do want to say the name Dori O'Brien because She was so, so helpful with this. I shouldn't start saying names, because obviously I have a whole lot of names, to be honest. But everyone is doing this for the right reasons and feel compelled and led to do this.

[06:03:34] And I really appreciate that so much. So I made the motion. Mr. Turner, seconded the motion. All in favor, please say aye. Aye. Any opposed? Okay, so that motion will pass 6-3, 6-0-3, with Mr. Letourneau and Sainz.

[06:03:54] Off the line, and Mr. Kirshner having left the dais, supervisors, I do want to say that we're going to defer the general services item because I know that my three colleagues who are not here did want to have, would want to have an opinion on the general services item, so on the general services building.

[06:04:16] And so we were going to do that item tonight when they were all three here, but I do know that they wanted to have a discussion about it or be part of that vote, so we're going to defer that item. I'm

going to say it to the October 20th meeting, but I'm going to tell you the October 20th meeting is one very full meeting, but we'll save that to the October 20th meeting.

[06:04:39] So normally we do our board comments and things right now, but since the trust item is still something that we really need to do, let's do the trust policy. I'm sorry all the citizens have left, but let's do the trust policy, and then let's come back after that and do board comments.

[06:05:05] How are you? It's a BMI. I don't know. Well, no, seriously, I mean, I just told Mr. Keeler not to have a seat because it's a BMI.

[06:05:24] And BMI's, we don't use staff for BMIs in that way. With all respect, with all respect, it's a BMI for right now. So I'm sorry, but I have to be consistent. I just called myself on the same thing. I made the same call for myself. So, yeah, but thank you.

[06:05:41] You can do this and this and this and do this and do this. Thank you so much. It's a trust policy with three parts to the motion. Ms. Bixman, I will tell you right now, I'm going to divide your motion.

[06:05:56] So you can make it in however you want to, but I will divide the motion. So what would you like to do? Would you like to have two minutes to talk about it and then make the motion? Because that's what we usually do. I can probably just make the motion. I think folks have probably read the item. Folks are pretty good about that.

[06:06:14] here it is. I move that the Board of Supervisors direct staff to research, develop, and return to the board with findings and recommendations to implement a proposed Loudoun County Community Trust policy as outlined in the October 6, 2026 Board of Supervisors business meeting action item.

[06:06:37] I further move that the staff review any county procurement of or contracting for systems and technology that collect or share resident or visa data including automated license plate readers and related systems from firms such as LSAG, Flock, Vigilant, and gather information from law enforcement agencies operating in Loudoun County regarding what systems they use, how widely they are deployed, and how long the data is retained, who may have access to the data, and with whom the data may be shared.

[06:07:09] Staff shall return with findings at a future board business meeting as soon as practicable, even if that occurs prior to the completion of the community trust policy. I further move the Board of Supervisors way of attorney-client privilege for the confidential legal memorandum prepared by the county attorney in response to the June 2026 board member initiative titled researching the legality of prohibiting federal civil immigration enforcement in county-owned facilities and on county-owned properties and that the county attorney be authorized to release the memorandum publicly and offer a verbal explanation of its contents to both the board and the public during the October 6, 2026 business meeting.

[06:07:48] I will second the motion, but still split the motion. So go ahead and do an opening. Sure. We have an obligation to provide services to all residents of Loudoun County through libraries, parks and recreation, child care, schools, housing assistance, health and human services, and victim services.

[06:08:07] I have heard anecdotally that school attendance has declined, that restaurants and agricultural businesses are struggling to maintain their workforce, and that residents are choosing not to seek services out of fear of an increased ICE presence in the area and the perception that personal information may be shared.

[06:08:24] A 2025 nationwide survey by the New York Times reported that 3 in 10 immigrants reported that they or their family members had limited their activities outside of home due to immigration-related concerns. This includes school officials, local businesses, immigration attorneys, nonprofits, service providers, clergy, and students.

[06:08:42] Recently, I met with residents of my district who bravely shared their account. I know that in conversations with county staff, the county administrator, and the county attorney, that we follow all protocols and we make every effort not to share information, and we only share it when required by federal law.

[06:09:09] However, I am of the strong opinion that the public needs to have an understanding of this and that we should review our policies and make sure that the public understands how diligent we are and that we set any procedures or policies in place that might have a consequence if something does happen.

[06:09:33] On the flock camera issue, I think that my staff talked to Supervisor Sane's staff on that, and we're trying to be collaborative because we know that he's been looking into that issue as well. I strongly hope that my colleagues will support this.

[06:09:54] We had an overflow room with nearly 50 people in it today who wanted to speak on this item or wanted to support this item. Unfortunately, they were kind of drowned out by the data center issues, the data center item, and so I thought about trying to defer this, but I think it's critical that we start to have this conversation, that staff research this and come up with proposals, and that we look into what other jurisdictions are doing in this state to make sure that their residents can confidently seek services that they may need

[06:10:32] and some critical services that they may need and may be avoiding because of trust issues, hence trust policy. So I will leave it at that for now. Thank you. I appreciate the speakers, actually, the ones that were able to speak.

[06:10:50] I do appreciate that they came out, and I appreciate the union members that came out in support of this as well, and the folks that attended the rally outside. Thank you. I just want a real quick question. The people who were here to speak on this were not drowned out. We only have an hour and a half of public speaking, and they signed up after the hour and a half.

[06:11:11] Had they signed up earlier, they would have spoke. so no one stopped them from speaking because of anything. They just didn't make the speaker list in time. So I'll make sure I say that. I'm going to split the motion, and I've got to go back on my computer again. I'm going to split the motion on the third I further move.

[06:11:30] So from the third I further move all the way down to the October 2026 meeting, I will make two motions. So the first motion would be from I move that, And then the last one would be to the, I further move, I mean, to the policy.

[06:11:47] So right now, speaking on, if anyone wants to speak on the motion, you're just speaking on, unless anyone wants to split the motion further, this is not, I'm not talking, I'm splitting the motion. If you want to split the motion further, you can, but if you're speaking on the motion right now, it's the first two paragraphs that you're speaking on right now, not the last paragraph.

[06:12:09] So just want to make sure we know what we're doing right now. And then we'll go back and do the last one. Ms. Umstead. Thank you, Madam Chair. Just a question for the maker of the motion and possibly for the county attorney through the chair.

[06:12:30] Is the sheriff required to provide information, the information that the board would be asking for? Mr. Rogers or Mr. Hempstreet?

[06:12:53] I don't know if Amy Markwell, who is here, can answer that question, but I don't believe that I can. You don't believe that the sheriff is what? I'm asking Amy Markwell if she has the answer to that question.

[06:13:08] Okay. She's back at the table. So the sheriff's policies are public record, and they're easily accessible on their website, And I know that the county attorney's office regularly reviews their policies when they're reviewing their policies.

[06:13:25] And, in fact, I just did one for their automatic license plate reader policy based on the changes to the law. So to the extent there is public information that we have, that's one thing. But because he's a constitutional officer, I don't think you can compel him to come and answer any of your questions that are a little bit more detailed on that.

[06:13:51] Okay. Thank you very much. Are you good? Yeah, thank you. Was that the question you were asking? Yes. Basically, the answer is the sheriff is not compelled to respond.

[06:14:10] Yeah. Okay. Thank you. Ms. Tocroni? Yeah, so I guess I have another add-on to that, if you could help with this. So, basically, the only thing we would be able to get from the sheriff's office is what systems they use.

[06:14:29] I mean, can we get any of these other questions answered, do you think, based on the policy that you wrote that you did with the sheriff? I'm sorry. I'm looking at the two paragraphs. And so, what specifically would you be looking at?

[06:14:46] It's the questions like what systems they use, how widely they are deployed, how long data is retained, who may access the data and with whom the data may be shared? Because I haven't looked at the policy you wrote with him, so I don't know. So a lot of that is already covered by law as to what they can collect, how long they can keep it, what systems they can use, because those by law, they can only use the vendors that have been vetted by the state or by the Commonwealth.

[06:15:18] And so to the extent that there is public information that would be subject to FOIA and that isn't confidential, right? I mean, I'm not suggesting that you need to do a FOIA request. I'm just saying that I believe that we can get some of that information. Okay, great.

[06:15:34] Okay. Thank you for that. So I support creating a community trust policy. Neighboring jurisdictions have taken this step for their own residents, and I believe it's time for Loudon to do the same. And I'm glad to support staff bringing this work forward.

[06:15:52] Our own school superintendent has acknowledged that students and families across the county are carrying anxiety about going to school. And when a child is too afraid to come to school or a parent is too afraid to seek medical care for their family, that fear has real consequences.

[06:16:10] So this is simply not okay. And I thank Supervisor Brissman for bringing this forward. I think it's an important policy that we put in place. Thank you. Mr. Turner? Well, thank you, Madam Chair. I'm

happy to support this, but I do have some caveats.

[06:16:29] I want to compliment Supervisor Brisbane. This is a well-written BMI. I was persuasive when I got through it. I was really leaning pretty strongly against this, and I read the BMI, and the persuasive argument was our comparator communities are doing this, and the overwhelmingly persuasive factor was how many people showed up to talk about it tonight, and how important it is to the Hispanic community.

[06:16:55] The caveat I have is, I think, and you mentioned in the BI, you cleared it up in the BMI, that all the other comparators have paid police departments, not a sheriff's office that's independently elected. I don't want the community to get overly sanguine when we pass this, that we've got a community trust policy on par with the other comparator jurisdictions.

[06:17:21] We do not, because our sheriff does not have to respond. That's right. He may respond. I hope he does respond. But he does not have to respond, and we cannot compel him to respond. So to a large extent, there's a whole lot less teeth in this tiger than in our comparator jurisdictions.

[06:17:36] That said, I think it is a statement of solidarity with the community that Loudoun County has a community trust policy. And I think that's really, really important. So I'm more than happy to support the first two paragraphs. So ditto. I will support this because it is a statement of solidarity.

[06:17:55] However, let's be really, really, really clear. We are not like Fairfax. We are not Alexandria. We are not Arlington. That is just not true. It is different when you have a sheriff. He might have the systems and all that, but he doesn't have to turn over anything to us.

[06:18:12] He doesn't have to come talk to us. He doesn't have to share anything with us. He doesn't have to, and he has proven more than once that he won't. And so I don't want, in some ways, I get worried because false hope is dangerous and false trust is dangerous.

[06:18:29] And so if this message to the community is that we want to stand with you to the degree possible, then let that be the message and let that be why I support this. But please do not think that this is not, we're not Fairfax County, Arlington, Alexandria, we're not.

[06:18:46] And so, in some ways, I almost want to say, if you're being careful, please still be careful. Still be careful, because it's not the same thing. And we learned that recently, that there are things going on that we didn't even know were going on before.

[06:19:02] So let's everybody know that we want to do as much as we can, but we cannot do what other places are doing. Let me just say that. The idea that children are worried about coming home and finding an empty house is horrible.

[06:19:23] The idea that people are not even sometime going to their church service, going to worship. Even worse, they're not going to their doctors. They're not getting their children their vaccinations that they need because they are worried that stepping out of their house means they can be picked up.

[06:19:39] And let me be really clear. Let me be really clear. It is not the worst of the worst who are being picked up. It's just not. Most of the people being picked up do not have violent crimes. They just simply do not. There are tens of thousands of minor children who have been left without parents because of this immigration policy.

[06:20:01] It is not thoughtful. It is not thought through at all. It is cruel, and it is purposely cruel. We have children who are sitting in court by themselves who don't even have an attorney in the room with them.

[06:20:17] This administration is inhumane, and these immigration policies are inhumane, and this does not change that. And again, we don't have what the rest of the world has, but if the message to the community is that we stand with you, I will do that because I am an ally to the community.

[06:20:43] And if you ask me to do this, I will. I will not get ahead of you. I will not assume to know more than you know. I will not assume to even understand your pain. I will come alongside you or stand behind you to be supportive.

[06:20:59] And that's what this vote on these two items tonight, on the two first paragraphs, are. Would you like a closing on this, on just that part of that part? Sure, Chair Randall, thank you. I appreciate my colleagues being supportive of this.

[06:21:14] And I think that the community that we're talking about here is well aware that the sheriff retains a 287G agreement with ICE despite state law that says it is illegal to do that.

[06:21:35] and we will see what happens, um, with the case that Jay Jones, the appeal that Jay Jones is bringing forth. I am hopeful that, that policy and that agreement will be terminated. That is very much the root of the fears in the community. And despite the fact that we cannot, um, hold the sheriff accountable. We cannot, we have no authority except for the budget over the sheriff's department, his actions and his agreements. We can keep talking about it. We can keep sharing the

[06:22:15] stories of what's happening in our community like some folks did tonight. We can keep speaking to the community and asking them what they need. And one of the things that they have told us that they would like is a community trust policy to the extent that the county is able to do one. And so I'm really proud to have worked with the community on this, New Virginia Majority, Amica, and a number of other advocacy groups. And I look forward to the result that comes back and furthering the discussion. Thank you.

[06:22:46] Will Ms. Brixford make the motion and I second it on paper to say aye? Aye. Any opposed? That motion will pass 6-0-3. Ms. Brixman, you can make that third part of the motion, or the second part, I guess. You can make it. I'm not going to support it, and I'll tell you why.

[06:23:04] But if you want to go in and make that section, make that section. Read it again. Sure. I further move that the board waive attorney-client privilege for the confidential legal memorandum prepared by the county attorney in response to the June 2026 board member initiative entitled Researching the Legality of Prohibiting Federal Civil Immigration Enforcement in County-Owned Facilities and on County-Owned Property, and that the county attorney be authorized to release the memorandum publicly and offer a verbal explanation of its contents to both the board and the public

[06:23:38] during the October 6, 2026 business meeting. Motion made, sir, a second. Motion would die for lack of a second, thank you. Okay, let's go to the next item. The next item would, oh, actually let's go on and do public comment, how's that?

[06:23:56] Not public comments, I'm sorry, board comments. I think we, yeah, yeah, but I'm just making sure, I think we don't have anything, I think, are we done? - Oh, I think we're done, that's it, 'cause you deferred the other one.

[06:24:12] - I did defer, I think we're done, are we done? What? - Laura and I didn't hear her say it's been-- - Okay, nomination, do you have a nomination for July on, please? me neither miss glass thank you madam

chair i nominate mr charles harris as the broad-run representative for the transit advisory board i nom
nominate miss priya ready as nat large representative on the community services board thank you ma'am
all right let's do board comments miss glass thank you madam chair on wednesday september 16th my
staff met with representatives

[06:24:49] from Dominion to discuss several active substation applications. October 1st, my staff met with
a representative from Dominion to discuss the Golden substation application. October 2nd, my staff spoke
with a representative from Dominion to discuss the Broadland Cyrus One data center site plan.

[06:25:09] October 5th, my staff met with representatives from DLA Piper to discuss the Tech Park at
Dulles Substation application and the Broadland Cyrus Run Data Center Site Plan. On September 30th, I
attended the Celebration of Life for the former Broad Run District Supervisor David McWatters.

[06:25:34] Mr. McWatters passed away in July of this year. He served as our broad-run district supervisor
from January 1st, 1996 to 1999.

[06:25:49] He was a Marine for more than 20 years and a lifetime real estate broker in Loudoun. He will
be missed by his family, friends, and community. He gave so much, and I heard he was a real character
from all of the comments that I had heard from family and friends.

[06:26:11] Thank you, Madam Chair. That's it. Thank you. Ms. Brooksman? Thank you. I want to thank the
county attorney's office for helping with the Riptide Square demolition ordinance.

[06:26:28] And that, my colleagues may remember, is a townhome, three townhomes actually, that
burned down in Algonquian District near Lowe's Island Elementary School was the subject of bankruptcy
and an arson case. And because one of the townhomes was subject to bankruptcy and arson, it had not
been torn down and cleaned up.

[06:26:47] And this happened on October 24th of last year. So the demolition and cleanup started
yesterday. I wasn't able to go by today, but there was a reporter over there today saying they were
continuing the work. And so I am grateful that the community will hopefully be able to move on in their
healing process and won't have to look at that carcass any longer and have to think about the loss of life
that occurred because of a very, very selfish act

[06:27:19] um, to try and, and, uh, get an insurance payout for the home. Um, and so I really want to
appreciate the collaboration on that with, um, the County Attorney's Office. Um, I also want to say a thank
you to, again, the County Attorney's Office and the Department of Planning and Zoning, uh, for joining me
at the, um, very well-attended, um, community meeting about the, um, Amazon on proposal at the GW
campus.

[06:27:50] We had a really good meeting and a really good discussion, and so I am feeling very positive
about that. Thank you for supporting colleagues at Breast Cancer Awareness Month proclamations. My co-
sponsors and I will be presenting those at different events around the county.

[06:28:08] And for those of you who don't know, I'm a breast cancer survivor. I was diagnosed in June of
2023, um, had surgery and went through radiation, uh, for all of October of 2023. So that was fun. Um, so,
uh, I want to recognize the three young men who achieved Eagle Scout status, and we will also be, um, uh,
giving those, uh, proclamations to them at their, um, at their troop meeting. Um, and also thank you for

the safe passages of schools and the other transportation items that passed on consent from the Finance Committee. Almost every one of those

[06:28:44] touches Algonquian in some way, particularly at Horizon Elementary School, where there will be a high-visibility crosswalk put in for those that want to walk to school from the townhomes across the street of Broadmoor Drive. From the Gun Violence Archive, we have seen 9,954 folks, citizens, or otherwise killed by gun violence this year.

[06:29:08] We've had 361 mass shootings. We have seen 173 children age 0 to 11 die by gun violence, and teenagers 674 have passed because of gun violence. Thank you. Mr. Crony.

[06:29:27] I haven't called you yet? Mr. Crony. Thank you, Chair Randall. So for disclosures, on September 25th, my staff and I met with representatives from Dominion about the panel wiring shop. And on September 29th, my staff met with representatives from Delta East regarding my board comments.

[06:29:48] Since taking office, I've made it my mission to be as accessible as possible to Little River District residents, which is why I host monthly office hours and community meetings in town halls as much as possible. Last month, I held a data center town hall for Willowsford and invited Yonder and the fire marshal's office to come out and speak with the residents.

[06:30:13] I spoke at Birchwood's conversation hour with Bob Wirtz to discuss data centers in Loudoun. And I held my office hours at the Middleburg town hall and spoke with residents who wanted to discuss issues and just say hello.

[06:30:29] So this month, I'm planning to hold office hours in Aldi at the end of the month. More information will be coming regarding the date and location in my social media. Thank you. Thank you. I don't remember who I've called on now.

[06:30:46] Ms. Umstead, have you been calling your way? Okay, Ms. Umstead. I have one disclosure. September 30th, I met with representatives of Quantum Park. Howie Adau, Douglas Flight, Elizabeth Nicholson, Miguel Garcia, and Brian Winterhalter.

[06:31:09] And I would just like to congratulate the town of Leesburg on the opening of Veterans Park. I appreciate Chair Randall sending, I think it was Courtney, to represent her office.

[06:31:25] But it was a lovely event down by the river at the new boat launching facility that Supervisor Briskman, I know, is eager to try out. Mayor Burke did a very good job.

[06:31:41] She was joined by Council Members Zach Cummings and Neil Steinberg, Delegate Marty Martinez, and Judges Frank Buttery and Debbie Welsh. So the town very graciously gave the county credit for providing, as they said, most of the funding for this.

[06:32:06] We provided \$4 million. The town had bought the land for \$3 million, and our \$4 million have gone a long way to allowing the town to open up that park. So it's a gorgeous park.

[06:32:22] I recommend everybody go there. Thank you. it is not Mr. Turner it is not thank you Madam Chair on September 23rd and October 5th my staff and I spoke with Antonio Calabrese to discuss the Tech Park Dulles substation that's all I have so I have forgotten my disclosures I apologize I will bring them all to the next meeting because I forgot I forgot them this meeting I do want to say two things one earlier this last week I went to a book launch for a book called Building Freedom.

[06:32:59] It's a roadmap for women beginning their entrepreneurial journey. It was written by, well, actually 28 women in Loudoun County. Tina Johnson and Angela Goodman were the main authors, but then they also invited 26 other women to write a chapter each on what it means for a woman to begin an entrepreneurial journey or any other journeys, whether that is into motherhood or something else.

[06:33:26] And so they had a book launch, and of the 26 authors who wrote the book, I think it was like 21 were there. It was a remarkable, wonderful, fantastic experience to be with all these very powerful, lovely women of all ages, of all backgrounds.

[06:33:47] You know, Tina Johnson, who was just a powerhouse within her own right, just decided that she wanted to do— She's always focused on women, so she wanted to do something for women, and it would last long term, and so she wrote this book, and I got a copy, and then I went around and tried to have everybody sign my book on their chapter.

[06:34:07] It was really, it's just fantastic and great. So I want to say that. I also want to say I have a new mission in life now, because I went to do the, to do that celebrate the USO lounge in Dulles Airport. And on my way, I was like, how am I going to get behind the security to get to the USO lounge?

[06:34:27] I got there and I found out that most USO lounges in the country are not behind security. They're out by baggage claim. That makes zero sense. I mean, the USO lounges are for people, usually often when they're going from one duty station to another, they want to stop at the USO lounge.

[06:34:46] If you finish your tour of duty, you've been gone for a year, you get home, you hug your spouse, kiss your kid, go get your luggage and your duffel bag, you're not stopping at the USO lounge before you leave. You're not. And so the USO lounges, it makes sense to put them behind the security gate.

[06:35:03] So when I ask why they don't put them behind the security gate, the answer was because behind the security gate costs a lot more for airports to put them back there than out by the baggage claim. I am tired of people talking about how much they appreciate the military and how, like, thank a veteran and all that, and then can't do something as simple as put a nonprofit behind the security gate so that people who are in the military and are their families can have somewhere to sit, to stay, to relax when they're on their tours.

[06:35:40] It makes no sense, and it is not appreciating the military having a USO lounge next to baggage claim. So now I have a new mission in life. Thank you. That is it. All right. I think, shockingly, with this agenda, I cannot believe we're done because it's such a long agenda.

[06:36:01] If you say 10 o'clock one more time, girl, we are done. It is at 10 o'clock, we are done. Mr. Hempstreet, Mr. Rogers, I need to talk to the two of you before I walk out. Thank you, everyone. We are adjourned.



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